TAMWORTH REGIONAL DEVELOPMENT CONTROL PLAN 2010

Amendment No. 20

Adopted 12 October 2010

Effective from Commencement of Tamworth Regional Local Environmental Plan 2010

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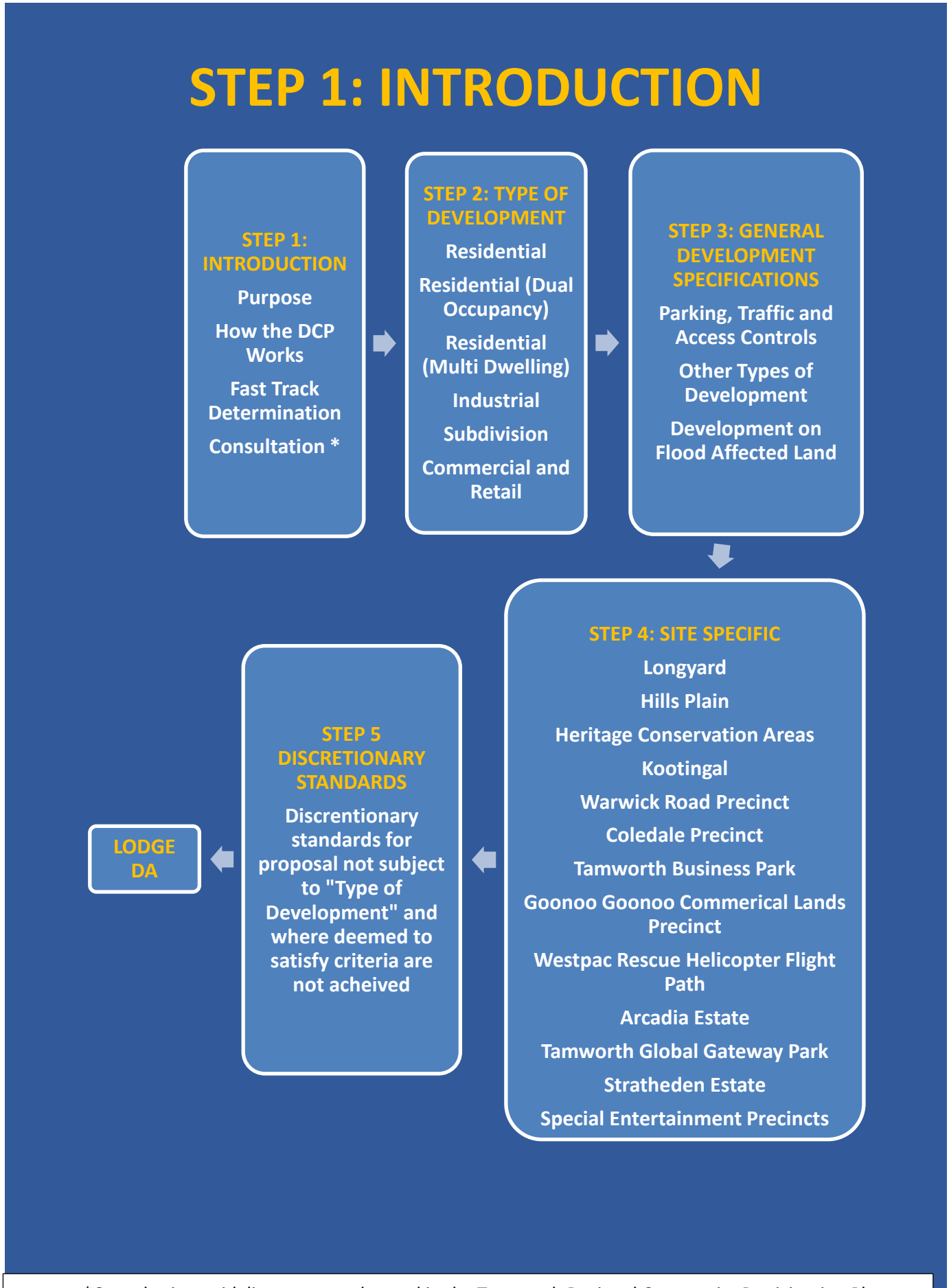
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STEP 1: INTRODUCTION



*Consultation guidelines are now located in the Tamworth Regional Community Participation Plan

INTRODUCTION

1.1 Purpose of the Plan

This Plan contains more detailed guidelines for development to complement the provisions contained in the Tamworth Regional Local Environmental Plan 2010 which applies to all land within Tamworth Regional Local Government Area (LGA).

1.2 Aim of the Plan

The aims of this Plan are to:

- Define development standards that deliver the outcomes desired by the community and Council;
- Provide clear and concise development guidelines and desired future character statement for various forms of development and site specific precincts;
- Encourage innovation in design and development by not over-specifying development controls;
- Expedite development approvals by providing clear direction on Council's intent and criteria;
- Provide certainty of development outcomes for developers and the community; and
- Protect and mitigate impact on environmental values of land, air, water, noise, scenic visual amenity, flora and fauna (ecological and biodiversity).

1.3 How the plan works

This development control plan (DCP) provides the key criteria for specific types of development that commonly occur in the Tamworth Regional Local Government Area. Development controls are also provided for specific locations within the region. Development controls are broken into four separate components – **STEP 2: Type of Development, STEP 3: General Development Specifications, STEP 4: Site Specific Requirements** and **STEP 5: Discretionary Development Standards**.

Under section 4.15 of the *Environmental Planning and Assessment Act 1979* (EP&A Act), Council is required to consider a range of issues in the evaluation of a development application including the DCP. Therefore compliance with this DCP does not guarantee development approval will be issued.

However, in relation to the nominated types of development, Council has adopted 'non-discretionary' development controls that establish a 'deemed to satisfy' standard of development. Where this standard is achieved, Council **WILL NOT**:

(a) further consider those standards in determining the development application, or

(b) give weight to objections received relating to those standards, or

(c) refuse the application on the ground that the development does not comply with those standards, or

(d) impose a condition of consent that has the same, or substantially the same, effect as those standards but is more onerous than those standards.

Where the standard is not achieved, the application cannot be 'fast tracked', and the application must provide justification in line with the **Discretionary Development Standards**.

In the absence of specific controls in the DCP for a development type, **Step 3: General Development Specifications** identifies matters that are relevant to all forms of development and will be considered as part of Council's merit-based assessment, applying best practice planning standards.

1.4 Fast Track Determinations

This plan identifies 'non-discretionary' development standards that reflect achievement of the underlying objectives of the DCP for specific types of development. Where a proponent certifies that the minimum standards are met, determination should be issued within 10 days.

The Fast Track ***'deemed to satisfy'*** process is a simpler, faster approval pathway. Still merit-based, the process streamlines the assessment of common forms of development that can be clearly quantified as achieving the outcomes sought by the community, the development industry and Council.

The following types of development may be 'fast tracked' where the proponent certifies that the development complies with the minimum DCP controls:

- ✓ **Residential (General Housing) including ancillary structures such as pools and car ports**
- ✓ **Residential (Dual Occupancy)**
- ✓ **Industrial (General and Light)**
- ✓ **Commercial and Retail**

Fast track determination does not apply to:

× applications where consultation is required or a variation to a development control requested

× subdivisions

× unspecified forms of development

× flood affected land

× heritage items and heritage conservation areas identified in the local environmental plan

× bushfire prone land

× proposals that are integrated or designated

× heavy industrial uses

× development that impacts on Biodiversity

× any application determination by senior staff to not be fast appropriate fast track

× traffic generating development identified in schedule 3 of *State Environmental Planning Policy (Transport and Infrastructure) 2021*

× referral to any State of Commonwealth external agency

Applicants who seek their development applications to be fast tracked will need include a signed certification checklist that confirms that all the 'deemed to satisfy ' development standards have been met. Council will accept applications prepared by suitably qualified persons (such as planners, architects, engineer, draftsman and surveyors). Where plans are subsequently found to not meet a development standard, the application will be removed from the fast track stream.

1.5 Don't meet the 'deemed to satisfy' standards?

If your proposal does not meet the 'deemed to satisfy' standards, your application must provide justification in response to **STEP 5: Discretionary Development Standards.** Applications that do not meet the 'deemed to satisfy' criteria will not be processed under the 'fast track' stream.

1.6 Relationship to other plans

This DCP is only one of the matters that must be considered by Council in determining a development application.

The proposal must also be considered with regard to the other matters contained in Section 4.15 of the *Environmental Planning & Assessment Act 1979*, including relevant environmental planning instruments, the likely environmental effects, suitability of the site, any submissions received and the public interest.

Further, other State or Commonwealth legislative requirements may apply, depending on the location and characteristics of the site.

1.7 Developer Contributions

As a consequence of development it is likely that an increase in the demand for public amenities and services (such as cycleways, community facilities, local open space etc) will occur. In this regard, a contribution under Section 7.11/7.12 of the *Environmental Planning and Assessment Act 1979*, may be required as a condition of the development consent in accordance with Tamworth's Contributions Plan.

Council requires developers to contribute towards the augmentation of water, sewerage and stormwater works to meet the additional demands of the new development. In this regard, approval must be sought from Council under the *Water Management Act 2000* (water, sewer) and *Local Government Act 1993* (stormwater) to determine the required contributions.

Rates are reviewed annually in the management plan and can be viewed on Council's website.

1.8 Currency of Guidelines

The Guidelines will be reviewed as required. To ensure you are using the most current version, you may either contact Council by phone or check the web-site. This will also alert you to any amendments on exhibition.

Amendment No. 1 - Adopted 14 June 2010
Amendment No. 2 - Adopted 13 December 2011
Amendment No. 3 - Adopted 14 August 2012
Amendment No. 4 - Adopted 11 June 2013
Amendment No. 5 - Adopted 10 December 2013
Amendment No. 6 - Adopted 14 October 2014
Amendment Nos. 7 and 8 - Adopted 14 April 2015
Amendment No. 9 - Adopted 13 October 2015
Amendment No. 10 - Adopted 25 October 2016
Amendment No. 11 - Adopted 22 August 2017
Amendment No. 12 - Adopted 10 October 2017
Amendment No. 13 - Adopted 26 November 2019
Amendment No. 14 - Adopted 13 October 2020
Amendment No. 15 - Adopted 26 October 2021
Amendment No. 16 - Adopted 11 October 2022
Amendment No. 17 - Adopted 23 July 2024
Amendment No. 18 - Adopted 9 September 2025
Amendment Nos. 19 and 20 - Adopted 2 June 2026

1.9 Mail Delivery Times

The mail delivery times nominated by Australia Post for the Tamworth Area are taken into account when notification of a development application is undertaken. From the date of adoption of Amendment No. 10, Council allows a period of 7 days for delivery of written correspondence.

2.0 Desired Future Character Statements

Desired Future Character Statements will be prepared for each new or updated site specific area in Step 4 of this DCP.

Each statement is designed to provide objectives for the future development of a site specific area and to emphasise the important existing features or qualities of an area that should be maintained or enhanced.

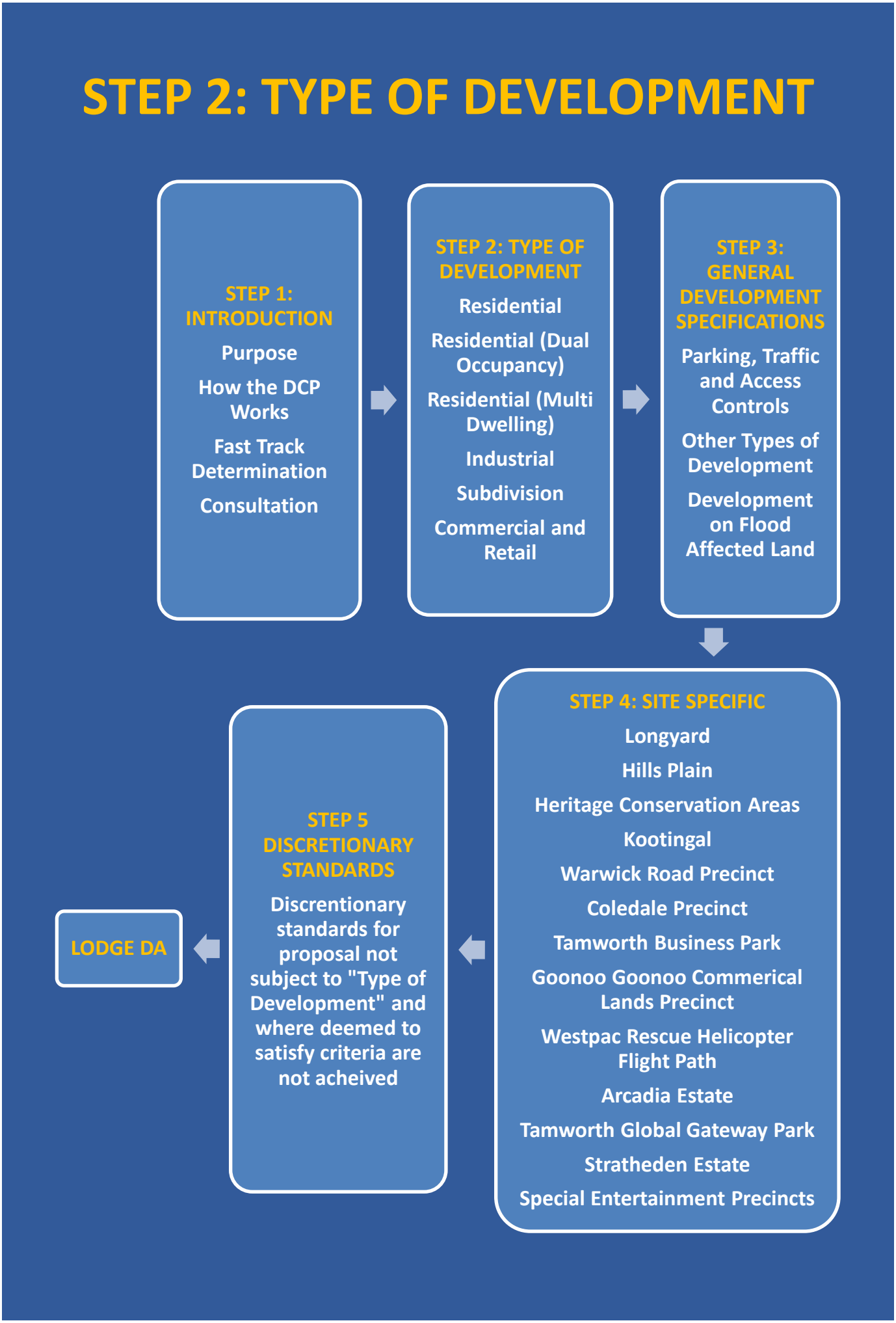
Each statement is short and in plain English, so as to clearly describe the intended desired character of a site specific area. Development proposals, in addition to being consistent with the various development controls, need to also support the intended desired future character.

The key objectives of the desired future character statements are:

To protect and enhance the existing character that distinguishes the identity of each site specific area; and

To ensure specific development controls outlined in this DCP are met and to assist decision-making as to whether a proposed development is compatible with the desired future character of the site specific area.

STEP 2: TYPE OF DEVELOPMENT



STEP 2: TYPE OF DEVELOPMENT

General Housing and Ancillary Structures Development Controls

These are the 'deemed to satisfy' controls relating to Residential (General Housing and Ancillary Structures) developments. Please note, additional site-specific requirements may also apply to your development, check STEP 4.

Building Setbacks

Zone	Street	Side/Rear
R1	4.5m, 5.5m to garage	BCA
R2 (LSM – U)	5.5m	1m
R2 (LSM – U adjoining R2 LSM - V	7.5m	1.5m
R2 (LSM – V)	10m	2.5m
R2 (LSM – W)	10m	2.5m
R2 (LSM –AA1)	10m	4m
R5 (LSM-W)	10m	4m
R5 (LSM-Z)	20m	10m
R5 (LSM-) Y1	20m	10m
RU1	20m	10m
RU4	20m	10m
RU5	6m	BCA
RU6	10m	4m
C3	20m	10m
SP3	10m	4m

- In Zone R2 and R5, setbacks vary dependent upon the Minimum Lot Size Map (LSM).
- In Zone R1 where a lot has frontage to more than one street, the setback to the secondary frontage is permitted at 2 metres for part of the dwelling, comprising a maximum of 20% of the overall length of the building, and must contain a living room area window or entry door, and must protrude from the main wall by at least 1.5 metres.
- In Zone R2 where a lot has frontage to more than one street, the setback to the secondary frontage is permitted at 4.4 metres for part of the dwelling, comprising a maximum of 20% of the overall length of the building, and must contain a living room area window or entry door, and must protrude from the main wall by at least 1.5 metres.
- Where the shape of the lot or site constraints affect the placement of a dwelling, encroachment to the building lines in the above table will be permitted, to a maximum of 5% of the specified setback and for a maximum of 10% of the length of the wall.
- Within "The Peak" a setback of 2 metres is permitted to verandahs, being open-style elements of the building façade.
- Existing trees and vegetation should be preserved particularly street trees and those within the front setback.

Building Height

Measured from natural ground level to:

- Topmost ceiling: maximum 7.2m
- Top of the ridge: maximum 10m
- For development on ridgelines, the roofline must not project above the ridgeline where visible from any public road or place.
- Any development on a ridgeline must be accompanied with a Visual Impact Assessment.

Privacy

- Single storey development meeting setbacks do not require specific privacy controls.
- Development of more than one storey should locate and size windows to habitable rooms to avoid facing onto windows, balconies or courtyards of adjoining dwellings.

Design

- No windowless facades at the street frontage(s).
- Where a three car garage is proposed, the third garage is to be setback at least 1m from the front garage line.
- The width of garage doors must not be greater than 50% of the front elevation.

Site Coverage

Zone	Cumulative site coverage
R1	75%
R2	40%
R5	25%
RU1	Not specified
RU4	Not specified
RU5	60% sewered 40% un-sewered
RU6	Not specified
C3	Not specified
SP3	Not specified

- Notwithstanding, stormwater runoff must not exceed infrastructure capacity.

NB: Cumulative site coverage Includes all hardstand areas (e.g. driveways, artificial turf and other non-pervious areas).

Parking, Traffic and Access

- Refer to *Step 3: General Development Specifications – Parking, Traffic and Access Controls.*

Utilities

- Buildings and structures are to be located clear of utility infrastructure.
- For sewer mains, structures are to be located in accordance with Council's Policy "Excavating/Filling or Building Adjacent to or Over Existing Sewer Mains".
- Details of water supply are to be provided.
  - If available, connect to reticulated supply;
  - Where trickle supply is available, connection shall be in accordance with Council Policy "Low Flow (Trickle Feed) Water Supply". Tanks required under this policy are required in addition to any BASIX and bushfire requirements.
  - Where no water supply is available, a minimum tank storage of 60,000 litres is required, of which a minimum of 10,000 litres is retained for firefighting purposes (this can increase in bushfire prone areas). See Council Policy "Water Supply to Residential Dwellings with no Reticulated Supply".
- The developer is responsible to consult with Essential Energy, natural gas and a telecommunications carrier regarding the provision of services.

Fencing

- Street fencing shall be open or combination of open panels and masonry columns to a maximum height of 1.8 metres.
- Where a street fence is proposed, the section of side boundary fencing located in front of the building setback shall be open or combination of open panels and masonry columns to match front fence.
- Street fencing details are required with development application for dwelling.

Temporary Accommodation (during dwelling construction)

- Not permitted in R1, R2, RU5 zones.
- Written evidence that finance is available for erection of the proposed permanent dwelling within a period not exceeding 12 months.
- Maximum period of occupation is 12 months.
- Cannot be situated in front of the proposed dwelling.
- Occupation by the owner and immediate family only.

Outbuildings, Carports and Detached Garages

Zone	Size	Cumulative Size of Outbuildings
R1 <2000m²	70m²	100m²
R1 >2000m²	90m²	150m²
R2 (LSM – U)	125m²	150m²
R2 (LSM - V)	150m²	175m²
R2 LSM – U adjoining R2 LSM - V	135m²	165m²
R2 (LSM – W)	175m²	200m²
R2 (LSM –AA1)	175m²	200m²
R5 (LSM-W)	175m²	200m²
R5 (LSM-Z)	200m²	250m²
R5 (LSM – Y1)	200m²	250m²
R5 Longyard Trails – Rodeo Drive	250m²	250m²
RU1	Not specified	
RU4 <10ha	300m²	400m²
RU4 >10ha	Not specified	
RU5	100m²	150m²
RU6	125m²	150m²
C3	125m²	150m²
SP3	125m²	150m²

- In Zones R1, R5 and RU4, setbacks vary dependent upon lot size.
- Not allowed within building setback.
- Not allowed in front of main dwelling if <4,000m² lot.
- In Zone R1, detached sheds made from a material that is not the same as the dwelling, must be setback at least 1 metre behind the front façade of the dwelling. This control applies to lots with both single and secondary frontages, with the exception of rear lanes.
- If in front of main dwelling, must:
  - Same construction,
  - Matching roof pitch, and
  - Appear like part of the habitable dwelling.
- Amenities in an ancillary structure to a dwelling are restricted to one toilet and one hand basin. In a pool house or cabana, a shower will be allowed.

Zone	Height to eave	Height to ridge
R1	3.4m	3.8m
R2 (LSM – U)	3.8m	4.2m
R2 (LSM – V)	4.0m	4.4m
R2 (LSM – W)	4.0m	4.4m
R2 (LSM – Y1)	4.0m	4.4m
R5	4.0m	4.4m
R5 Longyard Trails – Rodeo Drive	Not specified	5.0m
RU1	Not specified	
RU4	Not specified	
RU5	3.8m	4.2m
RU6	Not specified	
C3	3.2m	3.6m
SP3	Not specified	

- Alternatively outbuilding may match the house roof pitch.

Shipping Containers For Storage	• Shipping containers for storage are not allowed in Zones R1, R2, R5 or RU5 for a period exceeding 3 months unless: o There is only one container per property; and o It is located behind the existing dwelling; and o The setback for side and rear boundaries relevant to the zone has been achieved; and o It is painted to match the colour of the existing dwelling; and o It is screened where visible from the street or adjoining properties; • It is used for domestic storage; and • It is not on land that contains a heritage item. • Shipping containers for storage on vacant land are allowed in Zones R1, R2, R5 or RU5 where they are: o Located in the rear 50% of the lot; and o The setback for side and rear boundaries relevant to the zone has been achieved; and o Suitably screened; and o Painted to match the surrounds; and o It is used for domestic storage; and o It is not on land that contains a heritage item or located within a heritage conservation area, • Shipping containers cannot be stacked for storage in Zones R1, R2, R5, RU4 or RU5. • Shipping containers on flood affected land are not allowed.
"Cargotecture" Shipping Containers used for Housing (Cargotecture) for Houses, Pools, Garages	• Dwelling structures constructed from shipping containers must comply with the development controls contained in this chapter and must also: o Feature innovative architectural design and incorporate elements such as pop outs, decks, verandahs, courtyards and variations in roof pitch; o Incorporate openings and materials that enhance the appearance of the structure; Be painted and/or clad in materials to complement the surrounds.
Relocated dwellings	• Dwelling not to be moved onto site before development consent issued and no work is to commence on the re-erection of the dwelling until the Construction Certificate is approved by Council or the Principal Certifying Authority. • The DA must include: o A comprehensive report prepared by an accredited Building Surveyor or Structural Engineer certifying the soundness of the building; and o Photographic evidence of the dwelling supported by a description of its condition. o A statement from a suitably qualified person shall be provided confirming that all asbestos has been removed prior to relocation.
Crown Road Access	• Where access to an existing allotment is from a Crown Road, the Crown Road must have an all-weather surface to a standard suitable for 2WD access for a B99 vehicle under AS2890.1. • Council is not the Roads Authority and is not responsible for the construction or ongoing maintenance of a Crown Road.
Site Levels and Retaining Walls	• Site and/or elevation plans must include existing and finished ground levels at Australian Height Datum (AHD). • Proposals for retaining walls must include top and bottom of wall height details (in AHD) and retaining wall locations and full extent must be shown on plans and associated elevations and cross sections. *NB: Retaining walls located on property boundaries must not result in adverse impacts on adjoining properties (e.g soil stabilisation, overlooking, drainage).*
Geology	• The design process must give consideration to the potential impact of erosive soils, saline soils, soils of low wet strength, highly reactive soils and steep slopes and document how these constraints are addressed.
Slope	• Development on slopes >15% requires detailed geotechnical investigation (including slope stability analysis) and design to demonstrate good hillside development practice. Engineer's certification to accompany development application. • Details of sub-surface drainage is to be provided with no discharge to slopes. • Development on slopes >20% is not permitted.
Pools	• Are to be positioned, including fencing, behind the building line.

	• Where visible from a public place or road, details of screening are to be supplied. • Any associated retaining walls or decks are not to exceed 1.0 metres above natural surface level. • Pool pump enclosure to be placed greater than 15 metres from a habitable room in a dwelling on adjoining property or within a sound-proof enclosure and must be indicated on the plan set • Must have a rain water tank not less than 3000 litres that is available on the property for topping up the pool. Applies to pools larger than 20,000 litres. • Water Sensitive Design (WSE) controls do not apply to isolated pool development applications
Water tanks	• Located behind the street setback of any dwelling (unless placed below ground). • Suitably screened where visible from a public place or street. • The location of tanks and size should be shown on the plan prepared to accompany the DA, including details of any physical screen.
Exhibition Homes	• Not acceptable to be located in a cul de sac, no through road, dual occupancy or multi dwelling housing development. • Allowed to be open for inspection between 9.00am and 5.30pm daily. • Development consent will be limited to period of eighteen (18) months from the date of an Occupation Certificate. • Upon expiry of development consent the dwelling shall revert to normal domestic use. • A single advertisement is permitted. • A minimum of 2 car spaces must be provided onsite.
Water Sensitive Essentials (WSE)* ***Compliance is achieved by meeting a minimum of two out of five of the following** **NB:** *Consult with Council to discuss water saving rebates that are available for water sensitive essential requirements.*	• Details must be provided demonstrating that a minimum of 2 out of the following 5 WSE's has been achieved: ○ **Water efficient appliances and fittings -** Water Efficiency Labelling & Standards (WELS)rating with a minimum of 4 stars. ○ **Rainwater tank(s)** with a volume of not less than 10,000L. An appropriate mechanism is to be provided for automatically switching to the town water supply (if available) when the volume of water in the rainwater tank(s) i s low ○ **Landscaped stormwater retention area (Rain garden)** ○ minimum of 5m2 of retention area ○ must be designed by a suitably qualified person. ○ **Grey water diversion device** - a gravity diversion device with a hand-activated valve, switch or tap that is fitted to the outlet of the waste pipe of the laundry tub. The device can be switched by the householder to divert greywater from the laundry tub by gravity directly to the diversion line and the dedicated land application system (e.g. lawn or garden beds) instead of the sewer. ○ The dedicated land application system must be not less than 10 m2. ○ Greywater must not be stored. ○ Gravity diversion devices must not be installed below the "S" bend on any plumbing fitting and must be installed by a licensed plumber. ○ A Council approved on-site wastewater disposal system will also be acceptable. ○ **Grey water treatment device** - this treats greywater for re-use on a property, such as toilet flushing, washing machine and surface irrigation of gardens and lawn. It is a form of on-site wastewater treatment. ○ the owner of the premises must obtain approval from Council for installation and operation under section 68 of the Local Government Act 1993 and Part 2, Division 4 Local Government (General) Regulation 2005. ○ A council must not approve the installation unless they have been accredited by the NSW Department of Health. ○ must be installed by a licensed plumber.
Plumbing for recycled water	• When a new dwelling is being constructed the inclusion of additional underfloor drainage pipes to enable an external greywater reuse device to be connected.
WSE Exemptions	• Water Sensitive Design (WSE) controls (including plumping for recycled water) do not apply to General Housing, Ancillary Structure development or Dual Occupancy where reticulated connection to water and sewer is not available or is not required.

Bushfire Prone Land	• The plans prepared to accompany a DA located in a bushfire prone area, being land that is identified on a map certified by the Rural Fire Service, must illustrate the required Asset Protection Zone (APZ) • DAs for development located in a bushfire prone area must be accompanied by either a Bushfire Attack Level Self-Assessment (BAL) or a Bushfire Planning and Design Report (BPAD). *NB: Where the DA is accompanied by a BPAD report, Council's bushfire assessment fee will not be applicable.*
Environmental effects	• The application documentation shall identify any potential environmental impacts of the development and demonstrate how they will be mitigated. These impacts may relate to: o Traffic o Flood liability o Slope o Construction impacts o Solid and Liquid Waste o Air quality (odour and pollution) o Noise emissions o Water quality o Sustainability
Soil and Erosion Control	• Runoff shall be managed to prevent any land degradation including offsite sedimentation. • Reference shall be made to the NSW Governments Managing urban stormwater: soils and construction, Volume 1 (available from Landcom), commonly referred to as "The Blue Book". • Cut and fill will be minimised and the site stabilised during and after construction. • Arrangements in place to prompt revegetation of earthworks to minimise erosion.
Vegetation /Landscaping	• Development design shall accommodate the retention of any mature trees and vegetation. • Where mature trees and vegetation are removed, replacement landscaping should aim to incorporate local indigenous species from 'Australian Plants Suitable for Tamworth Regional Council Areas" list.
Construction Waste Management	• All DAs for construction of general housing must be accompanied by a Resource and Waste Management Plan (RWMP). • The RWMP must consider reuse or disposal of existing site waste materials (including demolition materials, earthworks) and construction waste materials.
Ongoing Waste Storage	• Provide DA plans/drawings showing: a) storage space and layout for the required number of bins (outside) b) layout and dimensions required to accommodate collection vehicles when on-site collection is required • Consideration of screening or discreet storage locations where possible to minimise visual impacts on neighbouring properties and the public domain.
Solar Access and Energy Efficiency	• Shadow diagram are required for developments of ≥ 2 storeys and need to demonstrate habitable rooms of adjoining dwellings and major part of their landscaped open space to retain a minimum of 4hrs sunlight between 9am-3pm on 21st June (winter solstice). • In this regard, "habitable" refers to rooms capable of occupation and does not include laundry, bathroom or garages. • Development must be designed to maximise solar access, solar use and energy efficiency for future building users, as well as increased energy and thermal performance in accordance with the latest versions of Sustainable Buildings SEPP, BASIX (where relevant) and National Construction Code
Urban Heat Island Effect	• Please refer Urban Heat Island Effect controls in *Step 3: General Development Specifications - other Types of Development Controls*

Tamworth Regional Development Control Plan 2010

STEP 2: TYPE OF DEVELOPMENT

Residential (Dual Occupancy) Development Controls

These are the 'deemed to satisfy' controls relating to dual occupancy developments. Please note, additional site-specific requirements may also apply to your development, check STEP4.

Building Setbacks

Zone	Single Storey		≥ 2 storey	
	Front	Side / rear	Front	Side / rear
R1	4.5m, 5,5m to garage	1m (675mm#)	4.5m, 5.5m to garage	2m (1125mm#)
RU5	6m		6m	
RU1	20m	10m	20m	10m
RU4	20m	10m	20m	10m

roof eaves, sunhoods, gutters, downpipes, chimney flues, light fittings, electricity and gas metres, and aerials.

- In Zone R1, where a lot has frontage to more than one street, the setback to the secondary frontage is permitted at 2 metres for part of the dwelling, comprising a maximum of 20% of the overall length of the building, and must contain a living room area window or entry door, and must protrude from the main wall by at least 1.5 metres.

Design

- For corner lots, dwellings shall be designed to present to and have vehicle access from alternate frontages, unless one street is a collector road or greater, where both shall be accessed from the lesser street classification.
- Garage/s shall not exceed 60% of the street elevation.

Utilities

- Servicing strategy required to demonstrate the availability and feasibility of providing water, sewer and stormwater services appropriate for the scale of development.
- Buildings and structures are to be located clear of utility infrastructure.
- For sewer mains, structures are to be located a minimum of one metre plus the equivalent invert depth from the centreline of the main. See Council Policy "Excavating/Filling or Building Adjacent to or Over Existing Sewer Mains" for further detail.
- Dual occupancy not permitted on unsewered land in Zone R1 and RU5.
- Stormwater arrangements shall be designed to a gravity system.
- Details of any stormwater detention systems shall be provided.
- Individual detention systems for each unit are acceptable for a dual occupancy development.
- Detention tanks but must be a separate tank to that required by BASIX or bushfire requirements.
- Refer to Council's Engineering Design Minimum Standards.
- The developer is responsible to consult with Essential Energy, natural gas and a telecommunications carrier regarding the provision of services.

Building Height

Measured from natural ground level to:

- Topmost ceiling: maximum 7.2m
- Top of the ridge: maximum 10m

Site Coverage

- Residential zones: Maximum site coverage of 75% (includes all hardstand areas).
- Commercial zones: Refer to Floor Space Ratio Clause contained within the Tamworth Regional Local Environmental Plan 2010.

Solar Access and Energy Efficiency

- Shadow diagram are required for developments of ≥ 2 storeys and need to demonstrate habitable rooms of adjoining dwellings and major part of their landscaped open space to retain a minimum of 4hrs sunlight between 9am-3pm on 21st June (winter solstice).
- In this regard, "habitable" refers to rooms capable of occupation and does not include laundry, bathroom or garages.
- Development must be designed to maximise solar access, solar use and energy efficiency for future building users, as well as increased energy and thermal performance in accordance with the latest versions of Sustainable Buildings SEPP, BASIX and Section J of National Construction Code

Privacy

- Development of more than one storey must locate and size windows to habitable rooms to avoid facing onto windows, balconies or courtyards of adjoining dwellings.

Parking, Traffic and Access

- Refer to *Step 3: General Development Specifications – Parking, Traffic and Access Controls*

Vegetation / Landscaping

- A Landscape plan must be provided.
- Minimum of 125m^2 of landscaping for each dwelling.
- Development design shall accommodate the retention of any mature trees and vegetation.
- Where mature trees and vegetation are removed, replacement landscaping should aim to incorporate local indigenous species from 'Australian Plants Suitable for Tamworth Regional Council Areas" list.

Private Open Space

- Private open space (POS) must be provided in accordance with the following table in relation to its position relative to the dwelling for solar access.

POS Location	Minimum Amount	Minimum Dimension
North	35m^2	5m
East	50m^2	6m
South	60m^2	6m
West	45m^2	6m

- Must be directly accessible from a living area and may partially or wholly include a deck, alfresco area, balcony or similar area located at ground level.
- The private open space must be fenced. Details of the height and style of fencing must accompany the development application.
- Area calculation does not contain intrusions such as drying areas, electricity substations, water tanks, onsite stormwater detention systems, hot water systems and retaining walls.

Storage

Must provide a minimum of 5m^3 of dedicated storage area per dwelling in addition to the standard internal storage provision (e.g. wardrobes, kitchen cupboards, pantry, linen press

Density

Zone	Min. Site Area per Dwelling
R1	300m^2
RU5	300m^2 sewered

Facilities

- Letterboxes to be provided at the front property boundary in accordance with Australia Post requirements. Strata developments require an additional letter box for the Owners Corporation.
- Clothes drying facilities required free of access ways. Clothes lines and hoists shall be located at the rear of development and adequately screened from adjoining roads.

Future Subdivision

- Dual occupancy development must consider potential future subdivision and locate buildings with adequate access to and clearance from utilities.

Water Tanks

- Located behind the street setback of any dwelling (unless placed below ground).
- Suitably screened where visible from a public place or street.
- The location of tanks should be shown on the plan prepared to accompany the DA, including details of any physical screen.

Dual Occupancy (attached)

- Where the land use of "Dual Occupancy (attached)" is relied upon for permissibility in Rural zones, the general criteria (such as landscaping, visitor parking, etc) will not apply.
- Details of the method of effluent disposal and the capacity and suitability of any existing onsite sewerage management system (OSSM) being relied upon shall be provided.
- Location of area suitable for parking of vehicles associated with the dual occupancy shall be indicated.
- The two dwellings are to be physically attached. A maximum separation of 6 metres containing a structure such as a carport of ancillary building is permitted.

Water Sensitive Essentials (WSE)* ***Compliance is achieved by meeting a minimum of two out of five of the following** **NB:** *Consult with Council to discuss water saving rebates that are available for water sensitive essential requirements.*	• Details must be provided demonstrating that a minimum of 2 out of the following 5 WSE's has been achieved: ○ **Water efficient appliances and fittings -** Water Efficiency Labelling & Standards (WELS)rating with a minimum of 4 stars. ○ **Rainwater tank(s)** with a volume of not less than 10,000L (5,000L per unit). An appropriate mechanism is to be provided for automatically switching to the town water supply (if available) when the volume of water in the rainwater tank(s) is low ○ **Landscaped stormwater retention area (Rain garden)** ○ minimum of 5m2 of retention area ○ must be designed by a suitably qualified person. ○ **Grey water diversion device** - a gravity diversion device with a hand-activated valve, switch or tap that is fitted to the outlet of the waste pipe of the laundry tub. The device can be switched by the householder to divert greywater from the laundry tub by gravity directly to the diversion line and the dedicated land application system (e.g. lawn or garden beds) instead of the sewer. ○ The dedicated land application system must be not less than 10 m2. ○ Greywater must not be stored. ○ Gravity diversion devices must not be installed below the "S" bend on any plumbing fitting and must be installed by a licensed plumber. ○ A Council approved on-site wastewater disposal system will also be acceptable ○ **Grey water treatment device** - this treats greywater for re-use on a property, such as toilet flushing, washing machine and surface irrigation of gardens and lawn. It is a form of on-site wastewater treatment. ○ the owner of the premises must obtain approval from Council for installation and operation under section 68 of the Local Government Act 1993 and Part 2, Division 4 Local Government (General) Regulation 2005. ○ A council must not approve the installation unless they have been accredited by the NSW Department of Health. ○ must be installed by a licensed plumber.
Plumbing for recycled water	• When a new dwelling is being constructed the inclusion of additional underfloor drainage pipes to enable an external greywater reuse device to be connected.
WSE Exemptions	• Water Sensitive Design (WSE) controls (including plumping for recycled water) do not apply to General Housing, Ancillary Structure development or Dual Occupancy where reticulated connection to water and sewer is not available or is not required.
Bushfire Prone Land	• The plans prepared to accompany a DA located in a bushfire prone area, being land that is identified on a map certified by the Rural Fire Service, must illustrate the required Asset Protection Zone (APZ). • DAs for development located in a bushfire prone area must be accompanied by either a Bushfire Attack Level Self-Assessment (BAL) or a Bushfire Planning and Design Report (BPAD). *NB: Where the DA is accompanied by a BPAD report, Council's bushfire assessment fee will not be applicable.*
Site Levels and Retaining Walls	• Site and/or elevation plans must include existing and finished ground levels at Australian Height Datum (AHD). • Proposals for retaining walls must include top and bottom of wall height details (in AHD) and retaining wall locations and full extent must be shown on plans and associated elevations and cross sections. *NB: Retaining walls located on property boundaries must not result in adverse impacts on adjoining properties (e.g soil stabilisation, overlooking, drainage).*
Geology	• The design process must give consideration to the potential impact of erosive soils, saline soils, soils of low wet strength, highly reactive soils and steep slopes and document how these constraints are addressed.
Slope	• Development on slopes >15% requires detailed geotechnical investigation (including slope stability analysis) and design to demonstrate good hillside development practice. Engineer's certification to accompany development application. • Details of sub-surface drainage is to be provided with no discharge to slopes. • Development on slopes >20% is not permitted.

Environmental effects	• The application documentation shall identify any potential environmental impacts of the development and demonstrate how they will be mitigated. These impacts may relate to: o Traffic o Flood liability o Slope o Construction impacts o Solid and Liquid Waste o Air quality (odour and pollution) o Noise emissions o Water quality o Sustainability
Soil and Erosion Control	• Runoff shall be managed to prevent any land degradation including offsite sedimentation. • Reference shall be made to the NSW Governments *Managing urban stormwater: soils and construction, Volume 1* (available from Landcom), commonly referred to as "The Blue Book". • Cut and fill will be minimised and the site stabilised during and after construction. • Arrangements in place to prompt revegetation of earthworks to minimise erosion.
Construction Waste Management	• All DAs for construction of dual occupancy must be accompanied by a Resource and Waste Management Plan (RWMP). • The RWMP must consider reuse or disposal of existing site waste materials (including demolition materials, earthworks) and construction waste materials.
Ongoing Waste Storage	• Provide DA plans/drawings showing: a) storage space and layout for the required number of bins (outside) b) waste collection point(s) for the site; c) path of access for users and collection vehicles; and d) layout and dimensions required to accommodate collection vehicles when on-site collection is required. • Consideration of screening or discreet storage locations to minimise visual, odour and acoustic impacts on neighbouring properties and the public domain. • Locate and design the waste storage facilities to visually and physically complement the design of the development. • Avoid locating waste storage facilities between the front alignment of a building and the street.
Noise	• Where relevant, applications are to contain information about likely noise generation and the method of mitigation.
Urban Heat Island Effect	• Please refer Urban Heat Island Effect controls in *Step 3: General Development Specifications - other Types of Development Controls*

Tamworth Regional Development Control Plan 2010

STEP 2: TYPE OF DEVELOPMENT

Residential (Multi-Dwelling) Development Controls

These are the 'deemed to satisfy' controls relating to residential (multi-dwelling) developments. Please note, additional site-specific requirements may also apply to your development, check STEP 4.

Building Setbacks

Zone	Single Storey		≥ 2 storey	
	Front	Side / rear	Front	Side / rear
R1	4.5m, 5.5m to garage	1m (675mm#)	4.5m, 5.5m to garage	2m (1125mm#)
RU5	6m		6m	
E1, E2, E3 and MU1	BCA	BCA	BCA	BCA

roof eaves, sunhoods, gutters, downpipes, chimney flues, light fittings, electricity and gas metres, and aerials.

- No concession to secondary frontage.

Density

Zone	Min. Site Area per Dwelling
R1	300m^2
RU5	300m^2 sewered

Design

- For corner lots, dwellings be designed to present to and have vehicle access from alternate frontages, unless one street is a collector road or greater, where access shall be obtained from the lesser street classification.
- Garage/s shall not exceed 60% of the street elevation.

Utilities

- Servicing strategy required to demonstrate the availability and feasibility of providing water, sewer and stormwater services appropriate for the scale of development.
- Buildings and structures are to be located clear of utility infrastructure.
- For sewer mains, structures are to be located a minimum of one metre or the equivalent invert depth from the centreline of the main. See Council Policy "Excavating/Filling or Building Adjacent to or Over Existing Sewer Mains" for further detail.
- Multiple dwellings not permitted on unsewered land.
- Stormwater arrangements shall be designed to a gravity system.
- Details of any stormwater detention systems shall be provided.
- Individual detention systems are acceptable for each unit up to 5 units (maximum).
- Detention tanks must be a separate tank to that required by BASIX or bushfire requirements.
- Detention basins or underground detention must be provided in a development with more than 5 units.
- Refer to Council's current version of the Engineering Design Minimum Standards.
- The developer is responsible to consult with Essential Energy, natural gas and a telecommunications carrier regarding the provision of services.

Building Height

Measured from natural ground level to:

- Topmost ceiling: maximum 7.2m
- Top of the ridge: maximum 10m

Site Coverage

- Residential zones: Maximum site coverage of 75% (includes all hardstand areas).
- Commercial zones: Refer to LEP.

Privacy

- Multi-storey development must locate and size windows to habitable rooms to avoid facing onto windows, balconies or courtyards of adjoining dwellings.

Parking, Traffic and Access

- Refer to *Step 3: General Development Specifications – Parking, Traffic and Access Controls*

Solar Access and Energy Efficiency

- Shadow diagram are required for developments of ≥ 2 storeys and need to demonstrate habitable rooms of adjoining dwellings and major part of their landscaped open space to retain a minimum of 4hrs sunlight between 9am-3pm on 21st June (winter solstice).
- In this regard, "habitable" refers to rooms capable of occupation and does not include laundry, bathroom or garages.
- Development must be designed to maximise solar access, solar use and energy efficiency for future building users, as well as increased energy and thermal performance in accordance with the latest versions of Sustainable Buildings SEPP, BASIX and Section J of National Construction Code.

Construction Waste Management

- All DAs for construction of multi-dwelling must be accompanied by a Resource and Waste Management Plan (RWMP).
- The RWMP must consider reuse or disposal of existing site waste materials (including demolition materials, earthworks) and construction waste materials.

Ongoing Waste Storage

- Provide suitable and sufficient waste storage facilities, this includes DA plans/drawings showing:
  a) storage space and layout sufficient for number of bins per occupancy
  b) storage room for bulky waste:
  c) waste collection point(s) for the site;
  d) path of access for users and collection vehicles; and
  e) layout and dimensions required to accommodate collection vehicles when on-site collection is required.
- Consideration of screening or discreet storage locations to minimise visual, odour and acoustic impacts on neighbouring properties and the public domain.
- Locate and design the waste storage facilities to visually and physically complement the design of the development.
- Avoid locating waste storage facilities between the front alignment of a building and the street.
- Ensure the waste storage facilities are easily accessible for all users and have step free and unobstructed access to the collection point(s).
- Where the development has less than 6 dwellings fronting the kerb and proposes kerbside collection, the nominated collection point must be of sufficient size to accommodate all allocated waste and recycle bins and must be within the development sites frontage.
- Kerbside collection on arterial roads and roads with high vehicle and pedestrian traffic must be deemed safe by Council.
- For development with 6 or more dwellings, a private waste collection service may be required where kerbside collection is not deemed safe by Council or may impact on the existing streetscape.

Private Open Space

- Private open space (POS) must be provided for units on ground level at the following rate in relation to its orientation for solar access.
- The private open space on ground level must be fenced. Details of the height and style of fencing must accompany the development application.

POS Location	Minimum Amount	Minimum Dimension
North	35m^2	4m
East	50m^2	4m
South	60m^2	4m
West	45m^2	4m

- Must be directly accessible from a living area and may partially or wholly include a deck, alfresco area, balcony or similar area located at ground level.
- Area calculation does not contain intrusions such as drying areas, electricity substation, water tanks, onsite stormwater detention systems, hot water systems, retaining walls.
- If located on street side of dwelling, details of fencing must be supplied.

Balconies for Private Open Space

- For units located on the upper storey of a building in a development not captured by the requirements of State Environmental Planning Policy (Housing) 2021, the following balcony size is required:

Number of bedrooms in each dwelling	Minimum Amount	Minimum Dimension
1	$4m^2$	2m
2	$10m^2$	2m
3 or more	$16m^2$	4m

- Must be located adjacent to a living room, dining room or kitchen to extend the living space.
- Are calculation does not contain intrusions such as drying areas, hot water systems or air conditioners.
- The minimum balcony depth to be counted as contributing to the balcony area is 1m.

Vegetation / Landscaping

- A Landscape plan must be provided.
- Landscaping shall be provided on the basis of 100m2 per dwelling for the development site.
- Location and grouping of plant types shall be multi-functional providing privacy, security, shading and recreation functions.
- Landscaping shall comprise only drought and frost tolerant species
- Development design shall accommodate the retention of any mature trees and vegetation.
- Where mature trees and vegetation are removed, replacement landscaping should aim to incorporate local indigenous species from 'Australian Plants Suitable for Tamworth Regional Council Areas" list.
- Minimum width of 2m required for all landscaped areas.

Outdoor Lighting

- Must provide certification of compliance with *AS4282 Control of Obtrusive Effects of Outdoor Lighting* if >10 dwellings proposed.

Adaptability

- Development of ≥5 units must provide 1 in 5 units capable of conversion to adaptable housing in accordance with *AS4299*, Class C level.

Facilities

- Letterboxes provided at the front property boundary in accordance with Australia Post requirements. Strata developments require an additional letter box for the Body Corporate.
- Clothes drying facilities required free of access ways. Clothes lines and hoists shall be located at the rear of development and adequately screened from adjoining roads.

Storage

- Must provide a minimum of $5m^3$ of dedicated storage area per dwelling in addition to the standard internal storage provision (e.g. wardrobes, kitchen cupboards, pantry, linen press).

Water Tanks

- Water storage tanks are to be located below ground or behind the buildings in the development.

Site Levels and Retaining Walls

- Site and/or elevation plans must include existing and finished ground levels at Australian Height Datum (AHD).
- Proposals for retaining walls must include top and bottom of wall height details (in AHD) and retaining wall locations and full extent must be shown on plans and associated elevations and cross sections.

NB: Retaining walls located on property boundaries must not result in adverse impacts on adjoining properties (e.g soil stabilisation, overlooking, drainage).

Geology

- The design process must give consideration to the potential impact of erosive soils, saline soils, soils of low wet strength, highly reactive soils and steep slopes and document how these constraints are addressed.

Slope

- Development on slopes >15% requires detailed geotechnical investigation (including slope stability analysis) and design to demonstrate good hillside development practice. Engineer's certification to accompany development application.
- Details of sub-surface drainage is to be provided with no discharge to slopes.
- Development on slopes >20% is not permitted.

Bushfire Prone Land	• The plans prepared to accompany a DA located in a bushfire prone area, being land that is identified on a map certified by the Rural Fire Service, must illustrate the required Asset Protection Zone (APZ). • DAs for development located in a bushfire prone area must be accompanied by either a Bushfire Attack Level Self-Assessment (BAL) or a Bushfire Planning and Design Report (BPAD). • Where the DA is accompanied by a BPAD report, Council's bushfire assessment fee will not be applicable.
Environmental effects	• The application documentation shall identify any potential environmental impacts of the development and demonstrate how they will be mitigated. These impacts may relate to: o Traffic o Flood liability o Slope o Construction impacts o Solid and Liquid Waste o Air quality (odour and pollution) o Noise emissions o Water quality o Sustainability
Soil and Erosion Control	• Runoff shall be managed to prevent any land degradation including offsite sedimentation. • Reference shall be made to the NSW Governments *Managing urban stormwater: soils and construction, Volume 1* (available from Landcom), commonly referred to as "The Blue Book". • Cut and fill will be minimised and the site stabilised during and after construction. • Arrangements in place to prompt revegetation of earthworks to minimise erosion.
Noise	• Where relevant, applications are to contain information about likely noise generation and the method of mitigation.
Urban Heat Island Effect	• Please refer Urban Heat Island Effect controls in *Step 3: General Development Specifications - other Types of Development Controls*

Tamworth Regional Development Control Plan 2010

STEP 2: TYPE OF DEVELOPMENT

Industrial Development Controls

These are the 'deemed to satisfy' controls relating to industrial developments. Please note, additional site-specific requirements may also apply to your development, check STEP 4.

Building Setbacks	• Street setback must be a minimum of 5m. • No concession for secondary frontage. • Side and rear setbacks to meet BCA requirements.
Design	• Building elevations to the street frontage or where visible from a public road, reserve, railway or adjoining residential area are to incorporate variations in façade treatments, roof lines and building materials. • Low scale building elements such as display areas, offices, staff amenities are to be located at the front of premises and constructed in brick or finished concrete or light weight cladding. • Roofing materials should be non-reflective where roof pitch is greater than 17 degrees or visible from a public road.
Utilities and Services	• Servicing strategy required to demonstrate the availability and feasibility of providing water, sewer and stormwater services appropriate for the scale and nature of development. • Applications must demonstrate adequate provision for storage and handling of solid wastes. • Liquid Trade Waste Application and facilities are required where liquid wastes (excluding domestic waste from a hand wash basin, shower, bath or toilet) are to be discharged to Council's sewerage system. • Detention of stormwater may be required. • Onsite stormwater capture and reuse shall be provided for maintenance of landscaping. Storage tanks shall be appropriately located and screened. **NB** – reuse facilities shall not form part of stormwater calculations. • Buildings and structures are to be located clear of utility infrastructure. • For sewer mains, structures are to be located a minimum of one metre plus the equivalent invert depth from the centreline of the main. See Council Policy "Excavating/Filling or Building Adjacent to or Over Existing Sewer Mains" for further detail. • The developer is responsible to consult with Essential Energy, natural gas and a telecommunications carrier regarding the provision of services.
Landscaping	• A Landscape plan must be provided. • Landscaping is required: ○ in the front 5m of street setback; ○ side and rear setbacks where visible from public place or adjoining residential area; and ○ areas adjacent to building entrances and customer access points. • A reduced landscaped setback, to a minimum of 3 metres, is permitted where car parking is provided immediately behind the landscaped area. • Landscaping or shade structures shall be provided in outdoor car parking areas where >10 spaces are required, to provide shading and soften the visual impact of large hard surfaces. • Landscaping shall comprise only low maintenance, drought and frost tolerant species. • Development design shall accommodate the retention of any mature trees and vegetation. • Where mature trees and vegetation are removed, replacement landscaping should aim to incorporate local indigenous species from 'Australian Plants Suitable for Tamworth Regional Council Areas" list. • Location and grouping of plant types shall be multi-functional providing privacy, security, shading and recreation functions.
Fencing	• Open work or storage areas visible from a public place or street must be fenced by masonry materials or pre-coloured metal cladding of minimum 2m height. Fencing to be located behind the building setback. • Security fencing must be also located behind the building setback area except when of a decorative nature to be integrated in the landscaped area.
Parking, Traffic and Access	• Refer to *Step 3: General Development Specifications for Parking, Traffic and Access Controls*

Outdoor Signage	• Single occupant industrial site: ○ one free standing advertisement within the 5m landscaped setback; and ○ one advertisement integrated within the façade of the building, but no higher than the building roof line. • Multiple unit industrial site: ○ one index board near site entrance or within the 5m landscaped setback; and ○ one advertisement integrated within the façade of each unit, but no higher than the building roof line. • Signage must comply with *State Environmental Planning Policy (Industry and Employment) 2021* Chapter 3 and Schedule 5 Assessment Criteria • Refer to *Step 3: General Development Specifications – Other Types of Development Controls for further Outdoor Advertising/Signage controls.*
Outdoor lighting	• Must comply with *AS4282 Control of Obtrusive Effects of Outdoor Lighting.*
Noise	• Windows, doors and other wall openings shall be arranged to minimise noise impacts on residences where proposed within 400m of a residential zone. • External plant (generators, air conditioning plant etc.) shall be enclosed to minimise noise nuisance where adjoining residential area.
Fire Safety	• For development applications involving a change of use for an existing building where no works are proposed. Consideration must be given to whether the fire protection and structural capacity of the building will be appropriate to the building's proposed use.
Environmental effects	• The application documentation shall identify any potential environmental impacts of the development and demonstrate how they will be mitigated. These impacts may relate to: ○ Traffic ○ Flood liability ○ Slope ○ Construction impacts ○ Solid and Liquid Waste ○ Air quality (odour and pollution) ○ Noise emissions ○ Water quality ○ Sustainability
Soil and Erosion Control	• Runoff shall be managed to prevent any land degradation including offsite sedimentation. • Reference shall be made to the NSW Governments *Managing urban stormwater: soils and construction, Volume 1* (available from Landcom), commonly referred to as "The Blue Book". • Cut and fill will be minimised and the site stabilised during and after construction. • Arrangements in place to prompt revegetation of earthworks to minimise erosion.
Site Levels and Retaining Walls	• Site and/or elevation plans must include existing and finished ground levels at Australian Height Datum (AHD). • Proposals for retaining walls must include top and bottom of wall height details (in AHD) and retaining wall locations and full extent must be shown on plans and associated elevations and cross sections. *NB: Retaining walls located on property boundaries must not result in adverse impacts on adjoining properties (e.g soil stabilisation, overlooking, drainage).*
Geology	• The design process must give consideration to the potential impact of erosive soils, saline soils, soils of low wet strength, highly reactive soils and steep slopes and document how these constraints are addressed.

Construction and Operational Waste Management	• All DAs for construction of industrial development must be accompanied by a Resource and Waste Management Plan (RWMP). • The RWMP must consider reuse or disposal of existing site waste materials (including demolition materials, earthworks) and construction waste materials. • The RWMP must consider operational waste management with consideration of the ongoing waste storage controls
Ongoing Waste Storage	• Provide suitable and sufficient waste storage facilities, this includes DA plans/drawings showing: a) storage space and layout for bins and skips b) waste collection point(s) for the site; c) path of access for users and collection vehicles; and d) layout and dimensions required to accommodate collection vehicles when on-site collection is required • For multi-use and industrial units, areas for waste storage and recycling must be provided in each industrial unit – with adequate space provided for each on-site separation and storage of recyclables and garbage. • Ensure the waste storage facilities are easily accessible for all users and have step free and unobstructed access to the collection point(s). • Bin enclosures/rooms must be ventilated, fire protected, drained to the sewerage system and have lighting and water supply.
Noise	• Where relevant, applications are to contain information about likely noise generation and the method of mitigation.

STEP 2: TYPE OF DEVELOPMENT

Subdivision Controls

These are the guidelines relating to subdivision.

Please note, additional site-specific requirements may also apply to your development, check STEP 4.

Plans of Subdivision

- A registered surveyor must prepare a suitable plan showing the proposed subdivision for submission with a Development Application for Strata and Community Title subdivisions.

Servicing Strategy & Preliminary Engineering Designs

- All development applications shall provide a servicing strategy (water, sewer, stormwater, telecommunications and electricity) and preliminary engineering designs where an extension to infrastructure is required to demonstrate that it is feasible for the subdivision to be serviced in accordance with the requirements of Council's current version of the Engineering Design Minimum Standards
- The strategy shall include evidence that the developer has consulted with the Water Supply Authority in relation to the availability and capacity of the existing water and sewer networks consistent with the likely future use of the land.
- The strategy shall include evidence that the developer has consulted with TRC Regional Services to obtain available information in relation to stormwater catchments, capacities and preferred solutions.
- For new estates this shall include nomination of a maximum number of equivalent tenements that will be serviced by the infrastructure.
- Where the verge is proposed to be less than the minimum width specified by Council's current version of the Engineering Design Minimum Standards, a drawing of the road reserve demonstrating that all services and utilities will fit within the alternative width must be provided.

Water

- The Servicing Strategy including preliminary engineering designs shall identify the method of providing water to the proposed lots in accordance with the Council's current version of the Engineering Design Minimum Standards.
- Reticulated water (public utility supply) will not be available to development in areas outside of those areas modelled in the latest water servicing strategy (e.g. Development Services Plan – DSP)
- Reticulated water (public utility supply) is to be supplied to subdivisions where the Lot Size Map specifies a minimum lot size of up to an including 2 hectares unless the Table below provides exclusion to this requirement.
- The following table relates to land shown on the Lot Size Map with a minimum lot size of 2 hectares:

Location	Public Utility Water Supply Required?	Location	Public Utility Water Supply Required?
Manilla	No	Impala Estate	No
Nundle	Yes	Bylong Road	Yes
Hanging Rock	No	Piallamore	Yes*
Moonbi/ North Kootingal	Yes, to serviceable areas.	Dungowan Village	No
Tintinhull	Yes**	Somerton Village	No
Kootingal	Yes	Attunga Village	Yes
Moore Creek/Hills Plains	Yes	Woolbrook Village	No
Westdale	Yes	Daruka	Yes**
Calala	Yes		

* Where the land is within the locality that extends from Nemingha to Piallamore, one (1) lot may be excised from the land as it existed at 11 October 2011 without the requirement for public utility water supply. A Restriction as to User under the Conveyancing Act shall be applied to the title of both lots created which specifies that no further subdivision will be permitted without the provision of public utility water supply to the land.

** Where land is within the Tintinhull and Daruka locality, proposed lots equal to or greater than 5ha in size do not require reticulated water. On-site water storage requirements will be applied when future development occurs on lots. A Restriction as to User under the Conveyancing Act shall be applied to the title of any new lot created that is 5 ha or less, which specifies that no further subdivision will be permitted without the provision of public utility water supply to the land.

	• On-site water storage requirements will be applied when future development occurs on lots where the Lot Size Map specifies a minimum area of 9.9 hectares or greater.
Water Supply - Minimum static head	• The servicing strategy should give consideration to recommended minimum static head required at the meter location for each allotment, when service reservoir is 1/3 depleted, in accordance with the following:

Location	Recommended Minimum Static Head (metres)
Attunga	20
Barraba	20
Bendemeer	25
Manilla	20
Moonbi/ Kootingal	25
Nundle	28
Tamworth	28

Sewer	• The servicing strategy including preliminary engineering designs shall identify the method of providing sewer to the proposed lots in accordance with the Council's current version of the Engineering Design Minimum Standards. • Residential lots are to be serviced by gravity sewer. Detail of any lot filling required to achieve minimum grade shall be provided. • The area within proposed lots shall be capable of being serviced by gravity sewer (unless located within an estate where an alternate sewer system is established). • Reticulated sewer is required where the Lot Size Map specifies a minimum lot size of up to and including 4000m2 (excluding Kingswood Estate, which is serviced by on-site sewage management facilities). • On-site sewer management facilities will be required when developing lots where the Lot Size Map specifies a minimum area of greater than 4000m^2.
Stormwater Drainage	• The servicing strategy, including preliminary engineering designs shall include consideration of flows up to the 1 in 100 year ARI for existing natural flow, existing developed flow and post developed flow. • Minor flows are to be designed to a 1 in 5 year ARI for residential and 1 in 10 year ARI for commercial/industrial subdivisions. • Location of major flows are to be defined to a designated overland flow path up to a 1 in 100 year ARI. Where the path traverses private property, it shall be dedicated as a drainage reserve UNLESS a natural drainage line (as indicated by blue line on the topographic map). • Detention basins are not a preferred solution. • Where drainage is required to the rear of the lot, inter-allotment drainage shall be located in easements in favour of the upstream properties benefitted by the easement.
Telecommunicat-ions	• Telecommunications are to be for each lot in a subdivision in accordance with the requirements of the provider. • In the circumstances of a boundary adjustment, telecommunications are to be provided for any allotments without an existing dwelling.
Electricity	• The subdivision is to be serviced by underground electricity where the Lot Size Map specifies a minimum lot size of up to and including 2 hectares. • For subdivision of land where the Lot Size map specifies a minimum lot size of greater than 2 hectares and less than 400 hectares, electricity supply is required and may be overhead. • For subdivision of land where the Lot Size Map specifies a minimum lot size of 400 hectares or greater, no connection to electricity is specified.
Lot size	• "Lot Size Map" and Clause 4.1 of Tamworth Regional LEP 2010 prescribe the minimum lot sizes for all new allotments. • Minimum lot sizes do not apply to Strata and Community Title Subdivisions. • Residential lots must be able to accommodate a rectangle suitable for building purposes measuring 10m x 15m behind the street setback (note there is no concession to a second street frontage for setbacks). • Easements are not to encumber more than 10% of the total area of the lot where the Lot Size Map specifies a minimum lot size of up to and including 2000m^2.

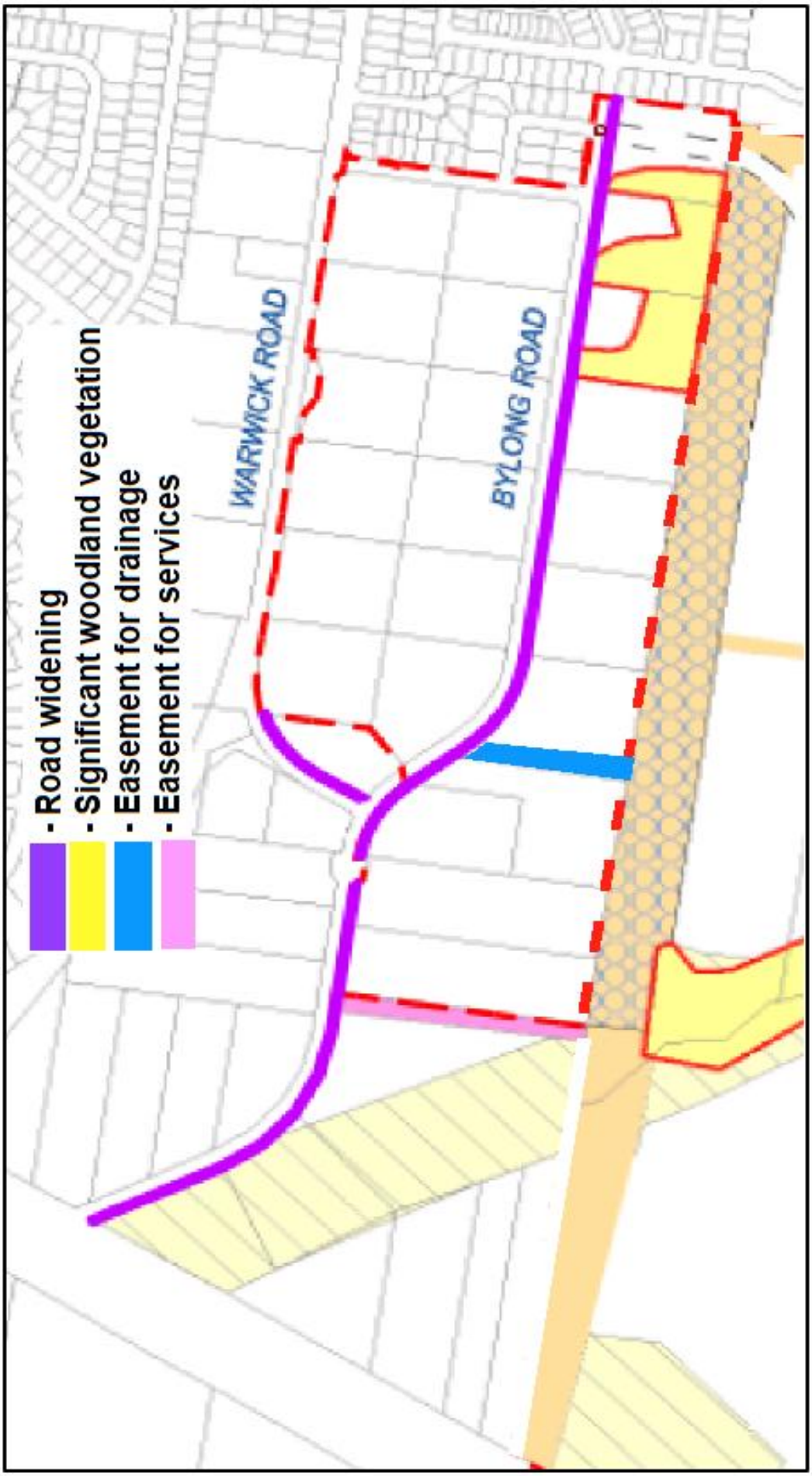
Battle-axe shaped lots	• Minimum area for battle-axe shaped lot is 800m² excluding the access corridor. This control does not apply to dual occupancy or multi dwelling housing developments. • In Zones R1, R2, R5 and RU5 access handles shall be of a minimum width of 4.5 metres, of which 3 metres is to be constructed and sealed with reinforced concrete, asphaltic concrete or interlocking pavers at the time of subdivision. • Where subdivision comprises part of a proposal for a dual occupancy or multi dwelling housing, the access handles shall be of a minimum width of 4.5 metres, of which 3 metres is to be constructed and sealed with reinforced concrete, asphaltic concrete or interlocking pavers. The works shall be completed prior to issue of an Occupation Certificate or a Subdivision Certificate, which-ever occurs first. • In all other zones the standard for construction of access handles shall be a minimum width of 4.5 metres, constructed with a dust suppressing base course of adequate depth to suit design traffic at the time of subdivision. • The topography of the site may require installation of kerbing to manage overland stormwater. • The suitability of battle-axe allotments will be determined having regard to the: - area of the allotment; - potential for conflict with adjoining land uses, - dust and noise impacts from the location of the driveway; and - availability of utilities. • No more than two Torrens title lots shall share a battle-axe handle access. This control does not apply to multi dwelling housing developments. • Industrial lots shall have a minimum street frontage and square width of 24m and an area of 1,000m2. (NB – this size is specified to facilitate subdivision for lease purposes and does not generally reflect a suitable configuration for industrial lots, which should be sized to accommodate development, storage areas and vehicle delivery and manoeuvring requirements). • Industrial subdivision cannot be serviced by cul-de-sac road formation.
Road Network Design	• A Traffic Impact Assessment is to include an assessment of the proposed subdivision and its impacts on the adjacent existing road network. • The road hierarchy shall be defined. • Road network design should include consideration of vehicular, pedestrian and cyclist safety. This should include the restricted/controlled use of four-way intersections, the standards for staggered-T intersections, the speed environment created by the road network and the risk to safety created by the design. • Residential subdivision must incorporate appropriate facilities and opportunities for pedestrian and bicycle movement. • Provision must be made for footpaths to connect to existing footpaths. • The alignment, width and design standard for all roads shall be in accordance with the expected traffic volume, type of traffic and desired speed in accordance with Council's current version of the Engineering Design Minimum Standards. A summary table of requirements is provided at the end of this section. • Kerb and gutter is required for subdivision where the Lot Size Map specifies a minimum lot size of up to and including 2000m2. • The road pavement requirement will be determined based on vehicle movements (both current and future) and with consideration to the existing development and character of the locality. Generally, sealed pavement will be required where the Lot Size Map specifies a minimum lot size of up to and including 5 hectares. Note: environmental circumstances such as dust nuisance and drainage may require sealed pavement where the Lot Size Map specifies a minimum lot size of greater than 5 hectares. • Where a proposed allotment adjoins both an existing road and a new road within a subdivision, the existing road must be upgraded to the standard nominated by Refer to Council's current version of the Engineering Design Minimum Standards. • A road within a residential subdivision servicing 15 lots or more must include a constructed pedestrian footpath. • Subdivision layouts shall make provision for road connection to adjoining undeveloped land. • Subdivision design shall ensure that individual allotments are within 400 metres walking distance of a collector road. • Roads to be designed having regard to both the topography of the site and the requirements of stormwater overland flow paths.
Staged Subdivision	• Where subdivision is proposed to be carried out in a number of stages, these shall be identified, and information supplied as to the manner in which staging of all infrastructure will occur (roads, water, sewer and stormwater drainage).

Future Development	• The submitted plans must nominate lots within a proposed subdivision that are intended for future dual occupancy, multi dwelling housing developments and/or further subdivision.
Cul-de-sac	• Radius of a cul-de-sac bowl in a residential subdivision shall not be less than 10 metres. • Design must accommodate stormwater drainage overland flow paths. • Alternate cul-de-sac configuration is not permitted, e.g. “hammer-head” or “Y” shapes. • Temporary cul-de-sac heads should be within the road reserve. They are not permitted to be located within private property. • Temporary cul-de-sac heads on Collector Roads (or major roads through a development) must cater for 12.5m heavy rigid vehicles such as school buses and garbage trucks.
Site Levels and Retaining Walls	• Site and/or elevation plans must include existing and finished ground levels at Australian Height Datum (AHD). • Proposals for retaining walls must include top and bottom of wall height details (in AHD) and retaining wall locations and full extent must be shown on plans and associated elevations and cross sections. *NB: Retaining walls located on property boundaries must not result in adverse impacts on adjoining properties (e.g soil stabilisation, overlooking, drainage).*
Geology	• The design process must give consideration to the potential impact of erosive soils, saline soils, soils of low wet strength, highly reactive soils and steep slopes and document how these constraints are addressed.
Landscaping Plan	• Subdivision involving new road construction must provide a landscape plan and include street tree planting of suitable species and the design shall accommodate the retention of any mature trees and vegetation. • Dual use drainage reserves must be designed to enhance recreational opportunities and visual amenity without compromising drainage function. • Landscaping should aim to contribute to and maintain biodiversity corridors, to increase species diversity, and to reduce the impacts of pollution and climate change. • Landscaping should aim to incorporate local indigenous species from ‘Australian Plants Suitable for Tamworth Regional Council Areas” list. • Street tree species shall be in accordance with Council’s ‘Urban Street Tree Management Plan’.
Environmental Values Locality Map	• Where the subject land is greater than 2 hectares. The development application shall describe and map the existing environmental values of the site (e.g. vegetation, fauna, water) then outline how the subdivision addresses the hierarchy of environmental impact mitigation: o avoidance; o minimisation/mitigation; o restore; then o offset. NB: Where the Biodiversity Conservation Act 2016 and Biodiversity Regulation 2017 applies to a development. Council encourages the inclusion of the Environmental Values Map but not to the extent where there is an inconsistency.
Biodiversity Protection	• A development application must be supported by an appropriate level of analysis consistent with Council policy and other legislative requirements (such as the Biodiversity Conservation Act 2016 and Biodiversity Regulation 2017). By avoiding either directly or indirectly impacting threatened species, populations and threatened ecological communities. Considerations must be given to the following: o Native vegetation and threatened species habitats are to be retained in perpetuity on sites identified with high ecological value that ensures their ongoing viability and sustainability; o Development should contribute to the maintenance of local habitats and connectivity between bushland remnants. To achieve this, corridors should be of a scale commensurate with the habitats they connect; o Bushfire asset protection zones must not be in identified areas of key habitat and corridors and designed in accordance with the Planning for Bushfire Protection 2019; o Development should ensure that off-site impacts into adjoining bushland are minimised, such as weed invasion, increased runoff and stormwater pollutants; o continuous canopy and understorey planting along one boundary; or o retention and revegetation of remnant bushland elements.

	NB: The required treatment will depend upon the scale of the bushland remnants linked by the land or the quality of the remnants to be retained on site.
Site Access	• Public road access is required to all lots. • A right of carriageway, Crown Road, Forestry Road or Travelling Stock Route (TSR) are not acceptable as the primary access to an allotment and will only be allowed in extenuating circumstances. • An entry gate must be installed at the time of subdivision to facilitate access to an allotment in Zones RU1, RU4, RU6 and E3. • No direct access to arterial or sub-arterial roads shall be permitted where alternatives are available.
Lot Orientation	• Where residential subdivision involves a road running north-south, allotments are to be designed to provide solar access for future development. • Orientation shall minimise potential overshadowing impacts of existing and future buildings.
Open Space	• Open space provision within residential subdivision will be determined compliance with the provisions of the Section 94 Plan or Site Specific Design Criteria. • Where required, subdivision design must provide open space achieving the following criteria: o Minimum area of 0.5ha; o Buffered from main roads and identified hazards for improved safety; o Safely accessible by pedestrian and cycleway links; o Connectivity maximised between open space; o Walkable access to highest number of the population; o High passive surveillance opportunities; o Minimum slope; and o Provide complimentary uses of open space (drainage, conservation, cycleways etc) that ensures ongoing usability.
Construction Waste Management	• All DAs for construction of a subdivision development must be accompanied by a Resource and Waste Management Plan (RWMP). • The RWMP must consider reuse or disposal of existing site waste materials (including demolition materials, earthworks) and construction waste materials.
Garbage collection	• Road design must accommodate the legal movement of garbage collection vehicles. • Allotments are to allow for placement and servicing of garbage receptacles for collection within the alignment of that lot. • Temporary turning facilities must be provided for incomplete roads (as a result of staging of a subdivision). The design must incorporate adequate all weather access turning area for garbage trucks as agreed by the contractor, and a safe turning distance in accordance with Council's Engineering Design Minimum Standards to prevent unnecessary large and small vehicle interaction in the vicinity of private lots and driveways.
Community Title Subdivision	• Road design must accommodate the legal access and onsite movement of garbage collection vehicles. • Community title subdivision of 5 or more lots must include community facilities that are shared between the residents of the development. It is not appropriate that this form of development be used as an alternative to strata title for subdivisions with 5 or more lots where the only shared component is a driveway. Community facilities may include a swimming pool, tennis court, vegetable gardens, barbeque area or similar.
Contamination	• All subdivision development applications are to include consideration of potential land contamination.
Road Widths	• Road widths are specified in the Tamworth Regional Council's current version of the Engineering Design Minimum Standards.

Bylong Road (Refer to Figure 1)	• Subdivision plans are to provide adequate space for future road upgrade works including: o Approximately 5-8 metre widening of sections of Warwick Road and Bylong Road. o Intersection upgrades along Warwick Road. o Intersection upgrades along Bylong Road. • All lots within the Arcadia and Bylong Road Precinct are to be serviced by reticulated water in accordance with the Development Servicing Plan. • All lots within the Arcadia and Bylong Road Precinct are to be serviced by connection to reticulated sewer in accordance with the Development Servicing Plan. • Subdivision plans need to provide infrastructure that makes provision for future downstream development in accordance with the adopted Stormwater Management Strategy.
Environmental effects	• The application documentation shall identify any potential environmental impacts of the development and demonstrate how they will be mitigated. These impacts may relate to: o Traffic o Flood liability o Slope o Construction impacts o Solid and Liquid Waste o Air quality (odour and pollution) o Noise emissions o Water quality o Sustainability
Soil and Erosion Control	• Runoff shall be managed to prevent any land degradation including offsite sedimentation. • Reference shall be made to the NSW Governments *Managing urban stormwater: soils and construction, Volume 1* (available from Landcom), commonly referred to as "The Blue Book". • Cut and fill will be minimised and the site stabilised during and after construction.
Noise	• Where relevant, applications are to contain information about likely noise generation and the method of mitigation.
Aboriginal Cultural Heritage	• Development applications must identify any areas of Aboriginal heritage value that are within or adjoining the area of the proposed development, including any areas within the development site that are to be retained and protected (and identify the management protocols for these). NB: Consultation with the Tamworth Local Aboriginal Land Council (or relevant LALC) is recommended prior to the lodgement of a development application to identify the precise location of any Aboriginal heritage items within the locality. NB: for guidance, refer to the NSW Office of Environment and Heritage's *Guide to Investigating, Assessing and Reporting on Aboriginal Cultural Heritage in New South Wales*.

Figure 1 – Bylong Road



Tamworth Regional Development Control Plan 2010

STEP 2: TYPE OF DEVELOPMENT

Commercial/Retail Development Controls

These are the controls relating to commercial and retail developments. Please note, additional site-specific requirements may also apply to your development, see STEP 4 : SITE SPECIFIC.

Building Setbacks	• No minimum setbacks to street frontage are specified. • Where permissible in residential zones, average setbacks of adjacent properties apply. • Side and rear setbacks must meet BCA requirements.
Height	• No height restrictions. Refer Local Environmental Plan 2010 for Floor Space Ratio requirements.
Outdoor Lighting	• Demonstrate compliance with *AS/NZS 11583.1 Pedestrian Area (Category P) Lighting and AS4282 Control of Obtrusive Effects of Outdoor Lighting*.
Outdoor Signage	• A single business premises is permitted to have: ○ one under awning sign, ○ one top hamper sign, and ○ one fascia sign, that do not project above or beyond that to which it is attached. One of which may be illuminated, but not flashing, moving or floodlit. • Design and location of signage must be shown on plans with DA. • Where there is potential for light spill from signage to adjoining properties, all illuminated signage shall be fitted with a timer switch to dim or turn off the light by 11pm each night. • Signage must comply with *State Environmental Planning Policy (Industry and Employment) 2021* Chapter 3 and Schedule 5 Assessment Criteria
Design	• Building facades shall be articulated by use of colour, arrangement of elements or by varying materials. • Large expansive blank walls not permitted unless abutting a building on an adjoining allotment. • Plans must show the location of all external infrastructure (including air conditioning units, plant rooms, ducting) and demonstrate how it will be screened from view from a public place or road. • Development on corner sites shall incorporate splays, curves, building entries and other architectural elements to reinforce the corner as land mark feature of the street. • Roofing materials should be non-reflective where roof pitch is greater than 17 degrees or not visible from a public road.
Post Supported Verandahs and Balconies and Under Awning Support Posts	• Posts must be set back 1200 mm from the back of the kerb. • New verandahs, balconies and awnings must complement the style, materials and character of the building being altered. • Under awning support posts shall be of a single or uniform width from top to bottom and be painted black in colour. • Under awning support posts will only be considered where it has been demonstrated that there is no alternative method available. • All posts must be designed to prevent collapse in the event of a collision. • Public liability insurance must be maintained to Council requirements Not to interfere with operation of or access to utility infrastructure.
Utilities and Services	• Servicing strategy required to demonstrate the availability and feasibility of providing water, sewer and stormwater services appropriate for the scale and nature of development. Evidence of consultation with the Water Supply Authority and Roads Authority is to be provided. • Applications must demonstrate adequate provision for storage and handling of solid wastes. • Liquid Trade Waste Application and facilities are required where liquid wastes (excluding domestic waste from a hand wash basin, shower, bath or toilet) are to be discharged to Council's sewerage system. • Buildings and structures are to be located clear of utility infrastructure. • For sewer mains, structures are to be located a minimum of one metre plus the equivalent invert depth, whichever is greater, from the centreline of the main. See Council Policy "Excavating/Filling or Building Adjacent to or Over Existing Sewer Mains" for further detail. • The developer is responsible to consult with Essential Energy, natural gas and a telecommunications carrier regarding the provision of services.

Parking, Traffic and Access	• Refer to *Step 3: General Development Specifications for Parking, Traffic and Access Controls*
Health Consulting Rooms and Medical Centres on land zoned R1 in Tamworth **(Refer to Figure 1)**	• The proposed site for "health consulting rooms" or a "medical centre" shall not be within 400 metres of the areas bounded by Macquarie Street, Kable Avenue, East Street and the Great Northern Railway Line. (see figure below) • The proposed site for a "medical centre" should be within 400m of a Hospital or adjoining a B1 Neighbourhood Centre.
Brothels and Restricted Premises	• Must be located at least 150m from any of the following: o Existing dwelling; o Residential zone; o Place of worship; o Any place designated for and utilised by children (e.g. child care centre, community facility, educational establishment, entertainment facility, recreation area/facility); o Any other sex services premises.
Site Levels and Retaining Walls	• Site and/or elevation plans must include existing and finished ground levels at Australian Height Datum (AHD). • Proposals for retaining walls must include top and bottom of wall height details (in AHD) and retaining wall locations and full extent must be shown on plans and associated elevations and cross sections. *NB: Retaining walls located on property boundaries must not result in adverse impacts on adjoining properties (e.g soil stabilisation, overlooking, drainage).*
Geology	• The design process must give consideration to the potential impact of erosive soils, saline soils, soils of low wet strength, highly reactive soils and steep slopes and document how these constraints are addressed.
Landscaping	• Landscaping or shade structures shall be provided in outdoor car parking areas where >10 spaces are required, to provide shading and soften the visual impact of large hard surfaces. • Edging to be provided to retain mulch and protect the landscaping from damage from vehicles. • Landscaping shall comprise only low maintenance, drought and frost tolerant species. • Development design shall accommodate the retention of any mature trees and vegetation. • Where mature trees and vegetation are removed, replacement landscaping should aim to incorporate local indigenous species from 'Australian Plants Suitable for Tamworth Regional Council Areas" list. • Location and grouping of plant types shall be multi-functional providing privacy, security, shading and recreation functions.
Fire Safety	• A development application for a change of building use for an existing building where no building works are proposed. Consideration must be given whether the fire protection and structural capacity of the building will be appropriate to the building's proposed use.
Flood Affected Land	• Refer to Step 3: General Development Specifications for Development on Flood Affected Land
Environmental effects	• The application documentation shall identify any potential environmental impacts of the development and demonstrate how they will be mitigated. These impacts may relate to: o Traffic o Flood liability o Slope o Construction impacts o Solid and Liquid Waste o Air quality (odour and pollution) o Noise emissions o Water quality o Sustainability

Soil and Erosion Control	• Runoff shall be managed to prevent any land degradation including offsite sedimentation. • Reference shall be made to the NSW Governments *Managing urban stormwater: soils and construction, Volume 1* (available from Landcom), commonly referred to as "The Blue Book". • Cut and fill will be minimised and the site stabilised during and after construction. • Arrangements in place to prompt revegetation of earthworks to minimise erosion.
Construction and Operational Waste Management	• All DAs for construction of commercial development must be accompanied by a Resource and Waste Management Plan (RWMP). • The RWMP must consider reuse or disposal of existing site waste materials (including demolition materials, earthworks) and construction waste materials. • The RWMP must consider operational waste management with consideration of the ongoing waste storage controls
Ongoing Waste Storage	• Provide suitable and sufficient waste storage facilities, this includes DA plans/drawings showing: e) storage space and layout for bins and skips f) waste collection point(s) for the site; g) path of access for users and collection vehicles; and h) layout and dimensions required to accommodate collection vehicles when on-site collection is required • Ensure the waste storage facilities are easily accessible for all users and have step free and unobstructed access to the collection point(s). • Locate the waste storage facilities to minimise odour and acoustic impacts on the habitable rooms of the proposed development, adjoining and neighbouring properties. • Provide sufficient storage space within each commercial/retail space to hold a single day's waste and to enable source separation of recyclables. • Consult with Council and the NSW EPA with regards to any proposed storage and collection of special wastes (e.g. medical or hazardous chemical wastes).
Noise	• Where relevant, applications are to contain information about likely noise generation and the method of mitigation.
Urban Heat Island Effect	• Please refer Urban Heat Island Effect controls in *Step 3: General Development Specifications - other Types of Development Controls*

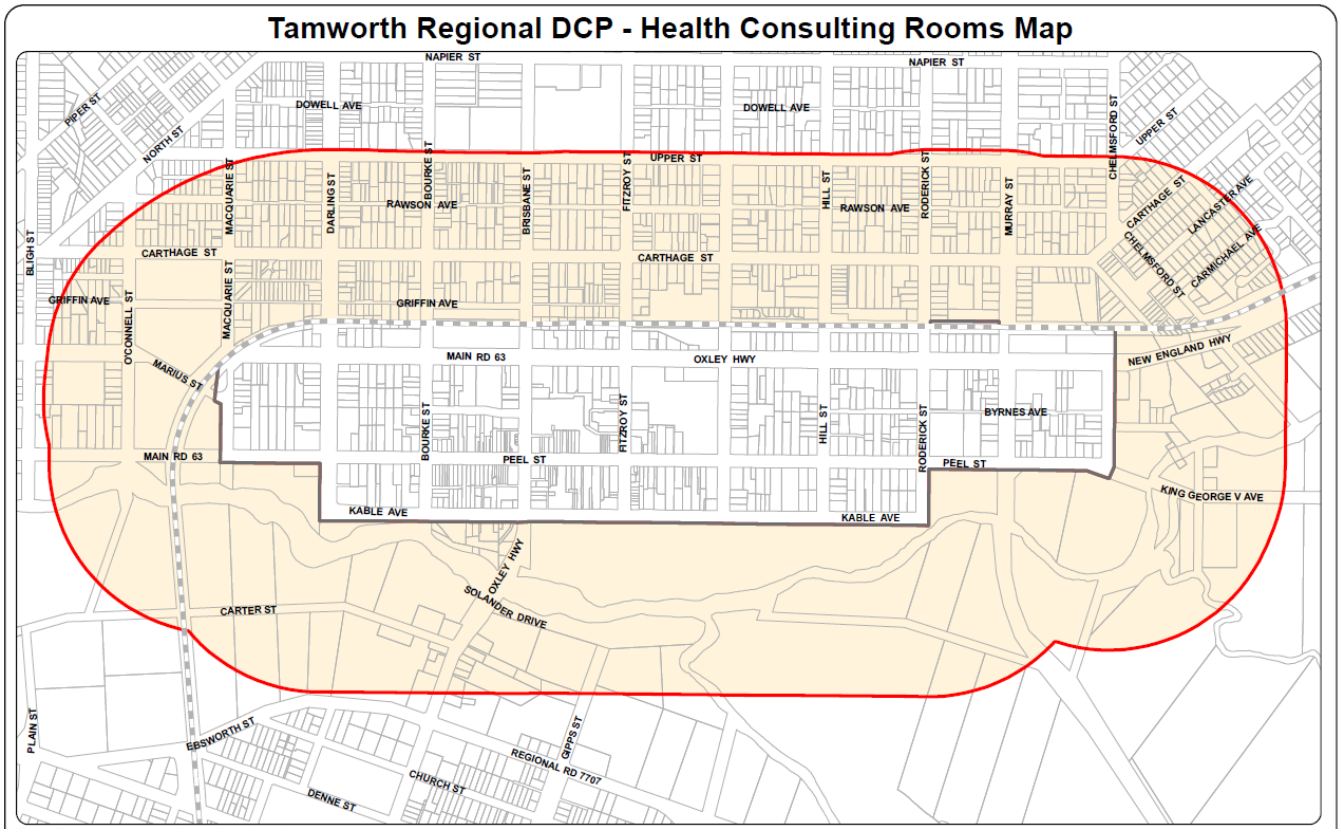
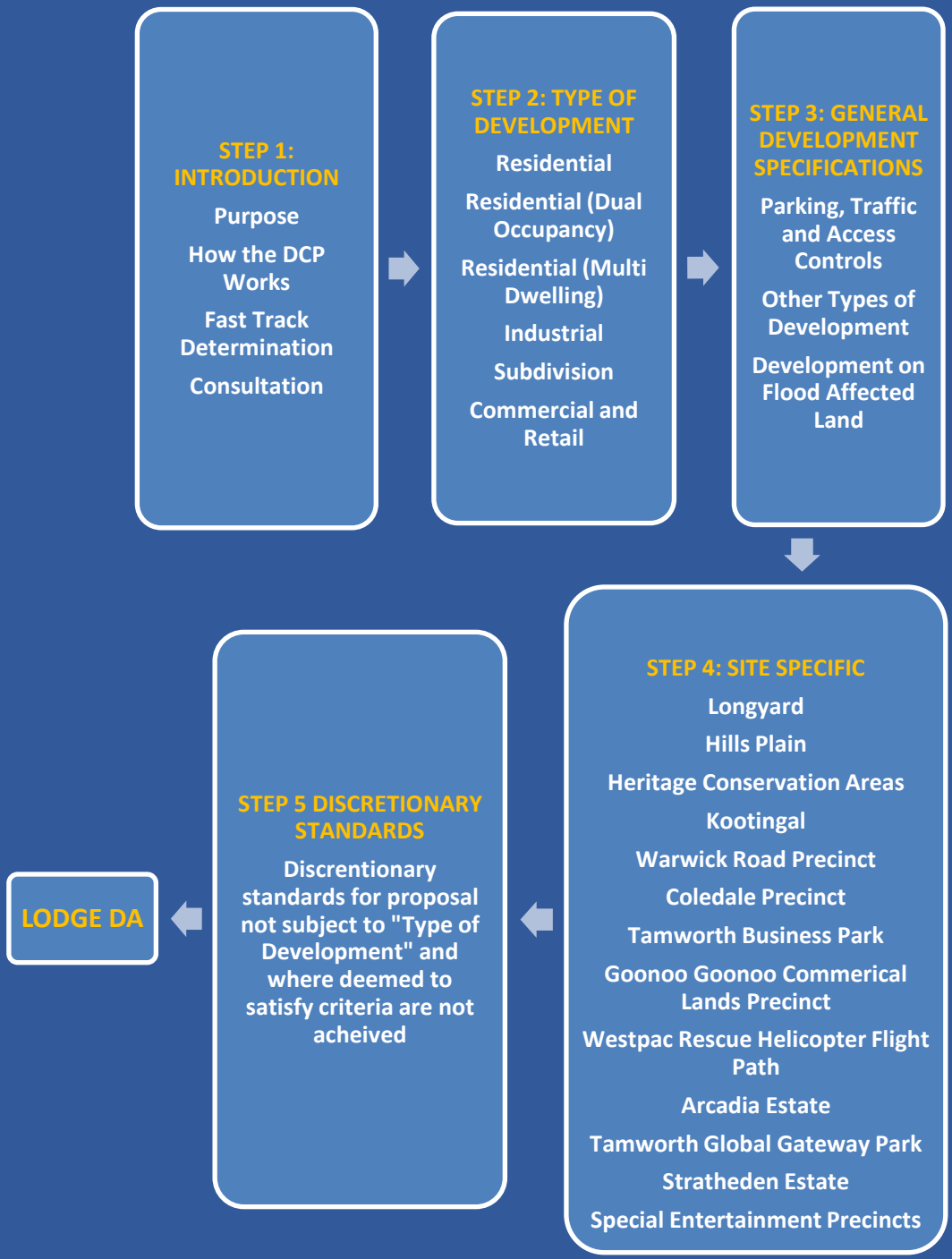


Figure 1 – Health Consulting Rooms Map

STEP 3: GENERAL DEVELOPMENT SPECIFICATIONS



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These are the environmental controls relating to all developments. Please note, additional site specific requirements may also apply to your development, see STEP 4 : SITE SPECIFIC.

"Mapped Areas" – Parking Requirements

General

- The Parking Requirements Schedule contained at the end of this chapter includes new parking controls for land in the "Mapped Areas" which are the Tamworth Central Business District (CBD), Bridge Street and North Tamworth localities.
- The Aim of having reduced parking requirements in the "Mapped Areas" for specific land uses is to promote housing density close to CBD amenities, commercial investment and increase opportunities to provide and promote different modes of transport.
- Refer to the Maps at the end of this chapter for Tamworth CBD, Bridge Street and North Tamworth to determine whether the subject site is located within a "Mapped Area" and subject to reduced parking requirements for certain land uses.

Residential

General

- Dimensions to meet *AS2890.1 Parking Facilities Off Street Carparking*.
- Manoeuvring areas within the development must be designed to accommodate a B99 vehicle under *AS2890.1 Parking Facilities Off Street Parking.*
- Swept paths for a B99 vehicle must be shown on plans prepared to accompany the DA
- All parking and manoeuvring areas to be hardstand (pavers or concrete).
- Driveways to be located a minimum of 6 metres from an intersection measured from the tangent point of the kerb return.
- Developments requiring ≥4 car spaces are to provide adequate turning dimensions to allow all vehicles to enter and leave the site in a forward direction.
- All weather 2WD access is required to the dwelling for a B99 vehicle under AS2890.1.
- A long section of the driveway must be prepared to accompany the DA if the natural ground level is sloping to confirm that the cross fall of the footpath will not be altered.
- Onsite turning areas must be provided where fronting a road classification of collector or greater.

Electric Vehicle Charging

- Provision for electric vehicle chargers in accordance with the National Construction Code (Australian Building Codes Board) must be demonstrated and shown on submitted plans (where required).

NB: refer to the *NSW Electric and Hybrid Vehicle Plan* with respect to making buildings 'EV Ready'.

End of Trip Facilities (bicycle parking and shower facilities)

Proposed Use	Resident	Visitor
Shop top housing, multi-dwelling housing, residential flat buildings & shared accommodation (e.g. boarding housing / group homes or the like)	1 bicycle space per 4 units (or 4 rooms for shared accommodation)	1 bicycle space per 20 units/rooms
Serviced Apartments	1 bicycle space per 4 staff	1 bicycle space per 20 units / rooms

- The location, design and construction of bicycle facilities is to comply with *AS2890.3 – Parking facilities – Bicycle parking*
- Bicycle parking for residents and/or staff must be located close to building entry/exits and lifts and be given priority over other parking uses to ensure they are well located, designed and used.

Commercial

Parking	• Where calculation of parking spaces required results in a fraction of a space, the total required number of spaces will be the next highest whole number. • Parking and traffic requirements will be based on consideration of: o likely peak usage times; o the availability of public transport; o likely demand for off street parking generated by the development; o existing traffic volumes on the surrounding street network; and o efficiency of existing parking provision in the location. • Comply with *AS2890.1 Parking Facilities Off Street Car Parking* and *AS2890.6 Parking Facilities Off Street Parking for People with a Disability* • Manoeuvring areas within the development must be designed to accommodate a B99 vehicle under *AS2890.1 Parking Facilities Off Street Parking.* • Where existing premises are being redeveloped or their use changed, the following method of calculation shall apply:- (a) Determine the parking requirements of the previous or existing premises in accordance with any existing development consent. Otherwise the rate contained in *Parking Requirements Schedule* should be applied. (b) Determine the parking requirement of the proposed development in accordance with *Parking Requirements Schedule*; (c) Subtract the number of spaces determined in (a) from the number of spaces calculated in (b); (d) The difference calculated in (c) represents the total number of parking spaces to be provided either in addition to the existing on-site carparking or as a cash-in-lieu contribution to Council where applicable. • The verge for the frontage of the development is to be constructed of hardstand materials to facilitate safe, low-maintenance pedestrian access. Details to accompany the development application. • All vehicles must be able to enter and exit the site in a forward direction. • Design must demonstrate no conflict between pedestrian, customer vehicles and delivery vehicles. • Wearing surfaces for access driveways, parking areas, loading/unloading facilities and associated vehicle manoeuvring areas relative to the design vehicle. • Unsealed vehicle movement areas are not acceptable due to environmental management impacts. • Loading bay(s) must be sited to avoid use for other purposes such as customer parking or materials storage and be line marked and signposted. • Site access not permitted: o Close to traffic signals, intersection or roundabouts with inadequate sight distances; o Opposite other large developments without a median island; o Where there is heavy and constant pedestrian movement on the footpath; o Where right turning traffic entering the site may obstruct through traffic. • Separate, signposted entrance and exit driveways are required for developments requiring more than 50 parking spaces or where development generates a high turnover of traffic. • The number of access points from a site to any one street frontage is limited to 1 ingress and 1 egress. • Driveways must be provided in accordance with AS 2890.1 Parking Facilities. • Nominate that a pedestrian footpath be constructed for the full frontage of a development to a width consistent with any connecting pedestrian footpath or where there is no connecting footpath in accordance with Council's current version of the Engineering Design Minimum Standards.
Development in Residential Zones	• Minimum road pavement width for any commercial development in a residential zone is 11 metres. • Footpath connectivity shall be provided to existing footpath network.
Electric Vehicle Charging	• Provision for electric vehicle chargers in accordance with the National Construction Code (Australian Building Codes Board) must be demonstrated and shown on submitted plans (where required). NB: refer to the *NSW Electric and Hybrid Vehicle Plan* with respect to making buildings 'EV Ready'.

End of Trip Facilities (bicycle parking and shower facilities)

Proposed Use	Resident	Visitor
New commercial, retail development / use	1 space per 15 car parking spaces	

- The location, design and construction of bicycle facilities is to comply with *AS2890.3 – Parking facilities – Bicycle parking*
- Bicycle parking for staff must be located close to building entry/exits and lifts and be given priority over other parking uses to ensure they are well located, designed and used.
- Provisions must be made for suitable facilities including bike rack, storage, shower and changing facilities for staff.

Industrial

Parking

- Where calculation of parking spaces required results in a fraction of a space, the total required number of spaces will be the next highest whole number.
- Parking and traffic requirements will be based on consideration of:
  - likely peak usage times;
  - the availability of public transport;
  - likely demand for off street parking generated by the development;
  - existing traffic volumes on the surrounding street network; and
  - efficiency of existing parking provision in the location.
- Comply with *AS2890.1 Parking Facilities Off Street Car Parking* and *AS2890.6 Parking Facilities Off Street Parking for People with a Disability*
- Manoeuvring areas within the development must be designed to accommodate a B99 vehicle under *AS2890.1 Parking Facilities Off Street Parking.*
- Where existing premises are being redeveloped or their use changed, the following method of calculation shall apply:-
  (a) Determine the parking requirements of the previous or existing premises in accordance with any existing development consent. Otherwise the rate contained in the *Parking Requirements Schedule* should be applied.
  (b) Determine the parking requirement of the proposed development in accordance with *Parking Requirements Schedule*;
  (c) Subtract the number of spaces determined in (a) from the number of spaces calculated in (b);
  (d) The difference calculated in (c) represents the total number of parking spaces to be provided either in addition to the existing on-site carparking or as a cash-in-lieu contribution to Council where applicable.
- Portion of customer parking to be provided convenient to the public entrance.

Traffic and Access

- A Traffic Assessment is required to demonstrate the adequacy of:
  - road network,
  - geometric design for intersections, including pavement impacts,
  - site access,
  - loading/unloading facilities, and
  - safe on-site manoeuvring for largest design vehicle
  - wearing surfaces for access driveways, parking areas, loading/unloading facilities and associated vehicle manoeuvring areas relative to the design vehicle.
- Areas that experience regular movement of vehicles, including (but not limited to) customer and staff carparking must be sealed
- Laydown / outdoor storage areas do not need to be sealed. Permanent Sediment and Erosion Control measures must be installed.
- All vehicles must be able to enter and exit the site in forward direction.
- Site access not permitted:
  - Close to traffic signals, intersection or roundabouts with inadequate sight distances;
  - Opposite other large developments without a median island;
  - Where there is heavy and constant pedestrian movement on the footpath;
  - Where right turning traffic entering the site may obstruct through traffic.
- Separate signposted entrance and exit driveways are required for developments requiring more than 50 parking spaces or where development generates a high turnover of traffic.
- The number of access points from a site to any one street frontage is limited to 1 ingress and 1 egress.
- Driveways and circulation roadways must be provided in accordance with *AS2890.1 Parking Facilities*.

Loading / unloading Facilities

- Adequate space and facilities are required to be provided wholly within the site.
- Loading and delivery bays must be designed to allow vehicles to enter and exit the site in a forward direction.
- Loading bay(s) must be sited to avoid use for other purposes such as customer parking or materials storage and be line marked and signposted.

Electric Vehicle Charging

- Provision for electric vehicle chargers in accordance with the National Construction Code (Australian Building Codes Board) must be demonstrated and shown on submitted plans (where required).

  NB: refer to the *NSW Electric and Hybrid Vehicle Plan* with respect to making buildings 'EV Ready'.

End of Trip Facilities (bicycle parking and shower facilities)

Proposed Use	Resident	Visitor
New industrial development / use	1 space per 15 car parking spaces	

- The location, design and construction of bicycle facilities is to comply with *AS2890.3 – Parking facilities – Bicycle parking*
- Bicycle parking for staff must be located close to building entry/exits and lifts and be given priority over other parking uses to ensure they are well located, designed and used.
- Provisions must be made for suitable facilities including bike rack, storage, shower and changing facilities for staff.

PARKING REQUIREMENTS SCHEDULE

Schedule of Parking Requirements

LAND USE	PARKING (REFER TO COUNCIL'S MAPS)		COMMENTS
	UNMAPPED AREAS	**MAPPED AREAS (INSIDE TAMWORTH CBD, ALONG BRIDGE STREET AND NORTH TAMWORTH*)**	
Backpackers / bed and breakfast accommodation	**Backpackers accommodation** Minimum 1 space for each 5 occupants/lodgers PLUS Minimum 1 space for any resident manager, PLUS Minimum 1 space for each 2 employees. **Bed and breakfast / farm stays / short term holiday lets / eco-tourist facilities** Minimum 1 space per visitor bedroom PLUS Minimum 2 spaces for permanent residents (if applicable)		
Boarding house	As per the relevant requirements set out in State Environmental Planning Policy (Housing) 2021		The provisions of the State Environmental Planning Policy (Housing) 2021 apply to this type of development.
Brothel	Minimum 1 space per staff working at any one time PLUS 1 space per room		
Co-living	As per the relevant requirements set out in State Environmental Planning Policy (Housing) 2021		The provisions of the State Environmental Planning Policy (Housing) 2021 apply to this type of development.
Community facility (Including hall, neighbourhood centre, youth centre, or similar)	Minimum 1 space per 20m², whichever is greater Additional parking is dependent on location and size of centre and nature of activities provided 1 space is required for service vehicles		
Speciality Retail Premises and Industrial Retail Premises	1 space per 45m² GFA		Parking must be provided to satisfy the peak cumulative parking requirements of the development as a whole. A comparison survey of similar development should be provided with the development application. Calculations will be refined according to the specific characteristics of the proposed development.

LAND USE	PARKING (REFER TO COUNCIL'S MAPS)		COMMENTS
	UNMAPPED AREAS	**MAPPED AREAS (INSIDE TAMWORTH CBD, ALONG BRIDGE STREET AND NORTH TAMWORTH*)**	
Vehicle sales or hire premises	Minimum 0.75 space per 100m^2 site area plus 4 spaces per work bay (for vehicle servicing) Note: Stacked parking is permissible but not for customer parking.		Customer parking spaces should be ready accessible and should not be used for the display of vehicles or other merchandise or for loading/unloading of trucks.
Camp / Caravan Site	As per the relevant requirements set out in the Local Government (Manufactured Home Estates, Caravan Parks, Camping Grounds and Moveable Dwellings) Regulation 2021		The visitor parking area should be appropriately located and signposted.
Change of Use	No additional parking is required for a change of use involving commercial uses on existing sites that are less than 100m^2 GFA. Where a development involves a change of use or alterations/additions greater than 100m^2 GFA, that would generate a greater car parking requirement than the existing use as calculated with the *DCP car parking requirements*, additional parking is required to be provided equivalent to the difference between the two parking requirements.	No additional parking is required for a change of use involving commercial uses on existing sites that are less than 150m^2 GFA Where a development involves a change of use or alterations/additions greater than 150m^2 GFA, that would generate a greater car parking requirement than the existing use as calculated with the *DCP car parking requirements*, additional parking is required to be provided equivalent to the difference between the two parking requirements.	**Note:** Any historical deficiency in parking for the existing use can be applied as a credit to the parking calculations. In the case of substantial alterations and additions that effectively involve the virtual reconstruction of a building, the historical deficiency will not be permitted to be credited to the parking calculation.
Child Care Centre	Minimum 1 space per 4 children Minimum Road Width = 11m		This calculation includes staff parking. Staff parking spaces shall be designed in accordance with the requirements of user class 1 at a minimum, as per AS/NZS 2890.1 (as amended). The carpark design must include dedicated drop-off/pick-up bays. Short-stay, high turnover visitor parking spaces shall be designed in accordance with the requirements of user class 3A as per AS/NZS 2890.1 (as amended).

LAND USE	PARKING (REFER TO COUNCIL'S MAPS)		COMMENTS
	UNMAPPED AREAS	**MAPPED AREAS (INSIDE TAMWORTH CBD, ALONG BRIDGE STREET AND NORTH TAMWORTH*)**	
Commercial / Business Premises *(Office premises, financial institutions, hairdressers, real estate agents, etc)*	Minimum 1 space per 40m^2 GFA		Provision should be made for the movement and on-site loading/unloading of service vehicles as appropriate.
Drive-Through Take-Away Food and drink Shop	**Takeaway food and drink (Drive-through only no seating)** 1 space per 15m^2 GFA Queuing for 8 car lengths. (minimum) Plus minimum of 1 waiting bay **Takeaway food and drink (Drive-through with seating)** 1 space per 9m^2 GFA including outdoor dining and play areas Medium traffic generation and queuing demand: Queuing for 8 car lengths, min. 4 before order point Plus minimum of 1 waiting bay High traffic generation and queuing demand: Queuing for 12 car lengths, min. 6 before order point Plus minimum of 2 waiting bays		The assumed traffic generation and queuing demand must be supported and agreed by Council in a Traffic Impact Assessment (TIA).
Dual Occupancy	**Up to 2 bedrooms** Minimum 1 off-street covered car parking space on the property for each dwelling located entirely on the subject land. **Dwellings of 3 or more bedrooms** minimum of 2 car spaces for each dwelling (minimum one enclosed space). May include use of the driveway area in front of any garage/carport for the second space but must be entirely on the subject land (stacked parking) and behind the front building line.		For the purposes of this calculation "bedrooms" will include rooms capable as being occupied as a bedroom, included a study, craft room and the like. Carports must share the same roofline, design and materials as the primary dwelling.
Dwelling House	**Up to 2 bedrooms** Minimum 1 space per dwelling **Dwellings of 3 or more bedrooms** Minimum 2 spaces per dwelling	**Up to 3 bedrooms** Minimum 1 space per dwelling **Dwellings of 4 or more bedrooms** Minimum 2 spaces per dwelling	Parking of **1** vehicle behind one another in a stacked arrangement is acceptable but must be entirely on the subject land (stacked parking). Carports must share the same roofline, design and materials as the primary dwelling.

LAND USE	PARKING (REFER TO COUNCIL'S MAPS)		COMMENTS
	UNMAPPED AREAS	**MAPPED AREAS (INSIDE TAMWORTH CBD, ALONG BRIDGE STREET AND NORTH TAMWORTH*)**	
Educational Establishments	**Primary Schools** 1 space per staff member (peak staff level) PLUS 1 space per 50 students PLUS adequate student set down/pick up areas for students. **Secondary Schools** 1 space per 2 staff members PLUS 1 space per 50 students PLUS 1 space per 10 students (17 years of age or older) PLUS adequate student set down/pick up areas for students. **Tertiary Schools & Colleges** Subject to individual parking assessment inclusive of considerations regarding parking and turning areas for any auditoriums or sportsgrounds.		Adequate bus collection and turning areas will need to accommodate for all educational establishments
Entertainment facility	Minimum 1 space per 10m^2 GFA OR Minimum 1 space per 7 seats, whichever is greater		
Function Centres	1 space per 6.5m^2 GFA OR 1 space per 5 seats, whichever is greater	1 space per 8m^2 GFA OR 1 space per 6 seats, whichever is greater	
Group Home	Minimum 2 off-street car parking spaces must be provided on the site per group home is erected OR As per the relevant requirements set out in State Environmental Planning Policy (Housing) 2021		The provisions of the State Environmental Planning Policy (Housing) 2021 apply to this type of development.
Hardware and Building Supplies	Minimum 1 space per 80m² GFA		

Health Consulting Rooms	1 space per FTE staff PLUS 3 visitor spaces per FTE practitioner		If it can be shown that not all surgeries will be in concurrent operation, consideration may be given to reducing the parking provision for patients. Parking areas for patients are to be located at the front of the development or in a location which will encourage patients to use the parking area rather than the adjoining street.
Home Activity	Minimum 1 space in addition to the dwelling requirements		This requirement may be either waived or increased by Council depending on the characteristics of the home activity and the number of persons involved.
Hotel	Minimum 1 space per accommodation unit, PLUS minimum 1 space for every 2 persons employed in connection with the development and on duty at any one time If an ancillary restaurant or pub is integrated within the hotel, the ancillary uses are to refer to their specific parking rates and a reduction of 20% may be applied to their calculated parking requirements	Minimum 0.5 space per accommodation unit, PLUS minimum 1 space for every 2 persons employed in connection with the development and on duty at any one time If an ancillary restaurant or pub is integrated within the hotel, the ancillary uses are to refer to their specific parking rates and a reduction of 30% may be applied to their calculated parking requirements	Proposed hotel development will be compared to similar existing developments, noting the existing supply of, and demand for parking in the area and of the peak parking periods of individual facilities within the hotel. If a function room/nightclub is included, parking will be required to meet peak demands. Accommodation must have at least 10 rooms to enable any ancillary discount.
Housing for Seniors *(a) Self-contained units (subsidised)*	As per the relevant requirements set out in State Environmental Planning Policy (Housing) 2021		
(b) Self-contained units (resident funded developments)	As per the relevant requirements set out in State Environmental Planning Policy (Housing) 2021		
(c) Hostel, Nursing and Convalescent Home	As per the relevant requirements set out in State Environmental Planning Policy (Housing) 2021		

Industry (includes light industry and heavy industry)	**<u>Industrial floor space</u>** 1 space per 100m^2 (including mezzanine storage) **<u>Warehouse</u>** 1 space per 300m^2 (including mezzanine storage) **<u>Local distribution/warehouse units (e.g. Industrial unit complex or business park complex in E3, E4 and E5 zone)</u>** 1 space per 75m^2 (including mezzanine storage) **<u>Ancillary office space</u>** Minimum 1 space per 40m^2 **<u>Ancillary retail space</u>** Minimum 1 space per 30m^2		On-site truck parking spaces should be provided for each vehicle present at any one time excluding those vehicles in loading docks. Under no circumstances is the parking of trucks on public streets acceptable.
Manufactured Home Estate	As per the relevant requirements set out in the Local Government (Manufactured Home Estates, Caravan Parks, Camping Grounds and Moveable Dwellings) Regulation 2021		The visitor parking area should be appropriately located and signposted.
Medical Centre	3 spaces per practitioner PLUS 1 space per FTE employee OR 3 spaces per surgery, treatment room, consultation room, whichever is greater		The 3 spaces per practitioner include 2 patient car spaces. Additional land uses will be considered under elements are assessed under the separate retail parking rate.
Shop top housing	**<u>Shop top housing</u>** **<u>Residential Component</u>** <u>Up to 3 bedrooms</u> minimum 1 space per dwelling <u>Dwellings of 4 or more bedrooms</u> minimum 2 spaces per dwelling **<u>Commercial Component</u>** Calculated based on relevant land use parking rate contained in this table.	**<u>Shop top housing</u>** **<u>Residential Component</u>** <u>1-2 Bedrooms</u> 0 spaces required <u>Dwellings of 3 or more bedrooms</u> minimum 1 space per dwelling **<u>Commercial Component</u>** Calculated based on relevant land use parking rate contained in this table.	Peak retail parking and visitor parking times is not likely to clash, residential visitors will be able to utilise the retail parking spaces. Change of uses will have parking implications, and since any minimum parking requirements would likely be rounded up, it may result in a single shop top dwelling requiring a parking space) **NB**: Does not apply to shop top housing that is defined as a residential flat building (buildings which contain 3 or more dwellings)

Motel (including serviced apartments)	Minimum 1 space per accommodation unit, PLUS minimum 1 space for every 2 persons employed in connection with the development and on duty at any one time		If a restaurant and/or function room is to be included, additional parking will be required at the adopted rate for such facilities. Council is willing to review this requirement if it can be demonstrated that the time of peak demand for parking at each facility does not coincide **or** if the facilities will primarily serve motel customers.
Multi Dwelling Housing	**Residents** **1 - 2 bedrooms - Minimum 1 space per dwelling** Minimum 1 off-street covered car parking space per dwelling. **3+ bedrooms - Minimum 2 spaces per dwelling** minimum of 2 car spaces for each dwelling (minimum one enclosed space) **Visitor** Minimum 1 space per 5 units or part thereof	**Residents** **1 - 3 bedrooms - Minimum 1 space per dwelling** Minimum 1 off-street covered car parking space per dwelling **4+ bedrooms - Minimum 2 spaces per dwelling** minimum of 2 car spaces for each dwelling (minimum one enclosed space) **Visitor** Maximum 1 space per 5 units or part thereof	Turning facilities should be provided on site so that vehicles always leave the site in a forward direction. Of the resident parking spaces, one space per unit should be dedicated to specific units. Visitor parking spaces must be clearly designated and readily accessible. Appropriate signposting should be provided at the entrance to the site.
Place of Public Worship	Minimum 1 space per 20m² gross floor area OR Minimum 1 space per 10 seats, whichever is the greater		
Pub	Minimum 1 space per 10m^2 GFA (including outside seating/ beer garden areas).	***Tamworth CBD and Bridge Street areas only** Minimum 1 space per 15m^2 GFA (including outside seating/ beer garden areas).	*Elsewhere, the parking rates for unmapped areas apply
Recreation Facility *Squash Courts* *Tennis Courts* *Bowling Alleys*	 Minimum 3 spaces per court Minimum 3 spaces per court Minimum 3 spaces per court		Where various facilities are provided within one development, Council may consider relaxing the parking requirements where peak usage times do not coincide or where dual and complementary usage of the common off-street parking area is anticipated.
Bowling Greens	Minimum 30 spaces for the first green PLUS 15 spaces for each additional green	Minimum 20 spaces for the first green PLUS 5 spaces for each additional green	
Gymnasiums	Minimum 1 space per 15m^2 GFA	Minimum 1 space per 30m^2 GFA	

Registered Club	Minimum 1 space per 10m^2 GFA (including outside seating/ beer garden areas)		Parking must be provided to satisfy the peak cumulative parking requirements of the development as a whole. Council may consider relaxing this requirement depending on the characteristics of the proposed development. For this purpose, a comparison survey of clubs in similar localities should be provided with the development application.
Residential flat buildings	**Residents** **1 - 2 bedrooms -** Minimum 1 space per dwelling **3+ bedrooms -** Minimum 2 spaces per dwelling **Visitor** Minimum 1 space per 5 dwellings	**Residents** **1 bedroom** - Minimum 0.6 space per dwelling **2+ bedrooms** - Minimum 1 space per dwelling **Visitor** Minimum 1 space per 5 dwellings	
Restaurants or Café	1 space per 10m^2 GFA	Minimum 1 space per 20m² GFA	The parking requirement may be reduced where the development is located in a business zone in close proximity to a public off-street parking area and it can be demonstrated that peak demand for the restaurant will not coincide with peak demand for the public parking area. Consideration will also be given to reducing the rate for certain development (e.g.: coffee shops, cafes, milk bars, etc) which primarily operate during 9:00am to 5:00pm on weekdays and Saturday mornings, where peak demand for the restaurant will be ancillary to the parking demand generated by surrounding business premises or shops. A food outlet which provides no seating will be assessed as a "shop".
Retail Plant Nursery including landscape and garden supplies.	Minimum 15 spaces OR Minimum 0.5 spaces per 100m² of site area, whichever is greater		Adequate on-site loading/unloading facilities for service vehicles must be provided for all retail development. Separate driveways and circulation systems should be provided for service and customer vehicles wherever possible.
Roadside Stall	Minimum of 4 off-street parking spaces		

<table>
<tr>
<td>Transport Depot / Truck Depot</td>
<td>Based on individual assessment</td>
<td>Provision should be made for fleet vehicles, visitor and employee vehicles and contract/operator vehicles. Under no circumstances is the parking of trucks on a public street acceptable. Driveways should be designed in accordance with the type of road frontage, the number of parking spaces and service bays served and the type of vehicles that will enter the terminal. Consideration should also be given to providing adequate access, parking and manoeuvring space for B-Doubles.</td>
</tr>
<tr>
<td>Self-storage</td>
<td>
<table>
<tr><th>MLA</th><th>Office Parking</th><th>Storage Area Parking*</th><th>Staff Parking</th><th>Trailer/Ute Parking</th><th>Total Parking</th></tr>
<tr><td>0-3,000m^2</td><td>1</td><td>2</td><td>2</td><td>1</td><td>6</td></tr>
<tr><td>3,000m^2-6,000m^2</td><td>2</td><td>5</td><td>2</td><td>1</td><td>10</td></tr>
<tr><td>6,000m^2-9,000m^2</td><td>3</td><td>5</td><td>2</td><td>1</td><td>11</td></tr>
</table>
</td>
<td>*Ranch style sties will not require designated storage area parking as vehicles in these sites will park in aisles adjacent to their storage unites; similarly, ‘mixed’ sites may require less designated storage area parking if they have a significant number of drive up storage units in a ranch style arrangement.

Staff vehicle parking can be located in either the office or storage area car parking area.</td>
</tr>
<tr>
<td>Service Station</td>
<td>4 spaces per work bay (NB: stack parking acceptable for vehicle repair workshop)
PLUS 1 space per 20m^2 GFA of a convenience store
PLUS 1 space per 10m^2 GFA of a restaurant / café</td>
<td>These additional requirements should be cumulative but may be reduced where it can be demonstrated that the times of peak demand for the various facilities do not coincide. All parking should be clearly designated and located so as not to obstruct the normal sale of petrol and should minimise the potential for vehicular/pedestrian conflict. Consideration should be given to providing adequate manoeuvring space for caravans and B-Doubles.

Driveways to petrol pumps must provide sufficient space for a minimum of 2 cars to queue for each pump. Space for refuelling tankers without impeding other traffic.</td>
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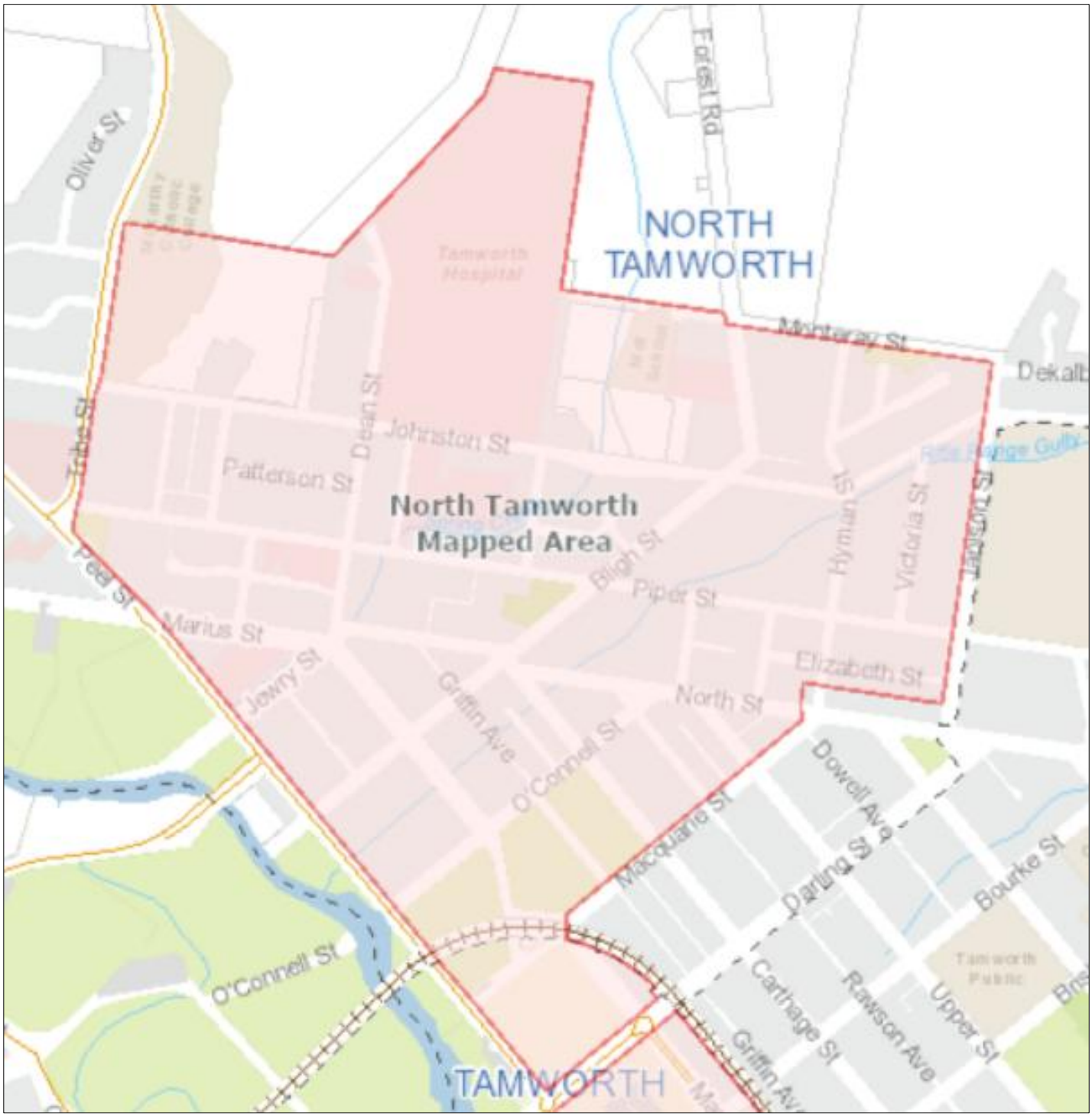
Retail Premises (not including *Industrial Retail Premises*)		Where it can be demonstrated that the time of peak demand for parking associated with the proposed shopping centre and the existing adjacent land uses do not coincide, or where common usage reduces total demand, a lower level of parking provision might apply. If the proposed development is an extension of an existing retail development, additional parking demand could be less than proportional to the increase in floor area. A lower level of parking provision may apply where it can be demonstrated that the times of peak demand for parking coincide or where common usage reduces total demand.
(a) Shops < 1000m^2 GFA	1 space per 25m^2 GFA	
(b) Shops > 1000m^2 GFA (includes supermarkets, department stores, regional shopping complexes, etc)	1 space per 16m^2 GFA	
Vehicle Repair Station / Vehicle body repair workshop	Minimum 1 per 40m^2 GFA OR Minimum 3 spaces per workshop bay, whichever is greater	
Veterinary Hospital	Minimum 3 spaces per practitioner PLUS Minimum 1 space per employee	If it can be shown that not all surgeries will be in concurrent operation, consideration may be given to reducing the parking provision for patients. Parking areas for patients are to be located at the front of the development or in a location which will encourage patients to use the parking area rather than the adjoining street. If treatment is provided to large animals, loading and parking provision for heavy vehicles and vehicles towing trailers is required.

Notes:

- Accessible parking for people with a disability must be provided in accordance with the BCA, AS/NZS 2890.6 and AS 1428.

- Where there are no specific rates listed above, refer to RTA Guidelines or demonstrate requirement for parking will be met based on a Traffic Assessment Report, prepared by a suitably-qualified consultant.
  GFA – refer to dictionary of Tamworth Regional Local Environmental Plan 2010.

North Tamworth – Parking Mapped Area



Tamworth CBD – Parking Mapped Area



Bridge Street – Parking Mapped Area



These are the environmental controls relating to all developments. Please note, additional site-specific requirements may also apply to your development, see STEP 4 : SITE SPECIFIC.

Outdoor Lighting	• All developments shall demonstrate compliance with *AS4282 Control of Obtrusive Effects of Outdoor Lighting*. • Sweeping lasers or searchlights or similar high intensity light for outdoor advertising or entertainment, when projected above the horizontal is prohibited. • Illuminated advertising signs should be extinguished outside of operating hours, or 11pm, whichever is earlier.
Outdoor Advertising/ Signage	• Where there is potential for light spill to adjoining properties, all illuminated signage shall be fitted with a timer switch to dim or turn off by 11pm each night. • Signage must comply with *State Environmental Planning Policy (Industry and Employment) 2021* Chapter 3 and Schedule 5 Assessment Criteria. "Special promotional advertisements" may be installed in accordance with clause 25 of *SEPP 64 – Advertising and Signage* provided that the sign does not compromise any Public Art or the integrity of the space in which it is located in the main streets, public parks and gardens and major venues across the region's city, towns and villages. • Advertising in rural zones may only: ○ advertise a facility, activity or service located on the land; or • direct travelling public to a tourist facility or building or place of scientific, historical or scenic interest within the area. Cannot include names of proprietary products or services or sponsoring businesses. Each sign must be sited a minimum distance of 1km from each other. • External illumination to signs must be top mounted and directed downwards. • The following types of signs are not acceptable: ○ Portable signs within public footways and road reserves including variable message signs, A Frame and Sandwich Boards; ○ Outdoor furniture (including chairs, bollards and umbrellas) advertising products such as coffee, alcohol or soft drink; ○ A roof sign or wall sign projecting above the roof or wall to which it is affixed; ○ Flashing or intermittently illuminated signs; ○ Advertisements on parked motor vehicles or trailers (whether or not registered) for which the principal purpose is for advertising; ○ Signs fixed to trees, lights, telephone or power poles; ○ Signs which could reduce road safety by adversely interfering with the operation of traffic lights or authorized road signs; ○ Any sign which would in the opinion of Council, be unsightly, objectionable or injurious to the amenity of the locality, any natural landscape, public reserve or public place; ○ Numerous small signs and advertisements carrying duplicate information; and ○ Overhead banners and bunting, except in the form of temporary advertisement.
Farm Stay Accommodation	• Details of the activities offered should accompany the Development Application which must include some farm related activities. • Guests are restricted a maximum of 14 days per visit.
Small Scale Renewables (Local or Regionally Significant)	• An Environmental Values Locality Map must be prepared - Refer also to *Step 2: Type of Development - Subdivision Controls.* • Biodiversity Protection controls contained in *Step 2: Type of Development - Subdivision Controls must be addressed.* • All development applications for construction of a small-scale renewable development must be accompanied by a Resource and Waste Management Plan (RWMP). • The RWMP must consider reuse or disposal of existing site waste materials (including demolition materials, earthworks) and construction waste materials. • The RWMP must consider operational waste management with consideration of the ongoing waste storage controls and include a decommissioning plan for managing waste materials at the end of the project life. • A Visual Impact Assessment must be prepared (including an assessment of night lighting) of all components of the development on surrounding residences and key locations, scenic or significant vistas and road corridors in the public domain.

- If the development is located on or adjacent to rural zoned land, provide an Agricultural Impact Assessment, prepared by a suitably qualified person which includes (but not limited to):
  - Land and soil capability mapping;
  - Consultation with neighbouring landholders to identify potential project impacts (if any) on immediately adjacent land;
  - A description of project impacts (if any) on immediately adjacent land; and
  - Measures to be implemented to reduce impacts on neighbouring agricultural land.

Urban Heat Island Effect

- For any development located within the CBD and Bridge Street Precinct Maps (See Figure 1 below) it must consider the implementation of the following "Greening" and "Non-Greening" Mechanisms as contained in the Tamworth Urban Heat Island Report – July 2022 which can be found at: www.tamworth.nsw.gov.au

Greening cooling mechanisms:

1. Increase tree canopy cover - Preserve and increase tree canopy cover (with appropriate native species) and landscaping to increase shading. Include plantings to shade impervious areas.
2. Non-tree ground plantings - Include appropriate native shrubs, grasses and ground cover plants in landscape design to reduce heat absorption of impervious surfaces
3. Increased irrigation of open spaces - Consider installing adequate irrigation to keep plants and ground cover alive to reduces heat absorption of impervious surfaces. Consider connecting irrigation to non-potable supply such as recycled water or rainwater tank
4. Green walls and roofs - Consider green walls and roofs in appropriate locations to reduce heat absorption
5. Revitalising disused infrastructure and vacant lots

Non-greening mechanisms:

6. Lighter roof and pavement colour - White roofs with low reflectivity can be up to 23°C cooler than black roofs reducing building operating energy costs. Cool coating can be added to existing dark roofs to cool between 6 - 13°C.
7. Materials selection - Consider alternatives to high heat absorbing, reradiating materials (such as asphalt). Low reflectivity roofing and materials should be used where possible, including permeable paving. Building materials should contribute to external and internal thermal comfort & minimise the need for mechanical heating and air-conditioning.
8. Water - Integrate waterways, water features, water capture, water reuse and water recycling into site design, maximise permeable surfaces, and retain water in landscape where possible for cooling effect
9. Urban design - Consider orientation, airflow, shading through shade structures, and the selection of building and landscaping materials in the design.
10. Water Sensitive Urban Design (WSUD) - Maximise permeable surfaces in landscape design and increase water retention and reuse in the landscape for cooling effect.



Figure 1 – Urban Heat Island Map - CBD precinct east of the river and Bridge Street precinct west of the river

STEP 3: GENERAL DEVELOPMENT SPECIFICATIONS

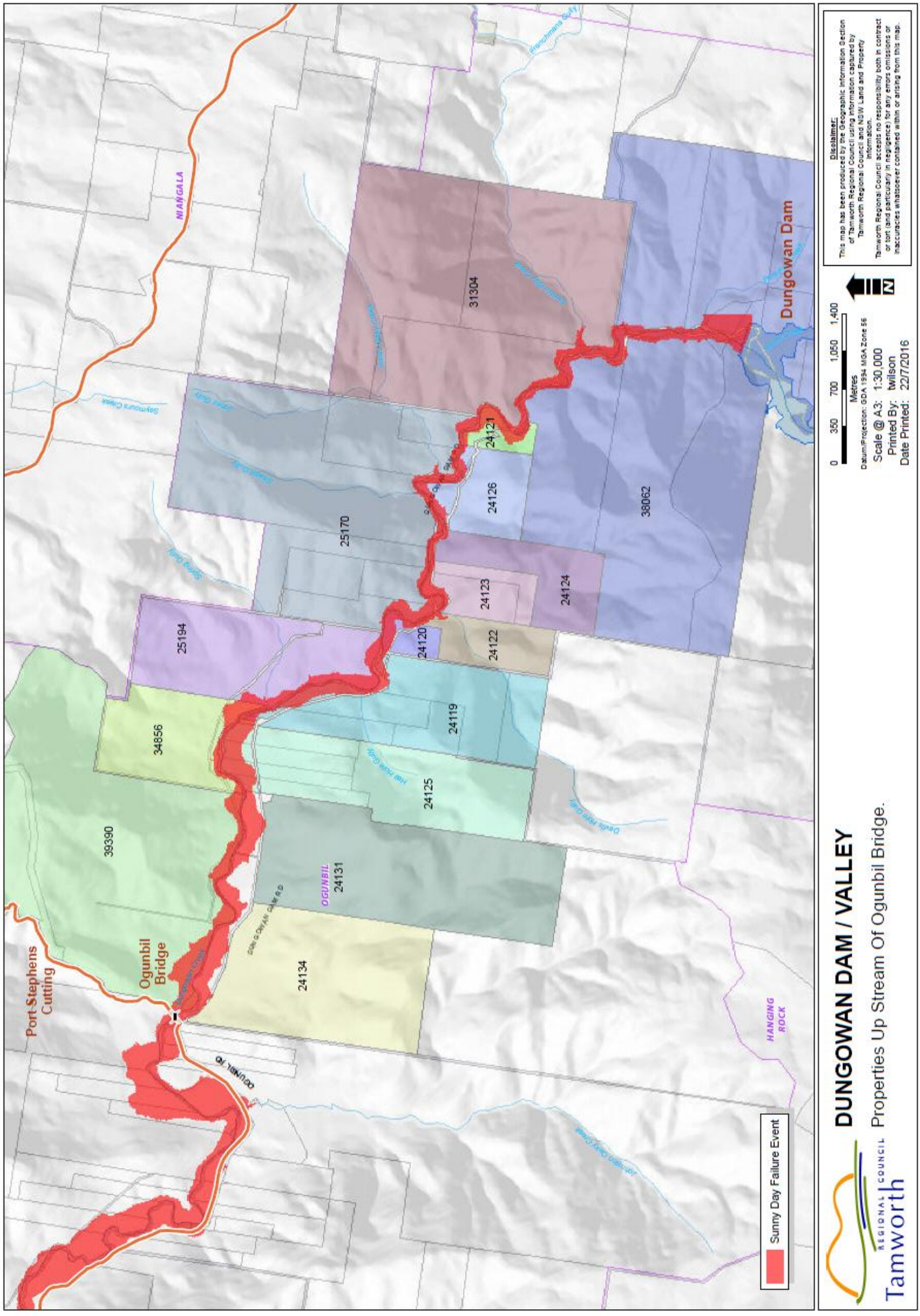
Development on Flood Affected Land

These are the development controls relating to development on flood control lots. Please note, **Step 2 – Type of Development** requirements may also apply to your development.

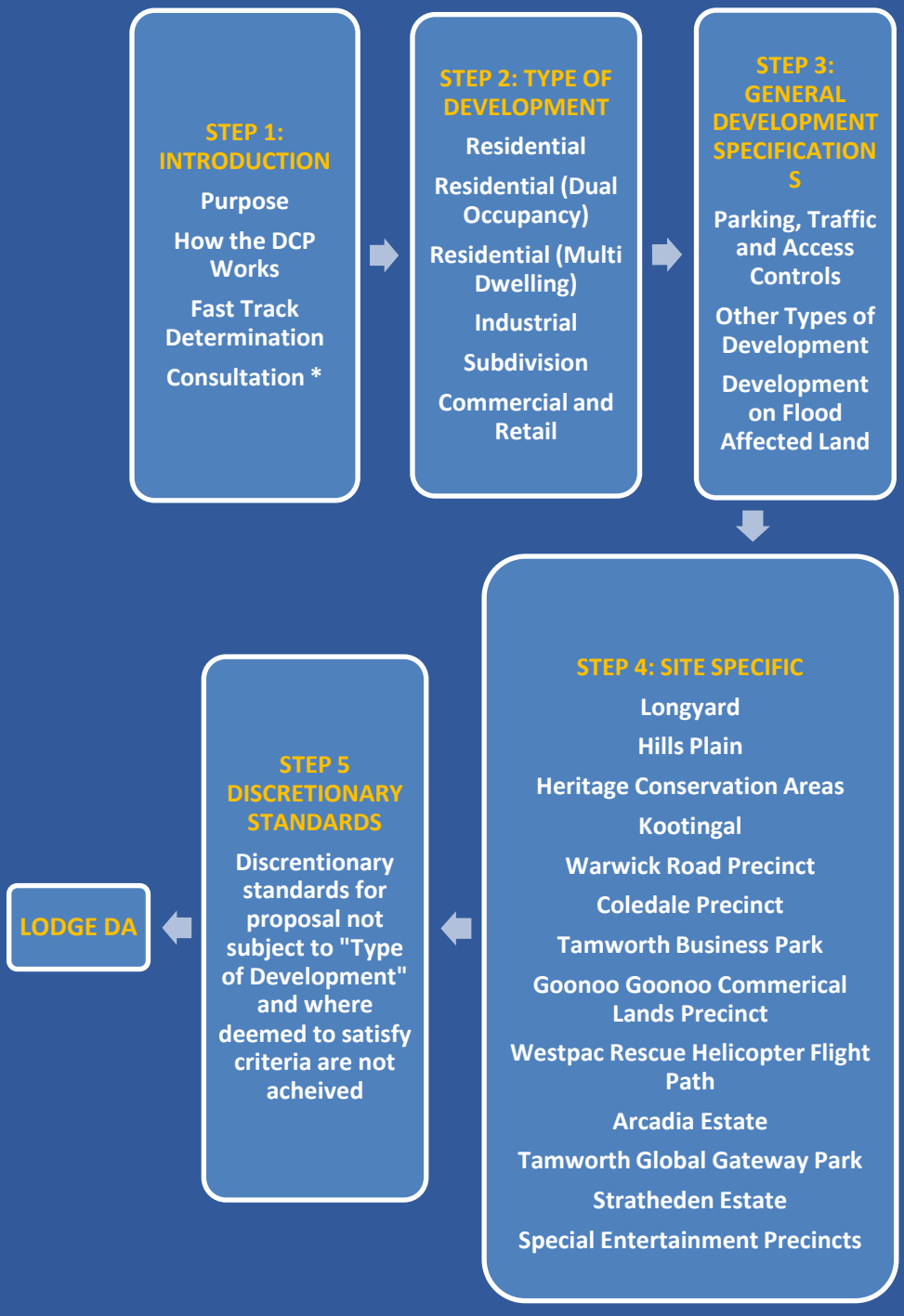
Is land flood affected?	Council has adopted the 1% annual exceedance probability (AEP) Flood plus 0.5m as its Flood Planning Level (FPL). Additionally, the flood planning level includes the Sunny Day Failure of Dungowan Dam plus 0.5m for the properties between the Ogunbil Bridge and Dungowan Dam. Land below the Flood Planning Level is referred to as the "flood planning area" (FPA). Flood planning area as shown on the Flood Planning Area Maps and associated flood studies available on Council's website is defined as the most current information available to Council and may be derived and interpreted from a combination of the following: 1. Flood Studies identifying the 1% AEP flood undertaken in accordance with the Floodplain Development Manual, prepared by the NSW Government (as applicable at the time the Study was conducted) 2. Modelling undertaken for specific sites which identifies the 1% AEP flood 3. Historic flood inundation records held by Council as the highest know flood 4. Information contained within an environmental planning instrument or policy 5. Specific flood mapping for the site 6. Mapping endorsed by the elected Council at an Ordinary Council Meeting.
Glossary of Terms	• **AEP** means - Annual Exceedance Probability • **FPA** means – Flood Planning Area • **FPL** means – Flood Planning Level • **AIDR** means - Australian Disaster Resilience Handbook 7 Managing the Floodplain: A Guide to Best Practice in Flood Risk Management in Australia (AIDR 2017).
Land Behind Levees	• Development on land protected by the urban levee system is to include consideration of inundation resulting from a levee breach (failure of overtopping) or stormwater ponding when the river system is in flood.
Access	• All lots created by subdivision must have safe vehicle access (H2 in Figure 6 AIDR 2017b) for events up to 1% AEP. • For development of existing lots, where flood free vehicle access is not possible, the development must be able to achieve access through maximum H3 hazard category as defined in Figure 6 AIDR 2017b for 1% AEP flood events.
On-site Sewer Management	• Onsite sewer management facilities must be sited and designed to withstand flooding conditions (including consideration of structural adequacy, avoidance of inundation, and flushing/leaking into flowing flood waters). Tank and trench style of systems are not permitted on land affected by the Flood Planning Level. • All sewer fixtures must be located above the 1% AEP Flood.
General Development Requirements	• No building or work (including land filling, fencing, excavation) shall be permitted on flood affected land where in the opinion of Council, such building or work will obstruct the movement of floodwater or cause concentration or diversion of floodwaters. • A survey plan prepared by a registered surveyor showing existing ground levels, finished ground levels, finished floor levels, flood levels and location of existing/proposed buildings and safe evacuation path on the site relative to AHD. • This information must be supplied for development within the FPA.

General Development below the 1% AEP flood level	• For any part of a building (new works) below the 1% AEP flood level, structural design must be in accordance with the NCC flood requirements. The "Flood Hazard Area" is the FPA. The "defined flood event" is the 1% AEP event. The "flood hazard level" is the FPL. • Development must be designed in accordance with the Australian Building Codes Board Standard - Construction of Buildings in Flood Hazards. • All materials used in construction shall be flood compatible.
Residential Development	• Floor levels of all habitable rooms, or rooms with connection to sewer infrastructure shall not be less than the flood planning level. • Upon completion and prior to the occupation (where relevant), a certificate by a registered surveyor showing the finished ground and floor levels conform to approved design levels shall be submitted to Council. • Additions to existing buildings below the FPA will be only be permitted, with limitations, as follows: o where the floor level of the proposed addition is located **below** the FPL the maximum increase in floor area is not to exceed 10% of the floor area of the existing dwelling; or o where the floor level of the proposed addition is located **above** FPL but safe access is not available the increase in habitable floor space shall not exceed 100m^2. • Where additions are more than 0.5m below the FPL Council must be satisfied that the addition will not increase risk to inhabitants in the event of a flood. • Rebuilding part of a dwelling may be permitted provided the building maintains the same dimensions which result in the same impact on flood behaviour.
Commercial/ Retail/ Industrial Development	• Development shall incorporate measures to seal or flood proof buildings, to avoid activities or fittings susceptible to flood damage, or to store the contents of buildings above the 1% AEP level.
Subdivision	• Residential subdivision will not be permitted where any lot to be created will be fully inundated by a 1% AEP event and the creation of such lot will create the potential for increased intensity of development within the flood planning area.
Landfilling	• Landfilling is not permitted within the floodway. • The volume of flood storage must be maintained when filling in the flood storage. • Land filling proposals are to demonstrate consideration of AS3798 . • Survey plan prepared by a registered surveyor is required, showing the contour levels of natural surface, any existing fill and the designed contour levels for the finished work. • A report certified by a consulting engineer is required to detail the impact of the proposed fill on adjoining properties and, where levee banks are proposed, and the methods of internal drainage. • Applications shall be accompanied by a construction management plan to show o source of fill, including contamination assessment o an assessment of the impact of haulage vehicles on roads o precondition report of all haulage routes o details of method of compaction of fill and associated impacts: control of dust, sedimentation, water quality impacts, noise and vibration o contingency for containment of fill in the event of a flood during placement
Non-residential rural buildings	• Not permitted in "floodways". • Floor areas shall be located no lower than 0.5m below the FPL unless there are no alternative practical sites, in which case the building or structure must be designed to withstand the force of flowing floodwaters, including debris and buoyancy forces as appropriate and has been designed in accordance with the Australian Building Codes Board Standard - Construction of Buildings in Flood Hazards

Dungowan Dam / Valley – Properties Up Stream of Gunbil Bridge



STEP 4: SITE SPECIFIC



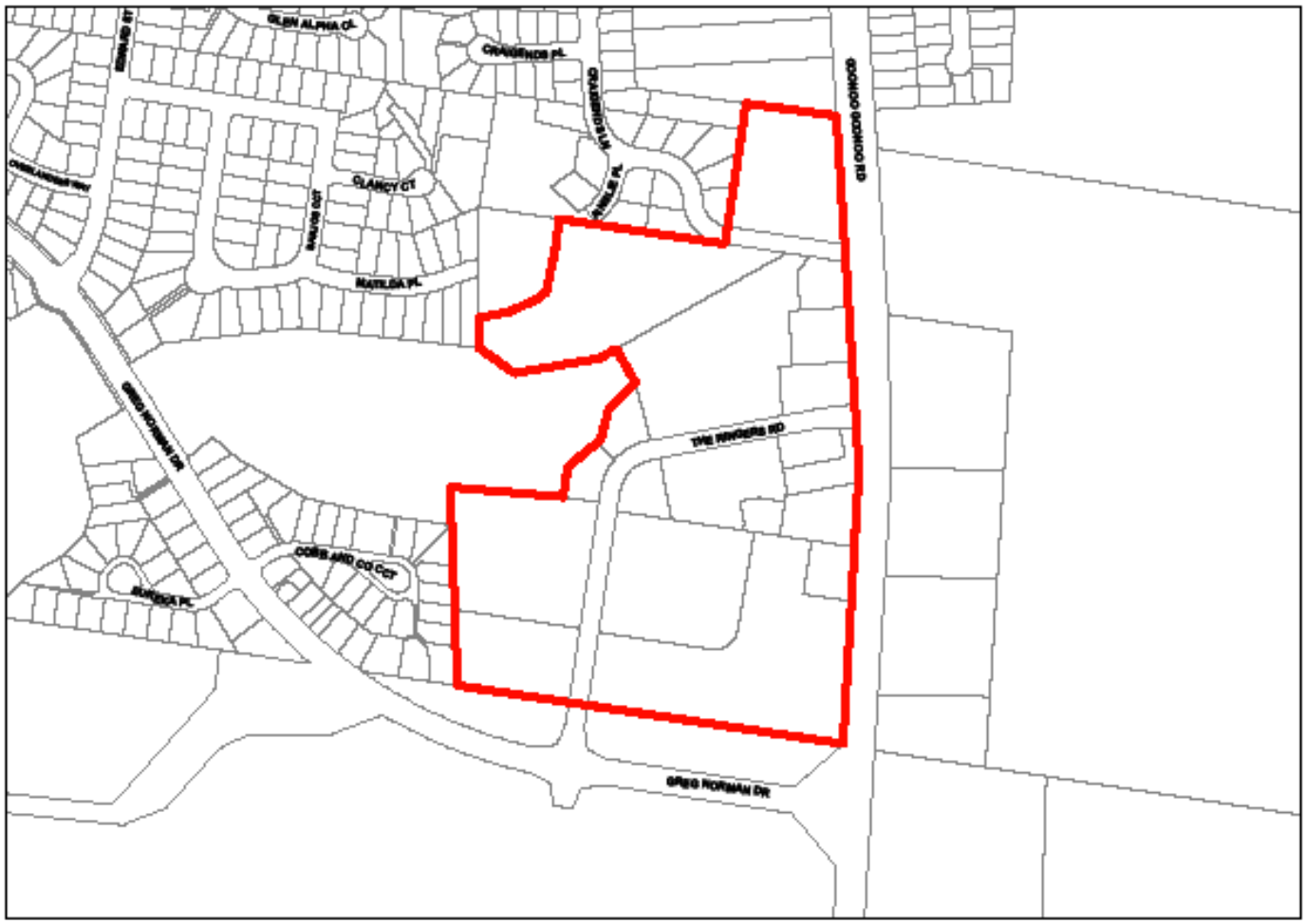
STEP 4: SITE SPECIFIC

Longyard Business Precinct

These are the development controls relating to development in the Longyard Business Precinct.

Land Use	• The Longyard Business Precinct is an important Gateway location for residents and visitors arriving to Tamworth and should present a vibrant and aesthetically pleasing entrance to the urban area. As such, the lots with Highway frontage are not intended for industrial forms of occupation or development (e.g., warehouses, vehicle repair and depots).
Road Network	• The road network within the Longyard Business Precinct is constrained by: the Highway frontage; the width and configuration of the Ringers Road and Craigends Lane; and, the dual purpose of Craigends Lane which accesses a residential neighbourhood. • Development proposals will be required to give consideration to the traffic impacts on this road network including the intersections with the New England Highway at Craigends Lane, the Ringers Road and Greg Norman Drive. This shall include cumulative impacts on the level of service at each intersection and the suitability of the geometric layout. • The characteristics of the Longyard Business Precinct and its proximity to the Regional Sporting Precinct require the installation of footpaths with developments and subdivisions.
The Ringers Road	• The Ringers Road represents an important movement corridor for vehicles and pedestrians and residents and visitors alike. • Any development of land fronting The Ringers Road shall incorporate sufficient building setback to allow for parking, landscaping and building presentation. • Design of development fronting The Ringers Road shall position loading facilities and storage and service areas so as not to detract from the streetscape.
Craigends Lane	• Development of the land fronting Craigends Lane will be required to recognise the potential impacts on the adjoining residential neighbourhood, including traffic, noise, lighting.
Relationship to Adjoining land	• In recognition of the mixed land uses in and around this precinct, development shall incorporate sufficient buffers to prevent land use conflict. These may take the form of landscaping, fencing, acoustic barriers, building setbacks or a combination of these. • The buffer shall include recognition of both the visual (e.g. differing bulk and scale) and operational impacts (e.g., loading/unloading, waste management, hours of operation) of developments.
Salinity	• Some areas within the Longyard locality are recognised to be affected by the presence of groundwater vulnerability and potential soil salinity which can result in the corrosion of concrete, as well as the deterioration of metal, masonry and bituminous structures/products. The following measures are designed to assist in avoiding this impact; • A report from a suitably qualified person is to be submitted indicating that consideration has been given to the possibility of ground water vulnerability in the structural design and construction of the building; and • Landscaping design shall incorporate suitable species of drought resistant and deep-rooted vegetation that is recognised for effectiveness in maintaining or lowering the level of the water table. Details of such planting are to be submitted to Council with the development.
Drainage	• Development applications shall include an assessment of the impact of the stormwater discharge on downstream capacity and water quality. • Information to assist in the preparation of this assessment is available from Council.

Longyard Business Precinct



STEP 4: SITE SPECIFIC

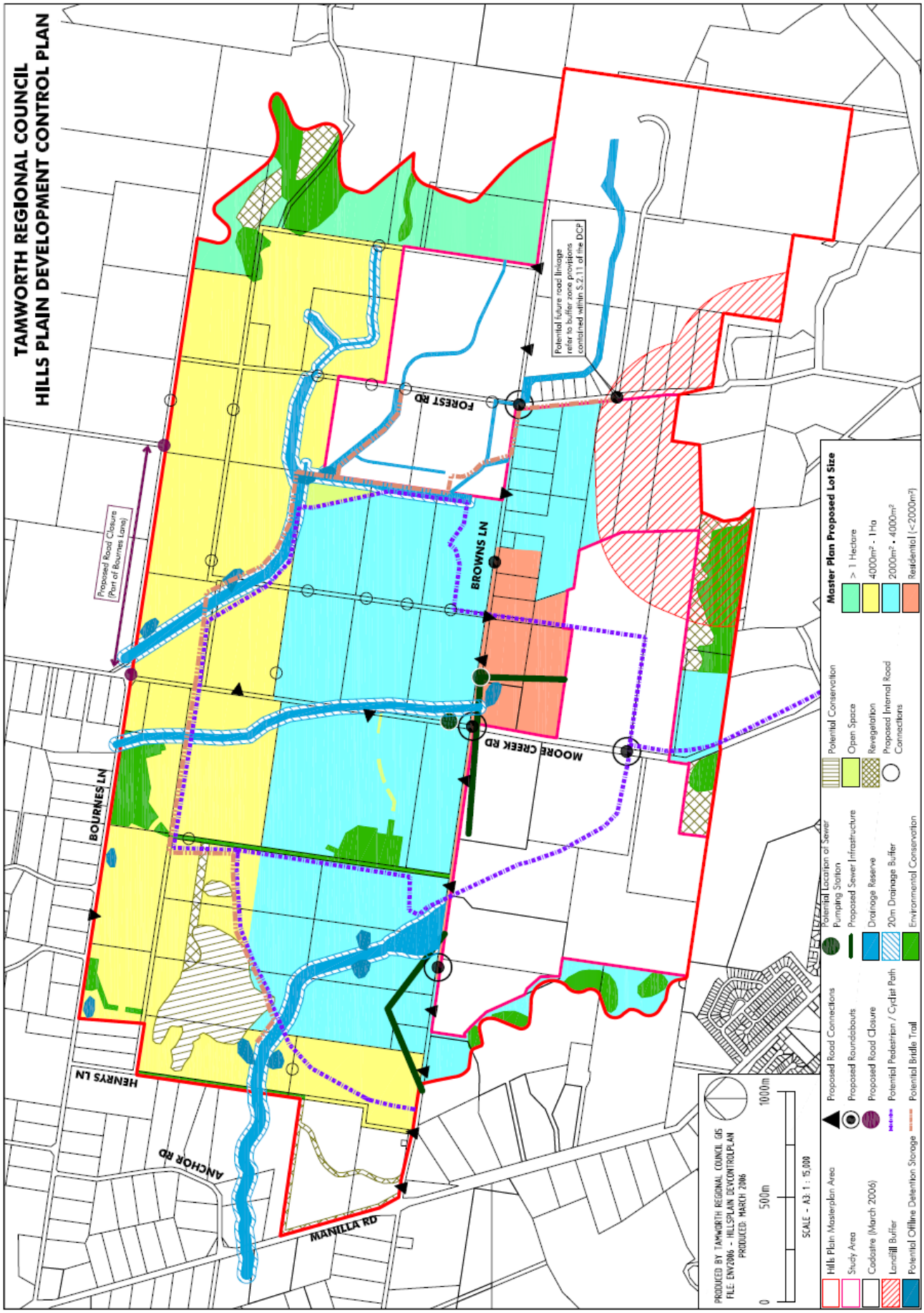
Hills Plain Development Controls

These are the 'deemed to satisfy' controls relating to development in Hills Plain. Please note **Step 2 – Type of Development** requirements may also apply to your development.

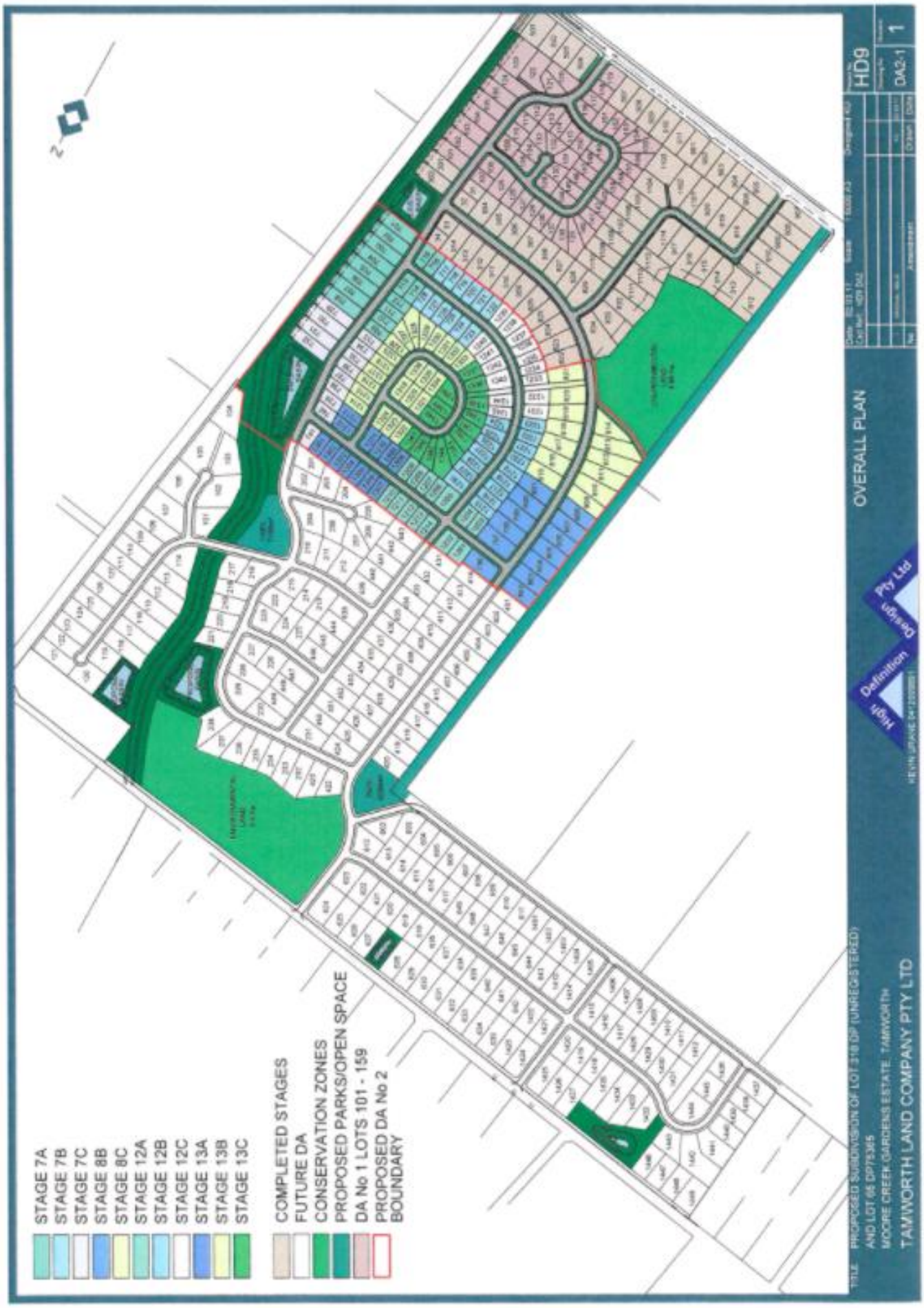
Road Design	• Road connections, pedestrian footpaths and bicycle paths are to be provided in accordance with the Hills Plain Concept Plan (below). • Moore Creek Road is the north-south collector road while Manilla Road is a sub-arterial road. Forest Road is a local road that also provides relief for Moore Creek Road. Browns Lane is a collector road for the three north-south roads (Moore Creek, Manilla and Forest Roads) whilst also providing local neighbourhood access. • Subdivision plans are to provide adequate space for future road upgrade works including: ○ 5 metre widening both sides of Moore Creek Road ○ 5 metre widening both sides of Browns Lane ○ 7 metre widening to the southern side of Bournes Lane (being that section of Bournes Lane located west of the Moore Creek Road intersection). ○ roundabout at Browns Lane/Moore Creek Road ○ intersection upgrade at Bournes Lane/Moore Creek Road ○ intersection upgrade at Browns Lane/Manilla Road • Direct vehicular access to individual allotments is not permitted from Moore Creek Road or Browns Lane. • Subdivisions which face Moore Creek Road and Browns Lane (where no direct vehicular access is available) should be designed so that future housing development will be orientated to face those major roads (rather than presenting back yards).
Open Space	• Open space must be provided in accordance with the Hills Plain Concept Plan and the applicable Section 94 Contributions Plan. • Open space must be provided in the Moore Creek Gardens subdivision (comprising Lot 317 & 318 DP 1230183, Lot 65 & 121 DP 753851, Lot 722 DP 562156 and Lot 7 DP 562157 on 10 October 2017 in accordance with the Moore Creek Gardens Concept Plan contained in this chapter.
Drainage	• Each lot is required to be designed to ensure dwelling site access outside the designated stormwater drainage areas. • There shall be no disturbance within 20 metres of the top of the bank of natural creek and drainage lines as identified in the Concept Plan. The 20 metre buffer from the drainage lines may be incorporated into new lots adjoining the drainage reserve however a building envelope will need to be identified outside the buffer. • Suitable scour protection to be provided at all discharge points to existing creek lines.
Building Design	• The colours of building materials are to maintain the rural theme of the locality with emphasis given to non-reflective cool greys, light browns, ochres and earthy hues that complement the materials and tones found in the area. Zincalume roofing is not permitted. • No solid fences are permitted for lots zoned R2 Low Density Residential shown on the Lot size Map as V – 2000m^2 or W – 4000m^2.

Ecology	• Subdivision proposals shall ensure that remnant vegetation is protected by the creation of covenants. • All native vegetation should be retained within the road reserves and supplemented with additional plantings of indigenous species. • Invasive plant species, either indigenous or exotic, should not be planted. • Removal of vegetation from land identified in the Hills Plain Concept Plan as *Environmental Conservation* is not permitted. • Landscaping plan must include revegetation of roadsides, creek lines and areas between remnant vegetation as shown in the Hills Plain Concept Plan. • Mature trees within the R2 Low Density Residential zone shall be retained, including dead trees with hollows. • A buffer from development should be incorporated into any proposed new lots adjoining areas identified for conservation in the Concept Plan (i.e. areas of White Box Woodland). The extent of this buffer should be no less than the Bushfire Asset Protection Zone (APZ). • All activities within the R2 Low Density Residential zone that may impact on the integrity of the habitat vegetation or corridor link, including under-storey clearing, will not be permitted outside identified building envelopes.
Water	• All lots within Hills Plain are to be serviced by reticulated water in accordance with the Development Servicing Plan. • In addition to water storage capacity required by BASIX commitments, rainwater storage is encouraged to allow the sustainability of lawns and gardens.
Sewer	• All lots within Hills Plain are to be serviced by connection to reticulated sewer in accordance with the Development Servicing Plan.
Geology	• Development shall demonstrate building envelopes and footprints are not affected by subsurface caverns and dolines.
Landfill Buffer	• Subdivision and development within the landfill buffer shown in the Concept Plan is determined by the provisions of the RU6 Transition zone and the Lot Size Map under the Tamworth Regional Local Environmental Plan 2010.

Hills Plain Concept Plan



Moore Creek Gardens Concept Plan



Tamworth Regional Development Control Plan 2010

STEP 4: SITE SPECIFIC

Heritage Conservation Areas

These are the development controls relating to development within Heritage Conservation Areas as identified on the Tamworth Regional Local Environmental Plan Maps. Please note, **Step 2 - Type of Development** requirements may also apply to your development.

Aims

- The locations identified in the Heritage Conservation Areas have been identified as possessing unique character, based on -
  - The presence of a significant number of heritage items which retain original character
  - Building form and materials representative of the Tamworth heritage
  - Subdivision pattern reflective of the original town plan
  - Streetscapes featuring mature trees in avenue plantings and gardens complementary to the built environment

- Items of the environmental heritage and Heritage Conservation Areas are defined in the Tamworth Local Environmental Plan 2010 and development applications require consideration of the requirements of clause 5.10.

Subdivision

- Subdivision proposals must be consistent with the prevailing subdivision pattern.
- Subdivision of a property containing a heritage item must:
  - Maintain existing building curtilage;
  - Provide for outbuildings and garaging; and
  - Ensure significant landscape features and vegetation are retained.

Alterations and/or additions to existing heritage items

- Destruction of important elements such as chimneys, windows and gables will not be permitted.
- Original details such as panelling, ceilings, skirtings, architraves or remaining door and window furniture, must be retained.
- Fire safety upgrading of buildings must be undertaken in accordance with the NSW Heritage Office manual titled “Heritage on Fire”.
- In relation to siting of alterations and additions, the following criteria apply –
  - Basement additions are not permitted at the front elevation.
  - Extensions or alterations to heritage items should not project beyond the front building line.
  - Side additions should not compromise the ability for driveway access to the rear of the block.
  - Front and side setbacks should be typical of the spacing between buildings located in the vicinity of the new development.
  - Extensions or additions to a building on a heritage listed site must only occur at the rear of the existing building or where not visible from the street.
- In relation to roofing -
  - Original roof material must be matched in material and colour.
  - Skillion roofs of additions must be pitched rather than flat and should be of a depth which is secondary to that of the main building.
  - Roof pitch of additions must match existing.
  - Roofing must maintain the scale and massing of the existing roof form.
  - All roof openings must be located on the rear pitch of the roof and not be visible from the street.
- In relation to size and scale -
  - Building bulk and large expanses of solid masonry should be avoided through the use of recesses, bays, vertical elements and/or the use of additional surface treatments/materials.
- In relation to materials and colours -
  - Extensions or alterations must retain existing materials and finishes and use compatible materials for new work.
  - New face brickwork should match the existing brick in colour and texture, and type of jointing and mortar colour.
  - Unpainted face brick or stone must remain unpainted and unrendered.
  - Original timber windows must be retained, repaired or reconstructed in existing buildings. New doors and windows must be of materials consistent with the existing building.
  - Colour schemes must match the period of the building.
  - Mock historical details must not be applied.

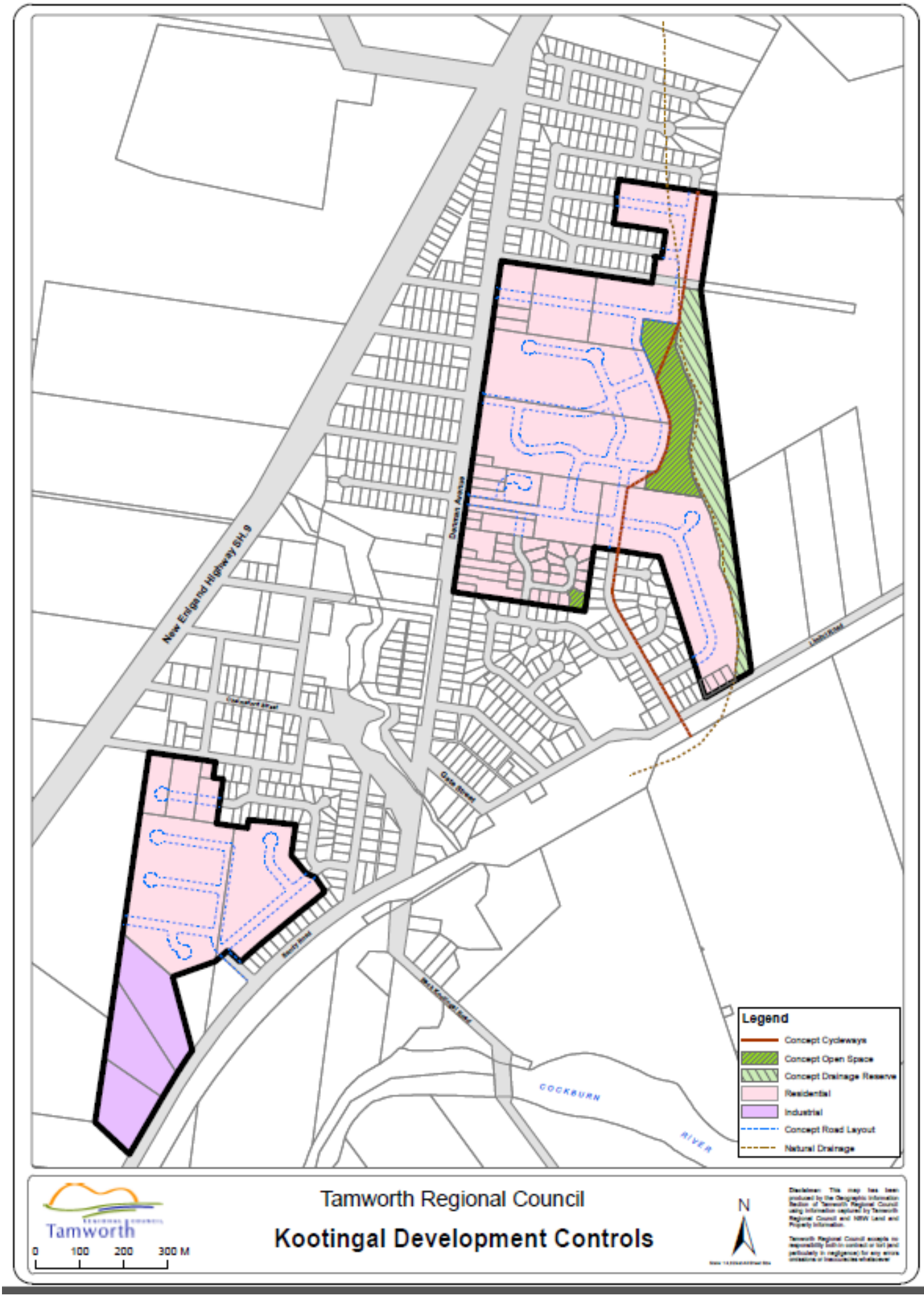
Change of Use of heritage items	• Adaptive reuse of a building must: o Retain all significant fabric of the heritage listed building. o Retain the general appearance of the building so that its original role can be readily interpreted.
Fencing to Heritage Items	• Original fences must be retained and maintained unless they are beyond repair. • Fences must be of a scale comparable with the street and the building. • Front fences must be of materials characteristic to the surrounding area, particular to the street and suitable to the era of the house. Examples include timber picket, low masonry, palisade and hedges. • Plain or colour treated metal fences are not permitted on any street frontage or side boundary in front of the street setback or heritage item.
New development	• Design shall give consideration to the following - o New development must have a hipped or gabled roof without unnecessary secondary projections. o New development must use materials which are consistent with the overall character of the streetscape, as defined by reference to the original older buildings in the immediate locality. o Openings in visible frontages must retain a similar ratio of solid to void as to that established by the original older buildings. o If a large area of glass is required, vertical mullions must be used to suggest vertical orientation. A large window could also be set out from the wall to form a simple square bay window making it a contributory design element rather than a void. o The quality and quantity of existing street front garden landscaping must be maintained. • Siting of new development shall give consideration to the following - o New development must be aligned to the predominant building line and must provide for the retention of curtilages around heritage buildings. o Where there is no identifiable setback pattern, new buildings should be setback at the same distance from the street as the adjoining properties. o New development must be sited behind the building line of any adjoining heritage item. o Development patterns such as subdivision layout, setbacks and spaces between buildings should be maintained. • Size and scale of new development must be consistent with surrounding buildings in terms of the average predominant height, size and proportions. • Selection of materials should include consideration of the following - o Bricks of mixed colours (mottled) and textured 'sandstock' bricks are not permitted. o Building bulk and large expanses of solid masonry must be avoided through the use of recesses, bays, vertical elements and/or the use of additional surface treatments/materials. o Corrugated galvanized iron (or zincalume finish) is a most appropriate roofing material for new buildings in historic areas.
New Ancillary Structures	• Any ancillary structures (e.g. carport, garage, shed) must: o not be located between the main dwelling front building line and the street frontage; o be no greater than one storey with an attic; o must be constructed of materials complementary to the main dwelling. Colourbond wall sheeting is not permitted; o be located between the rear of the dwelling and the rear boundary. • Garages must: o have simple rectangular plans; o have doors restricted to single car width; o have a roof form which is gabled or hipped with roof pitch equal or less than that of the main dwelling; o be detached from the existing house; o be set to the rear of the dwelling; o constructed of materials of simple character i.e. weatherboards, vertical shiplap boards and corrugated metal roof sheeting; o on sloping sites be located in the basement. • Carports must: o be of timber frame construction. Standard steel frame carports and garages are not appropriate; o have a roof pitch slightly lower than that of the main building – generally 25 – 30°; o be detached from the existing house; o be set to the rear of the dwelling.

STEP 4: SITE SPECIFIC

Kootingal

These are the development controls relating to development in the town of Kootingal. Please note, **Step 2 – Type of Development** and **Step 3 – General Development Specifications requirements** may also apply to your development.

Open Space	• Any subdivision development will require public open space provision within the areas of Kootingal as identified in the Kootingal DCP Map (below) and the applicable Section 94 Contributions Plan.
Subdivision	• Subdivision proposals must be consistent with the prevailing subdivision pattern as per the Kootingal DCP Map (below). • Subdivision plans need to provide infrastructure suitable for future upstream and/or downstream development.
Drainage	• Development proposals will be required to give consideration to the traffic impacts on the road network including the intersections with the New England Highway at Sandy Road and Denman Avenue.
Road Design and Network	• The road hierarchy shall be defined as per the Kootingal DCP Map (below). • Road connections, pedestrian footpaths and bicycle paths are to be provided in accordance with the DCP Map (below). • Subdivision plans need to provide for future connectivity.
Water Storage	• In addition to water storage capacity required by BASIX commitments, rainwater storage relative to the size of a property is encouraged to allow for the sustainability of lawns and gardens. • Rainwater tanks are to be located behind the street setback of the existing dwelling and suitably screened where visible from a public place or street. • Development properties within the confines of Bushfire Prone Land that do not have full mains pressure available are required to have at minimum 10,000 Litres water storage for firefighting purposes.

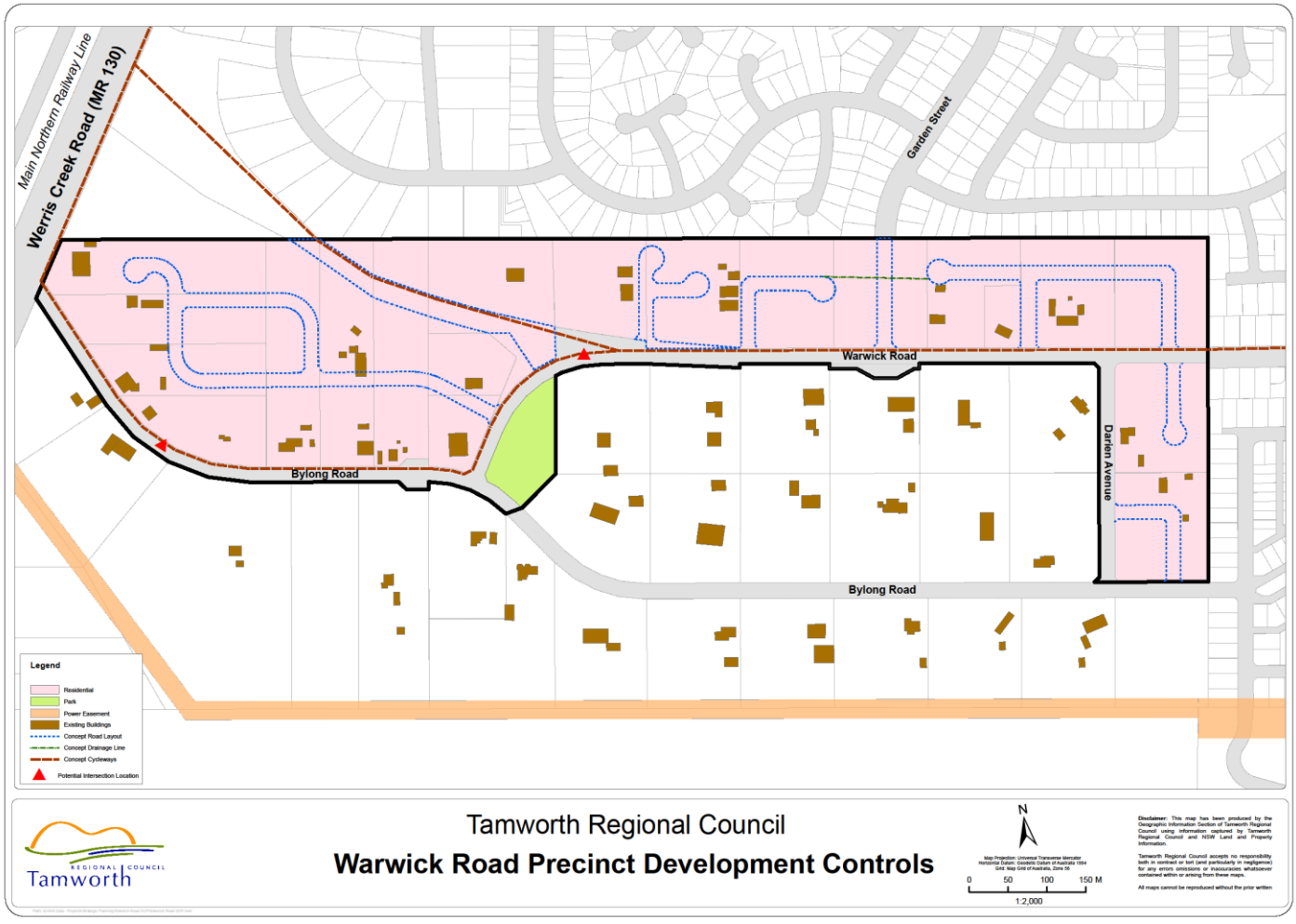

New England Highway SH.9
Duncan Avenue
Clyde Street
Rocky Road
COCKBURN
RIVER
Legend
Concept Cycleways
Concept Open Space
Concept Drainage Reserve
Residential
Industrial
Concept Road Layout
Natural Drainage
Tamworth
0 100 200 300 M
Tamworth Regional Council
Kootingal Development Controls
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STEP 4: SITE SPECIFIC

Warwick Road Precinct

These are the development controls relating to development in the Warwick Road Precinct as identified on the DCP Maps. Please note, **Step 2 – Type of Development** and **Step 3 – General Development Specifications** requirements may also apply to your development.

Open Space	• Any subdivision development will require Open Space arrangements in accordance with the applicable Section 94 Contributions Plan.
Drainage	• Development applications shall include an assessment of the impact of the stormwater discharge on downstream capacity and water quality.
Road Design and Network	• Access to the area is to be provided in accordance with the Warwick Road Precinct DCP map (below). • Road connections, pedestrian footpaths and bicycle paths are to be generally provided in accordance with the Warwick Road Precinct DCP map and the applicable Section 94 Contributions Plan. • All future road reserves are to be a minimum of 20 metres. • Subdivision plans are to provide adequate space for future road upgrade works including: ○ approximately 7 metre widening of sections of Warwick Road. ○ intersection upgrades along Warwick Road. ○ intersection upgrades along Bylong Road.
Salinity	• Saline soils can decrease the life span of some bricks and concrete structures and requires salinity management strategies. Salinity issues are known to the area and relevant details are to be provided with any development proposal, addressing the issue.
Landscaping	• Given that that there is known to be saline soils in the area, it is recommended that appropriate species is selected. • The Subdivision Certificate will not be issued until the landscaping has been undertaken in accordance with the approved plan.

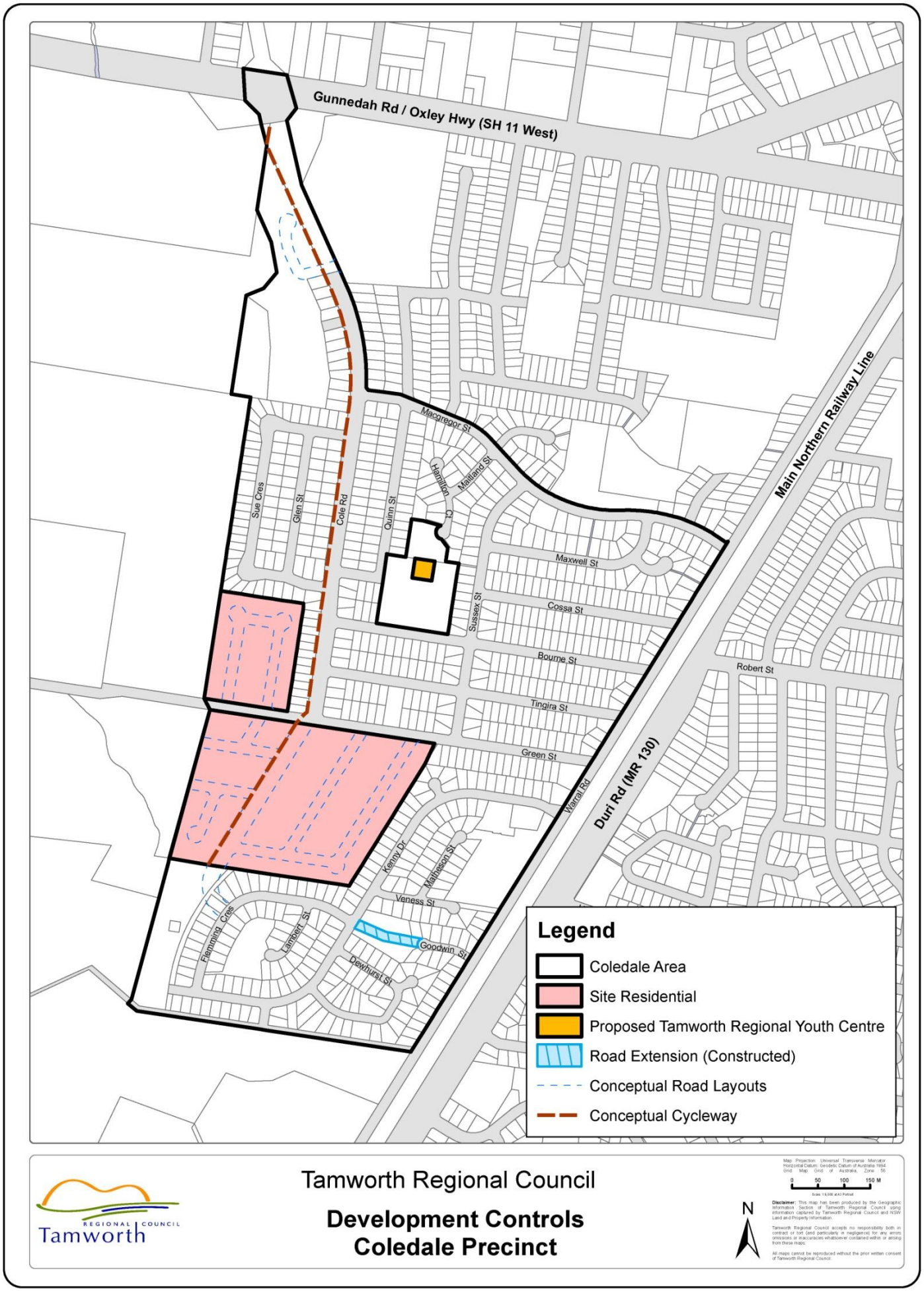


STEP 4: SITE SPECIFIC

Coledale Precinct

These are the development controls relating to development in the Coledale Precinct as identified on the DCP Maps. Please note, **Step 2 – Type of Development** and **Step 3 – General Development Specifications** requirements may also apply to your development.

Subdivision	• Subdivision proposals must be consistent with the prevailing subdivision pattern as per the Coledale DCP Map (below).
Drainage	• Development applications shall include an assessment of the impact of the stormwater discharge on downstream capacity and water quality.
Road Design and Network	• Access to the area is to be provided in accordance with the Coledale Precinct DCP map. • Development proposals will be required to give consideration to the traffic impacts on the road network including the intersections with the Gunnedah Road at Cole Road (extension). • Road connections, pedestrian footpaths and bicycle paths are to be generally provided in accordance with the Coledale Precinct DCP map and the applicable Section 94 Contributions Plan. • All future road reserves are to be a minimum of 20 metres. • Subdivision plans are to provide adequate space for future road upgrade works including: ○ development of sections and extensions to Cole Road. ○ intersection upgrades along Green Street. ○ intersection upgrades along Gunnedah Road.
Landscaping	• The Subdivision Certificate will not be issued until the landscaping has been undertaken in accordance with the approved plan.
Aboriginal Heritage	• An indigenous heritage items are located within or near the Coledale Precinct including near Flemming Crescent in the south west of the locality. This will limit any development in this location and is to be kept clear of any works, road works or residential development. • Consultation with the Tamworth Local Aboriginal Land Council shall be undertaken to identify the precise location of any Heritage items prior to any works commencing in the area.


Gunnedah Rd / Oxley Hwy (SH 11 West)
Main Northern Railway Line
Duri Rd (MR 130)
Macgregor St
Hamilton Cl
Maitland St
Sue Cres
Glen St
Cole Rd
Quinn St
Maxwell St
Sussex St
Cossa St
Bourne St
Robert St
Tingira St
Green St
Warral Rd
Kenny Dr
Matheson St
Veness St
Fleming Cres
Lambert St
Goodwin St
Dewhurst St
Legend
Coledale Area
Site Residential
Proposed Tamworth Regional Youth Centre
Road Extension (Constructed)
Conceptual Road Layouts
Conceptual Cycleway
Tamworth Regional Council
Development Controls
Coledale Precinct
N

STEP 4: SITE SPECIFIC

Tamworth Business Park

These are development controls relating to development in the Tamworth Business Park as identified on the DCP Maps. Please note, **Step 3- General Development Specifications** requirements may also apply to your development.

Industrial Development Controls Chapter

- Development within the Tamworth Business Park is required to comply with the Industrial Development Controls Chapter, except as otherwise nominated below**.**

Building Setbacks

- The following front building setbacks must be maintained

Location	Distance
New Winton Road	15m
Country Road	5m
All other roads	5m

Design

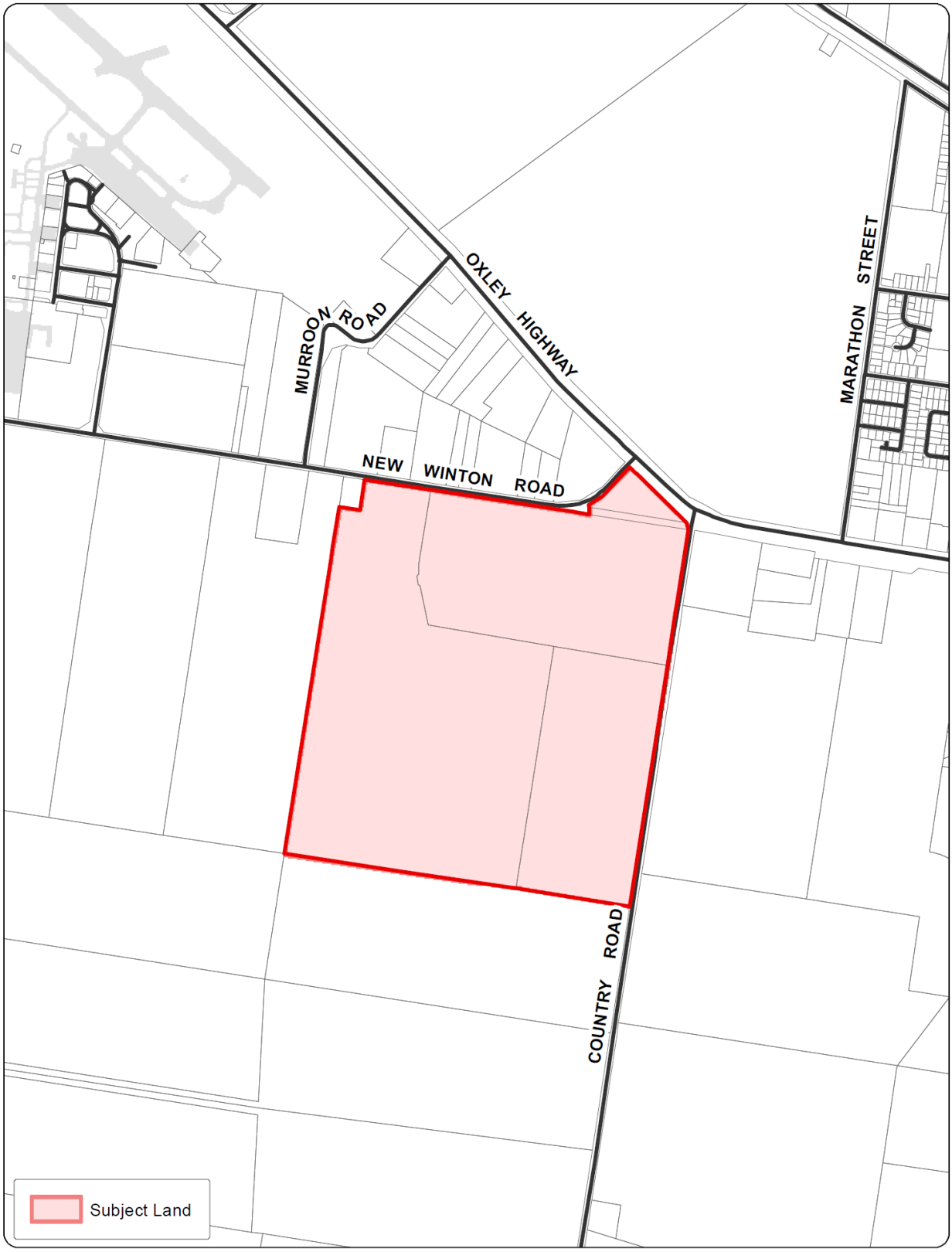
- The setback to New Winton Road includes a landscaping buffer of 7.5m.
- No concession for secondary frontage.
- Detail and architectural interest should be incorporated at visually prominent building locations such as at the end of a street or where visible from a public road or place.
- Buildings should include low scale elements such as display areas, offices and staff amenities at the front of premises.
- Low scale building elements must be constructed in brick, painted finished concrete or light weight architectural cladding and include large windows.
- Corner buildings must address both street frontages.
- A full schedule of colours and materials must accompany the development application.
- Roofing and wall materials must be non-reflective.
- Services such as air conditioners are to be concealed in the façade of the building or screened with landscape or built elements.
- The design of buildings shall give consideration to the privacy of adjoining and/or adjacent residences.
- External storage areas visible from a public road are to be screened.
- Blank walls and loading docks that cause significant visual impact when viewed from a residence or public road must be screened with shrubs, trees or decorative fencing.
- The maturity of the landscaping buffer at the time of the development application for a building/s will be taken into consideration in determining appropriate façade treatments.

Landscaping

- A landscaping plan that details the species selected, maturity at planting, location and ultimate height shall be submitted with the development application.
- On lots fronting New Winton Road earth mounding should be incorporated into the buffer landscaping as a method of reducing noise and lighting impacts.
- For lots located on other roads within the subdivision, the front 5m of the setback must be landscaped in conjunction with any development.
- Council may require landscaping of other areas to supplement the existing buffer and proposed building landscaping to assist in improving the visual appearance of the development.
- A condition may be imposed on any development consent that a cash bond or bank guarantee to the value of $2500 shall be lodged to ensure that site landscaping is maintained for a period of two years from issue of an Occupation Certificate where water conservation measures do not prevent the establishment of landscaping.
- Landscaping or shade structures shall be provided in outdoor car parking areas where >10 spaces are required, to provide shading and soften the visual impact of large hard surfaces.
- Landscaping shall comprise only low maintenance, drought and frost tolerant species.

Traffic and Access	• Lots with frontage to Country Road may have individual vehicle accesses where Council is satisfied that Country Road is of a sufficient width to accommodate turning traffic without compromising the future heavy vehicle bypass. • Lots with frontage to New Winton Road are restricted to a single access/egress to be shared by two adjoining lots to minimise the impact on adjacent residences. • The location of a vehicle access shall have regard to minimising headlight glare for the residents of New Winton Road. • The number of access points from the other lots to any one street frontage is limited to 1 ingress and 1 egress.
Parking, Traffic and Access	• Refer to *Step 3: General Development Specifications – Parking, Traffic and Access Controls*
Noise	• Windows, doors and other wall openings shall be arranged to minimise noise impacts on residents where the development is located adjoining or adjacent to an existing residence. • External plant (generators, air conditioning plant etc.) shall be enclosed to minimise noise nuisance to surrounding residences. Details, including the proposed location of external plant shall be submitted with the development application.
Airport	• A condition will be imposed of any development consent to require that notification be provided to the Airport Manager a minimum of 21 days before the operation of a crane for building work. • The Tamworth Regional Local Environmental Plan 2010 contains controls relating to the construction of buildings within the vicinity of the Tamworth Airport which may impact on the height and construction standards.
Bio Security	• The allotments located on Country Road are prohibited from: o keeping, storing, breeding or processing poultry or avian species; o the manufacturing of vaccine used in the treatment of animals; o the establishment of a laboratory which produces, or has the potential to produce pathogens dangerous to poultry or food o production; and o the storing, manufacture or use of offal or offal by-products, except where such products are frozen or in transit. • Council may refer any development application in the Tamworth Business Park to the owner of the Country Road chicken hatchery if it is considered that there may be a bio security risk to production. Where, the owner cannot demonstrate that there is no potential hazard, Council may refuse the application on those grounds.

Tamworth Business Park



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Date Printed: 16 October 2014
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Map Projection: Universal Transverse Mercator
Horizontal Datum: Geodetic Datum of Australia 1994
Grid: Map Grid of Australia, Zone 56

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Scale: 1:15,000 at A4 Portrait

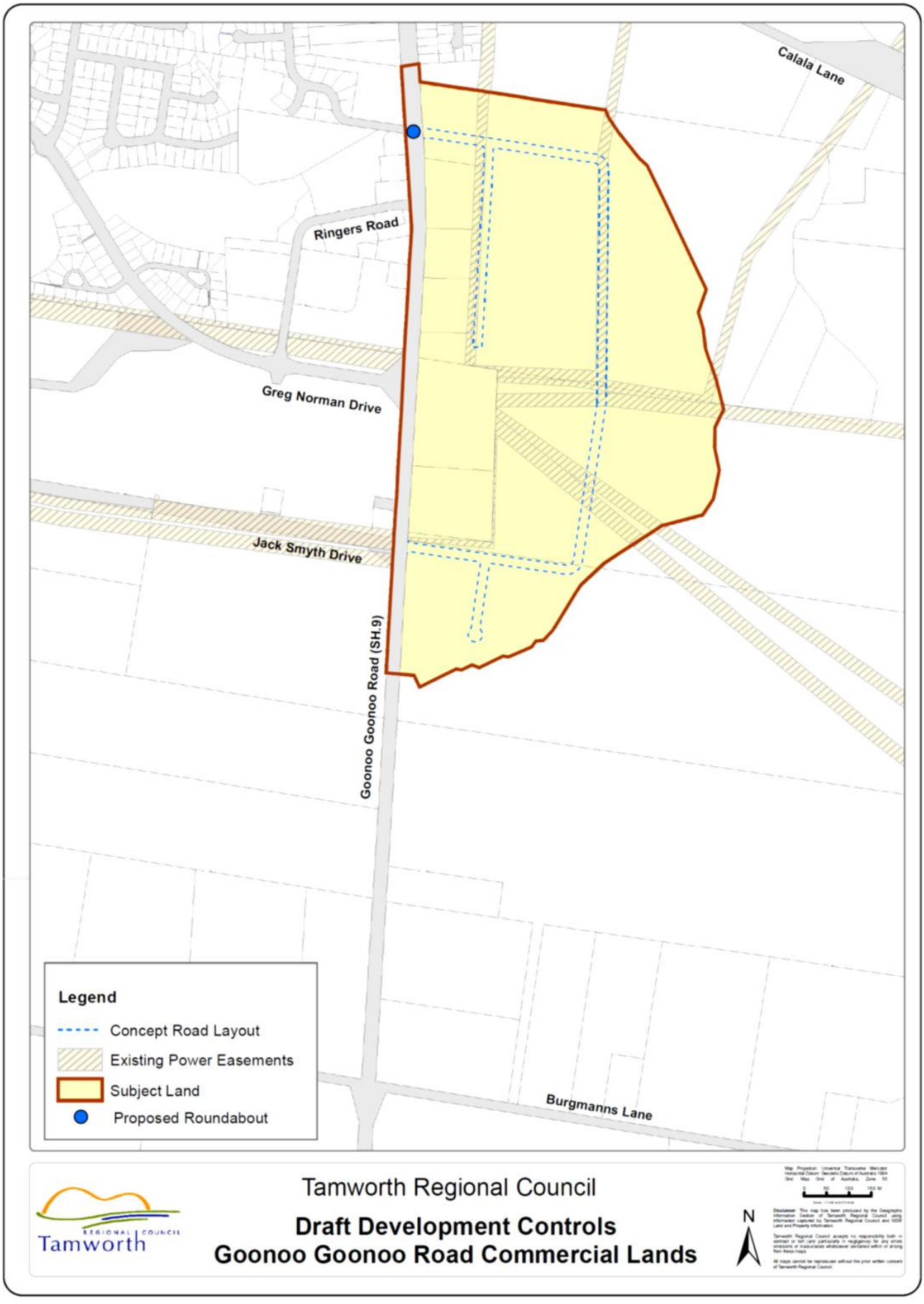
Tamworth REGIONAL COUNCIL

STEP 5: SITE SPECIFIC

Goonoo Goonoo Road Commercial Lands Precinct

These are the development controls relating to development in the Goonoo Goonoo Road Commercial Lands Precinct as identified on the DCP Maps. Please note, **Step 2 – Type of Development** and **Step 3 – General Development Specifications** requirements may also apply to your development.

Development Controls Chapters	• Development within the Goonoo Goonoo Road Commercial Lands Precinct is required to comply with the Industrial Development Controls Chapter and/or the Commercial/Retail Development Controls Chapter, except as otherwise nominated.
Subdivision	• Subdivision proposals must be consistent with the prevailing subdivision pattern as per the Goonoo Goonoo Road Commercial Lands DCP Map.
Drainage	• Development applications shall include an assessment of the impact of the stormwater discharge on downstream capacity and water quality. • Consideration should be given for the provision of a downstream easement to Goonoo Goonoo Creek.
Road Design and Network	• Access to the area is to be provided in accordance with the Goonoo Goonoo Road Commercial Lands DCP map. • Access to the Commercial Lands Precinct is limited to two locations along Goonoo Goonoo Road: ○ at Jack Smyth Drive; and ○ at Craigends Lane. • Direct access to Goonoo Goonoo Road is not permitted from the development of future allotments. • Development proposals will be required to give consideration to the traffic impacts on the road network. • Road connections, shared use pedestrian paths are to be generally provided in accordance with the Goonoo Goonoo Road Commercial Lands DCP map and the applicable Section 94 Contributions Plan.
Landscaping	• A landscaping plan that details the species selected, maturity at planting, location and ultimate height shall be submitted with the development application.


Calala Lane
Ringers Road
Greg Norman Drive
Jack Smyth Drive
Goonoo Goonoo Road (SH.9)
Burgmanns Lane
Legend
Concept Road Layout
Existing Power Easements
Subject Land
Proposed Roundabout
Tamworth Regional Council
Draft Development Controls
Goonoo Goonoo Road Commercial Lands
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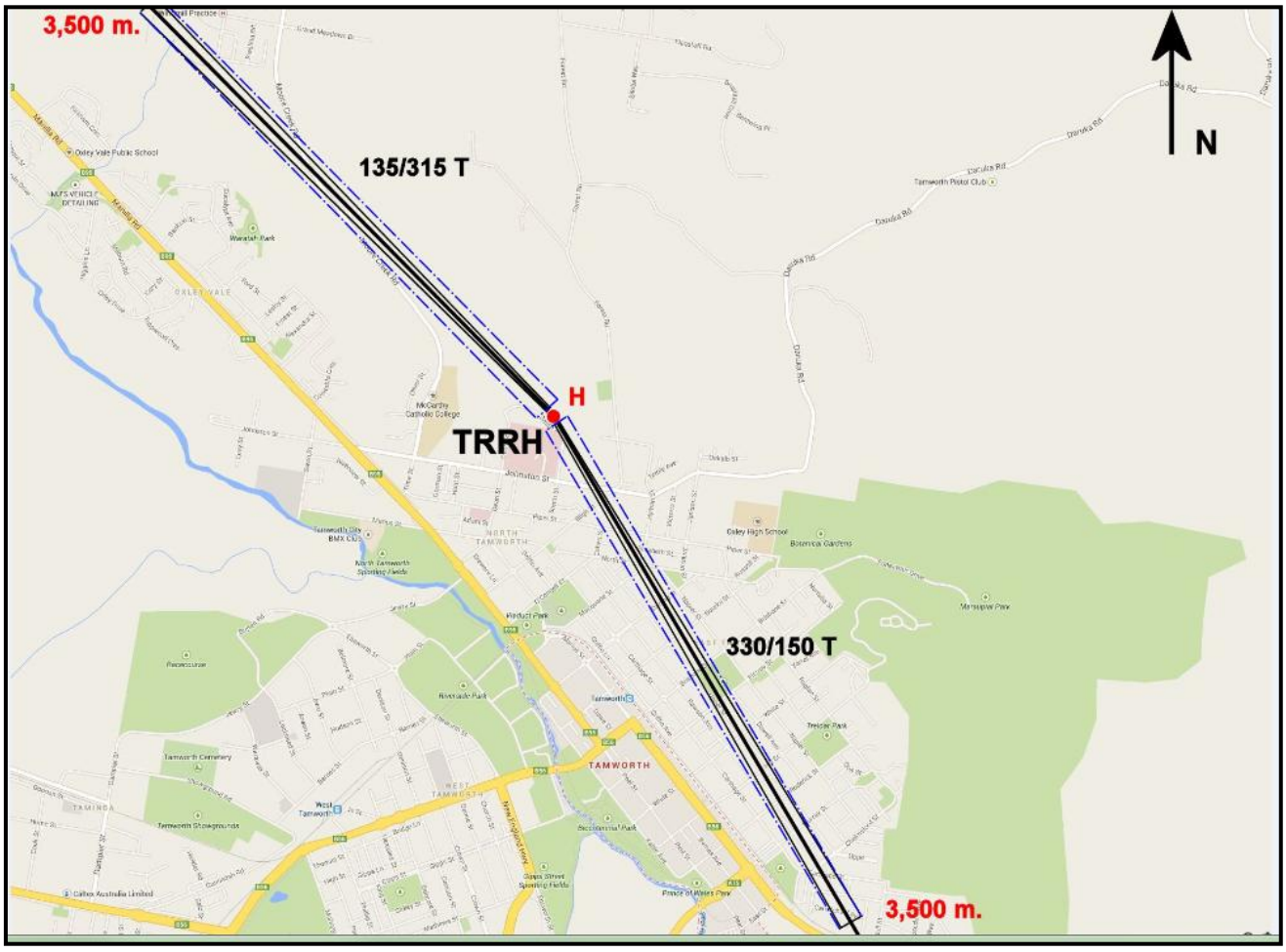
STEP 4: SITE SPECIFIC

Westpac Rescue Helicopter Flight Path

These are development controls relating to development in the Westpac Rescue Helicopter Flight Path as identified on the DCP Maps. Please note, **Step 3- General Development Specifications** requirements may also apply to your development.

Protection of Flight Path	• The approach and departure paths to the helicopter landing site must be protected from obstructions. • The protection area of each flight path shown on the plan below measures 3.5km x 150m. • An obstacle free gradient of 2.5^{o} must be maintained on both the approach and departure path. • Council may refer any development application located in the flight path to the Westpac Rescue Helicopter or their nominated representative where it is considered that the flight paths may be compromised.

Flight Paths to a Distance of 3.5km from Helicopter Landing Site at Tamworth Rural Referral Hospital



STEP 4: SITE SPECIFIC

Arcadia Estate

These are development controls relating to development in the Arcadia Estate. Please note, **Step 3- General Development Specifications** requirements may also apply to your development.

Desired Future Character Statement

The Desired Future Character Statements below set the Council's vision for the Arcadia Estate. Development applications must, in addition to being consistent with the Development Control Plan (DCP), support the following:

- ***Provide a mixture of housing typology and lot sizes which promote greater housing choice and a diverse community.***
- ***High quality urban design principles are a prerequisite for the successful establishment of the Arcadia Estate. These principles relate to street amentity, design standards for buildings and linkages between the built form and high quality recreational open space.***
- ***The Burkes Gully corridor is the "green spine" for the Arcadia Estate and must incorporate the principles of a living stream which enhance the natural feature and contribute to the urban landscape and opportunity for passive recreation.***

Other Development Controls Chapter	• Any development is required to comply with the applicable Development Control's Chapter, except as otherwise nominated below.
Subdivision	• Subdivision proposals must be generally consistent with the prevailing subdivision pattern as shown in Figures 1 and 2. • Where residential development adjoins land zoned RE1 Public Recreation or a drainage/natural corridor (Burkes Gully Corridor), lots are to be designed to enable a future dwelling to front the open space or Burkes Gully Corridor. • For optimal orientation of future residential dwellings, any subdivision must be generally consistent with Figures 1 and 2. • Where smaller lots are proposed they are encouraged be located close to the neighbourhood centre, public transport or adjacent to high amenity areas such as the Burkes Gully corridor or parks. • An alternative lot orientation may be considered where other amenities such as views and outlook over open space are available, and the design demonstrates appropriate solar access and overshadowing outcomes on adjoining lots. • All corner lots should be an adequate size to cater for a dual occupancy development.



Figure 1: Arcadia Structure Plan



Figure 2: Lot Orientation

Density

- All applications for residential subdivision and the construction of residential buildings are to demonstrate that the development meets or contributes to the net minimum residential density of 10 dwellings / hectare.

  ** Dwelling density – means the ratio of the number of dwellings to the area of the land to be occupied by the development, including internal streets and half the width of any roads adjoining the development that provide vehicular access to the development but excluding land use for public open space and non-residential purposes as shown in Figure 3*



Figure 3: Example of calculating net residential density

- A variety of lot sizes and housing types are encouraged to be developed throughout the area to cater for the growing needs of the community. An example housing types and lot typology is provided in Figure 4.



Figure 4: Housing types and lot typology

Compact Lots

This section of the DCP applies where development for medium density is proposed in areas identified in the structure plan as "compact lots" and has an area less than the minimum lot size shown on the lot size map of Tamworth Regional Council Local Environmental Plan 2010.

Medium density developments in these areas will be considered against the controls below and not the dual occupancy or multi dwelling controls contained in other parts of the DCP.

<table>
<tr><th></th><th>Controls</th></tr>
<tr><td>Setbacks</td><td>
• The following minimum setbacks apply;
<table>
<tr><th></th><th>Building facade fronting road</th><th>Building facade fronting open space or Burkes Gully (rear laneway vehicle access)</th></tr>
<tr><td>Front Setback</td><td>4.5m</td><td>3.5m</td></tr>
<tr><td>Articulation Zone</td><td>3.0m</td><td>2.0m</td></tr>
<tr><td>Setback to Garage</td><td>5.5m and 1m behind building line</td><td>0.5m</td></tr>
<tr><td>Rear Setback</td><td>6m</td><td>6m</td></tr>
<tr><td>Side Setback (detached)</td><td>BCA</td><td>BCA</td></tr>
<tr><td>Secondary Street frontage</td><td>2m</td><td>2m</td></tr>
</table>
Examples of the setback controls are shown in Figure 5.
</td></tr>
<tr><td>Articulation Zone</td><td>
• This zone allows building elements to project 1.5m forward of the front building line, and may include entry features and porticos, balconies, decks, verandahs, shading devices, pergolas and bay windows. A carport is not considered part of the articulation zone.
• Up to 25 per cent of the articulation zone, when viewed from above, may include building elements. An awning or other feature over a window and a sun shading feature are not included in the maximum area of a building element in the articulation zone.
</td></tr>
<tr><td>Private Open Space</td><td>
• Must have a minimum area of 24m^2 and have a minimum dimension of 4m.
• Must be accessible from the main internal living area.
</td></tr>
</table>

	• The principle open space area must not include utilities or storage areas but can include hard landscaped areas and outdoor living areas.
Solar Access	• At least 50% of the principle private open space must receive 3 hours or more of sunlight between 9am – 3pm on June 21. • Any two-storey development must be accompanied by shadow diagrams which clearly identify adjacent dwellings and their principle private open space. At least 50% of the principle private open space must receive 3 hours or more of sunlight between 9am – 3pm on June 21 (winter solstice).
Privacy	• Upper-level openings on side facades which are less than 3m from a neighbouring dwelling must be; o At least 1.5m above the floor level; OR o Screened; OR o Fixed with translucent glazing. • Habitable rooms overlooking the principle private open space of a neighbouring dwelling are to have sill heights at least 1.5m above the floor level. • A habitable room should address the public domain to provide passive surveillance.
Landscaping	• A minimum of 15% of the site must include soft landscaping (300m2-450m2 lots). • The landscaped area should be at least 1.5m wide. • Landscaped open space can be considered as part of the private open space calculations. • Landscaping is encouraged to define the entrances of individual dwellings. At least 25% of the area forward of the building line must contain landscaped area. • Each lot must include at least 1 small tree (5m-8m at maturity) and 1 large deciduous tree (8m-15m at maturity). • Councils 'Urban Street Tree Management Plan'is a guide for suitable tree species selection.
Site Coverage	• A maximum site coverage of 60% is permitted. • Site coverage includes impermeable areas such as driveways and footpaths but excludes any unenclosed balconies, decks, pergolas and the like.

<table>
<tr><td>Parking & Garages</td><td>

Parking arrangements for each dwelling are as follows;

<table>
<tr><th>Number of bedrooms in each dwelling</th><th>Minimum Parking aces per dwelling</th></tr>
<tr><td>1</td><td>1 (enclosed)</td></tr>
<tr><td>2</td><td>1 (enclosed)</td></tr>
<tr><td>3</td><td>2 (1 enclosed)</td></tr>
</table>

Parking of one vehicle behind another in a stack arrangement is acceptable.
The garage must be setback 1m behind the building line and 5.5m from the front boundary.
Only a single garage is permitted on compact lots where access is provided from the primary street frontage and the lot width is less than 12m.
Double garages are permitted on compact lots where access is provided from a rear laneway or from the front if the lot width is greater than 12m.
Garages located on corner lots should be accessed from secondary street

</td></tr>
<tr><td>Fences</td><td>

Front fencing (all fences forward of the building line) is to be a maximum of 1.2m in height and an open style design
Fencing which directly adjoins public open space or Burkes Gully Corridor must be a maximum of 1.2m in height and predominately open to ensure passive surveillance.

</td></tr>
<tr><td>Water Sensitive Essentials</td><td>

Developments must comply with the Water Sensitive Essentials nominated in both the General Housing & Ancillary Structures Development Controls Chapter.

</td></tr>
<tr><td>S7.11 Contributions</td><td>

Medium density developments located in the compact lot areas and corner lots may apply for the wavering of section 7.11 Contributions.

</td></tr>
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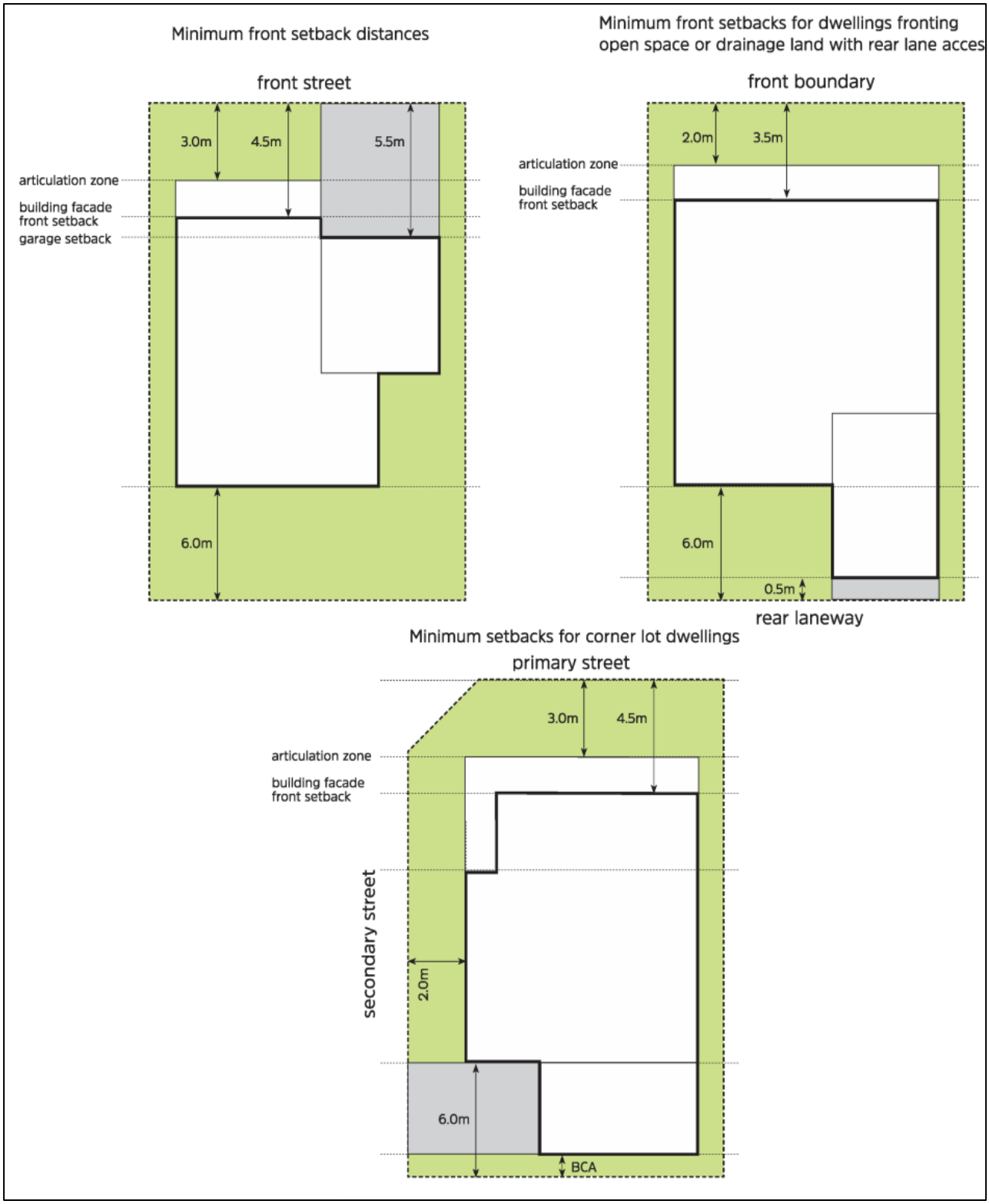


Figure 5 – Compact Lots

Dual Occupancy and Multi Dwelling Development	• Any dual occupancy or multi dwelling development outside of the nominated compact lot will be required to comply with the applicable Development Control's Chapter, must comply
Corner Lots	• All corner lots are to be designed for a dual occupancy development. • All dual occupancy development on corner lots are to suitably address and provide access from separate street frontages.
Traffic, Access & Road Network	• The road layout and hierarchy of the street network must be generally consistent with Figures 6-13. • Figure 6 identifies key intersections with the treatments for the identified intersections to be determined in consultation with Council staff to ensure a functional road network. • Figure 6 identifies local roads which are to be 11m wide. This is based on anticipated traffic volumes, proximity to open space and neighbourhood centre. Council will only vary this where it can be demonstrated a reduced pavement width (9m wide) will not have an adverse impact on the traffic network. All other local roads can either be 11m or 9m wide. • No Local Roads are to be longer than 250 metres without an intersection and/or traffic calming treatment. • Traffic calming measures are to be implemented in suitable locations to reduce vehicle speeds. Traffic calming measures include passive measures such as narrowing, minimising widths of road pavements, designation of slow speed streets and use of rumble strips at pedestrian crossing points and intersections. • Where two Local Road Type B (9m Carriageway) intersect each other, it must be identified how on-street parking will be managed to ensure that service vehicles can operate unimpeded. • The principles of water sensitive urban design are to be considered in the road network for any new streets. • The intersection treatments for the identified key intersections shall be designed in consultation with Council staff to ensure a functional road network. • Direct individual lot access onto Werris Creek Road/Duri Road and Burgmanns Lane is not permitted. • Persons creating allotments adjoining Burgmanns Lane are required to create restrictions on the use of land under Section 88B of the Conveyancing Act 1919 to legally deny direct vehicular access onto Burgmanns Lane.

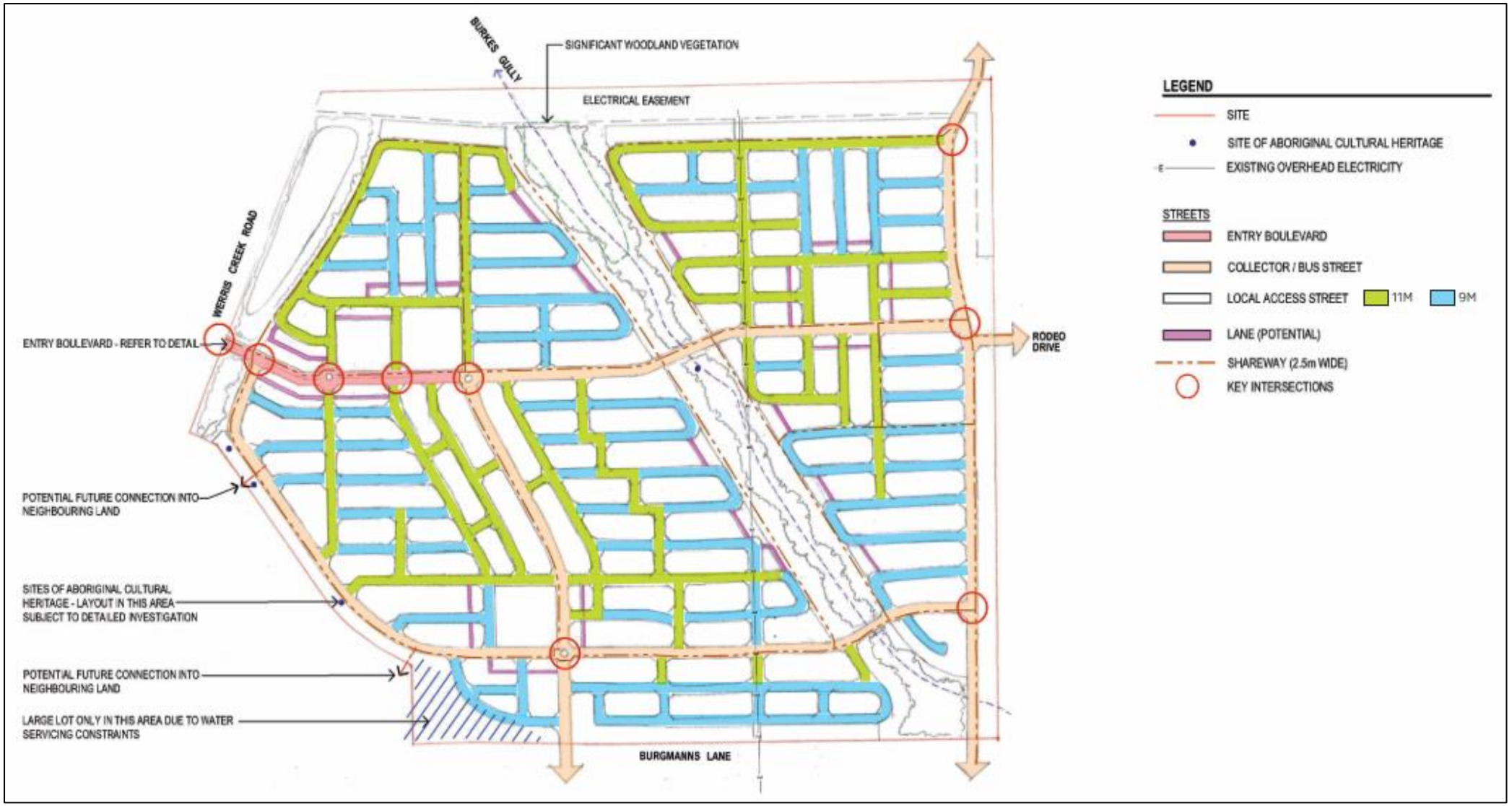


Figure 6 – Road network

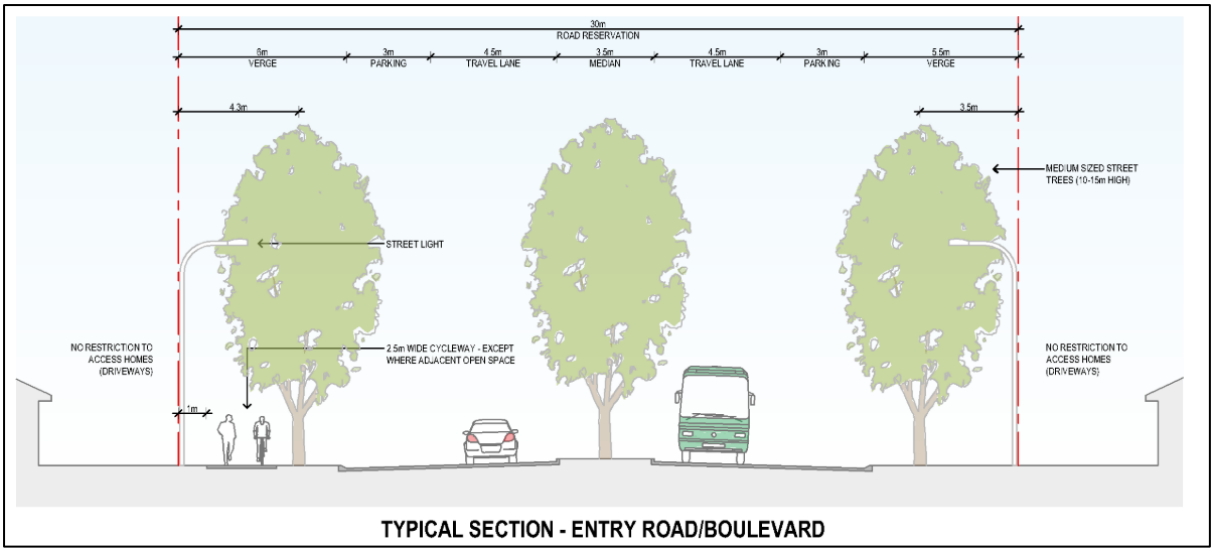


Figure 7 – Typical Section – Entry road/boulevard

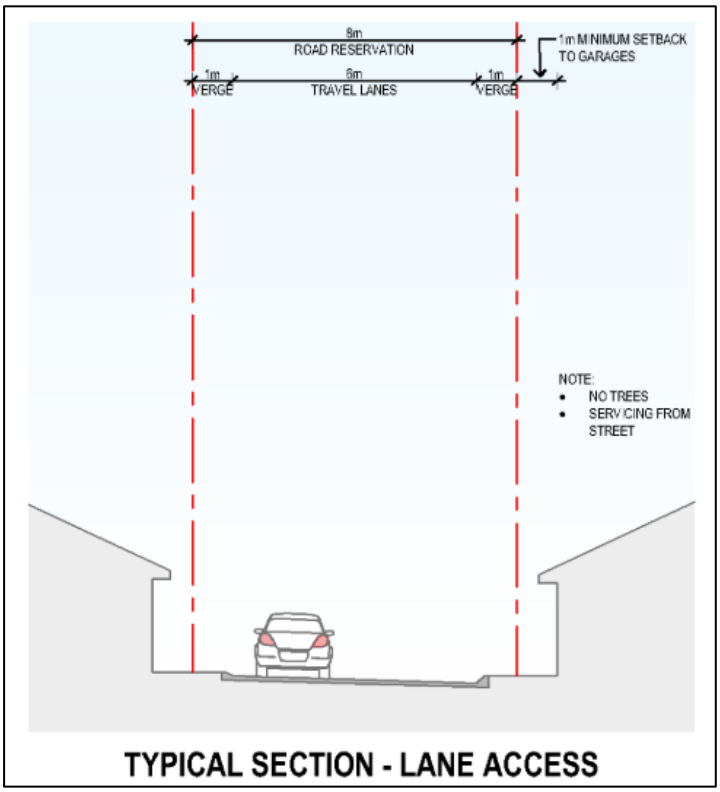


Figure 8 – Typical Section – Lane Access

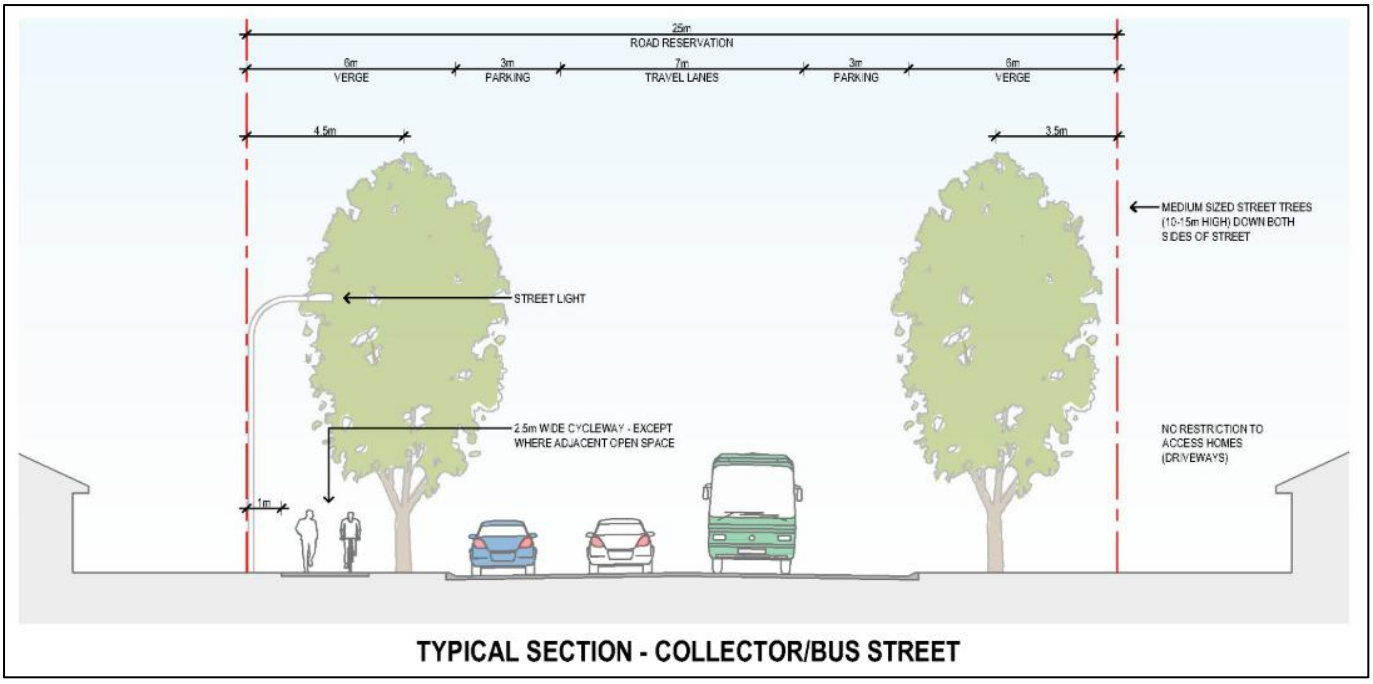


Figure 9 – Typical Section – Collector/Bus Street

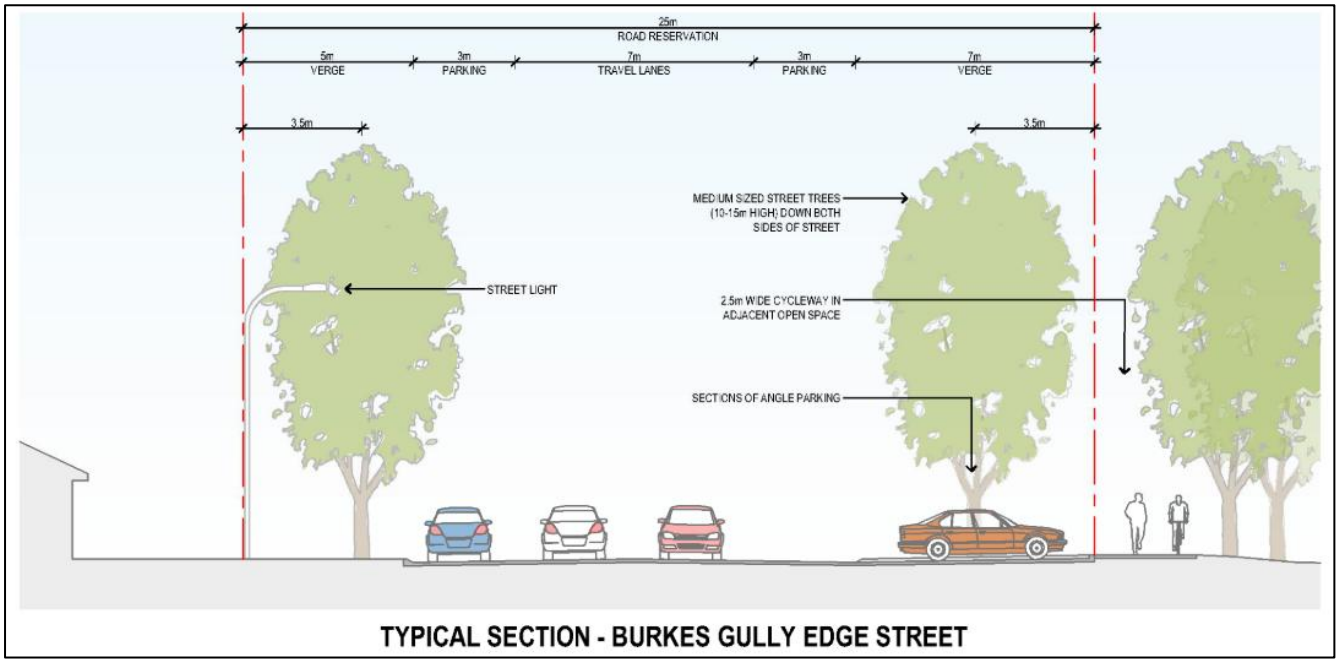


Figure 10 – Typical Section – Burkes Gully Edge Street

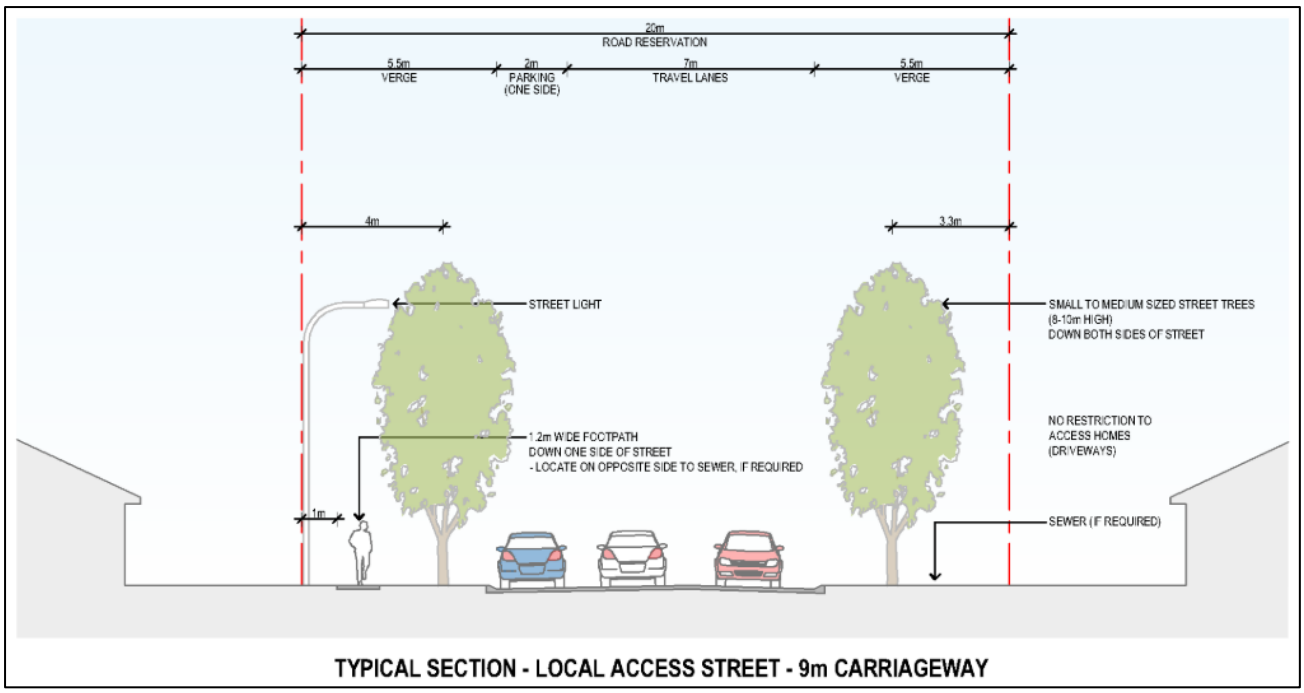


Figure 11: Typical Street Sections – Local Access Street (9m carriageway)

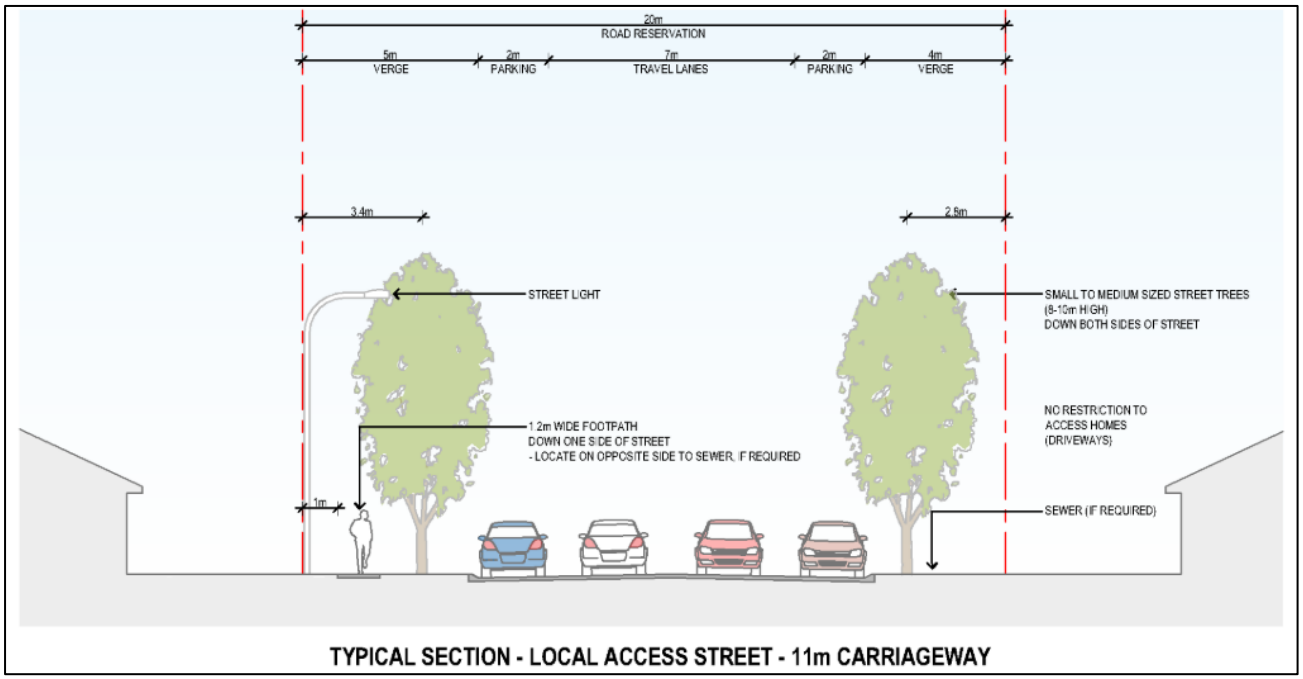


Figure 12: Typical Street Sections – Local Access Street (11m carriageway)



Figure 13: Local Street – Typical Plan and Section

Laneways	• All lots adjoining a laneway are to exclusively use the laneway for vehicular/garage access. • Persons creating allotments adjoining a laneway are required to create a restriction on the use of land under Section 88B of the Conveyancing Act 1919 to legally deny direct vehicular access onto any other road. • All lot boundaries adjoining the laneway are to be defined by fencing or built form. The garage setback to the laneway is minimal (0.5 m) to allow overhanging eaves to remain in the lot without creating spaces where people park illegally in front of garages and/or on the laneway.
Pedestrian & Cycleways	• Cycleways, shareways and other pedestrian facilities are to be generally consistent with Figure 14.
Public Open Space	• Any subdivision development will require Public Open Space provisions in accordance with Figure 8 and the Arcadia Section 7.11 Contributions Plan. • Parks are to be generally located in accordance with Figure 14 and should include: o 2 parks to be located in western section each with an area of 2.5ha; and o 1 park to be located in eastern section with an area of 3ha • Any subdivision development will require Public Open Space provisions in accordance with the Arcadia Section 7.11 Contributions Plan. • Areas surrounding the public open space and Burkes Gully corridor are encouraged to include provisions which would contribute to the amenity, such as a café or the like. • Stormwater detention and retention basins will be considered in areas designated as Public Open Space where the active and passive use of the space will not be diminished. Storage of excess water from events up to and including the critical 10% AEP shall be contained in underground structures, with excess storage from more infrequent events being allowed "above ground" via bubble-up structures or alternative approved mechanisms.
Landscaping & Street Trees	• A Landscape Plan must be submitted as part of lodgement of a development application for subdivision or medium density development. • A Landscape Plan must detail the species selected, maturity at planting, location and ultimate height. • Street trees are required for all streets and each lot as shown in Figure 7. Council's'Urban Street Tree Management Plan' is a guide for suitable tree species selection. • Development applications for future dwellings located around the perimeter of Arcadia Estate are to include landscaping treatments to assist in providing buffers to adjoining land uses.
Burkes Gully	• The Burkes Gully corridor must be generally consistent with Figures 15 and 16. • The Burkes Gully corridor must have a minimum width of 100m for its entirety. This is measured 50m either side of the Burkes Gully ephemeral drainage line. • The 100m minimum width does not take into consideration the placement of the offline basins wholly within the 100m wide corridor. It will be likely in some location's basins will be partially located outside of the corridor which will assist in providing greater amenity by reducing a "gun barrel "effect. • Basins along the Burkes Gully corridor shall be designed to maximise usable passive recreational area and to maintain continuity of pedestrian access. • Stormwater basins adjacent to Burkes Gully must be designed as offline structures. • All roads are to be located outside of the Burkes Gully corridor. • The use of Burkes Gully as passive recreation is encouraged and details of footpaths, cycleways, seating, and other facilities are to be shown on the submitted plans • Existing trees must be retained within Burkes Gully corridor. Council will only consider the removal of a tree under exceptional circumstances where it can be demonstrated that all other options have been exhausted.



Figure 14 – Public Open Space



Figure 15: Burkes Gully corridor and section

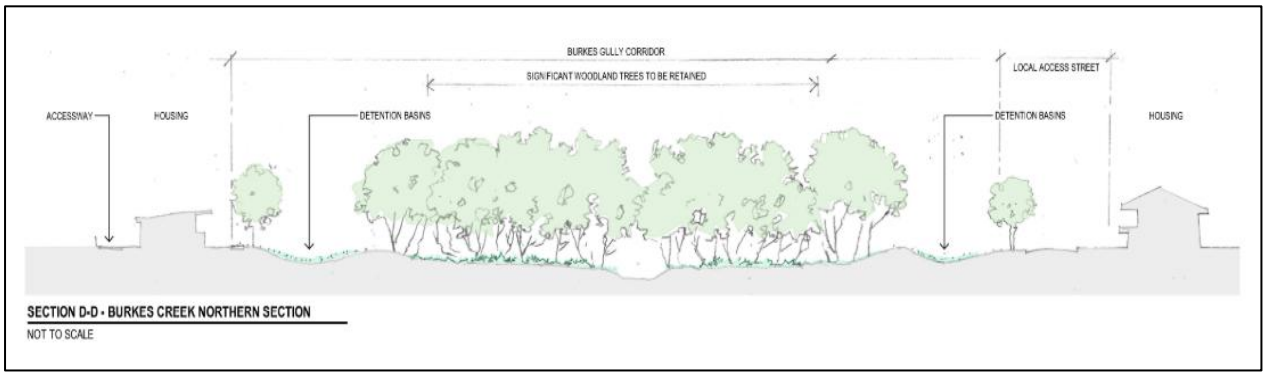


Figure 16: Burkes Gully corridor - northern section

Drainage	• Basins and spillways are to be designed to minimise risk to downstream properties in the event of overtopping or failure. • The upstream batters on the basins are to be designed acknowledging safety and passive recreation consideration, especially with respect to batter slopes. Steep sided basins should be avoided wherever possible.
Water	• All lots must be serviced by reticulated water in accordance with the Development Servicing Plan. • The south-west corner (hatched blue in Figure 1) cannot be supplied with mains water above the 425m contour. The design of these lots will need to ensure a portion of the future lots are below the 425m contour to suitably site a water meter. The remainder of the lot would be serviced via private pump system.
Sewer	• All lots must be serviced by gravity connection to reticulated sewer in accordance with the Development Servicing Plan. • A sewer pump station and low-pressure sewer systems would not be supported by Council for the provision of sewer services for the Arcadia Estate. • The south-west corner (hatched red in the Structure Plan) has sewer servicing constraints. If gravity sewer cannot be provided to this area, on-site sewer systems will be permitted only on lots greater than 4000m^2. Building Envelopes must be registered on the title of any lot greater than 4000m^2 to restrict the placement of a dwelling in order to not restrict the future subdivision of the lot if gravity sewer is available in the future.
Significant Woodland Vegetation	• Removal of vegetation within the Burkes Gully corridor identified as Significant Woodland Vegetation will only be considered if supported by a report prepared by a suitably qualified ecologist and arborist. • Any activities that may impact on the integrity of the habitat vegetation including under-storey clearing must be avoided.
Soil/Ground Water Vulnerability	• Some areas within the precinct may be affected by the presence of groundwater vulnerability and potential soil salinity which can result in the corrosion of concrete, as well as the deterioration of metal, masonry and bituminous structures/products. • Further analysis may be required from a suitably qualified person indicating that consideration has been given to the possible of groundwater vulnerability in the structural design and construction of future development within the area.
Aboriginal Cultural Heritage Significance	• Indigenous heritage items, including culturally modified trees (scarred), have been identified as being located within the Arcadia Estate. This may limit development within these locations which are to be kept clear of any works, road works or residential development. Appropriate respectful management of the sites will be required. • Consultation with the Tamworth Aboriginal Lands Council shall be undertaken prior to any works commencing within the area.
Acoustic Control	• An acoustic report from a suitably qualified acoustic engineer must be submitted with a development application for any subdivision of lots along Burgmanns Lane. The report must take into consideration Burgmanns Lane forming part of the future Western Freight Link (Figure 17). • Development of lots adjoining Burgmanns Lane should comply with *AS3671 Acoustics – Road traffic noise intrusions – Building siting and construction.*

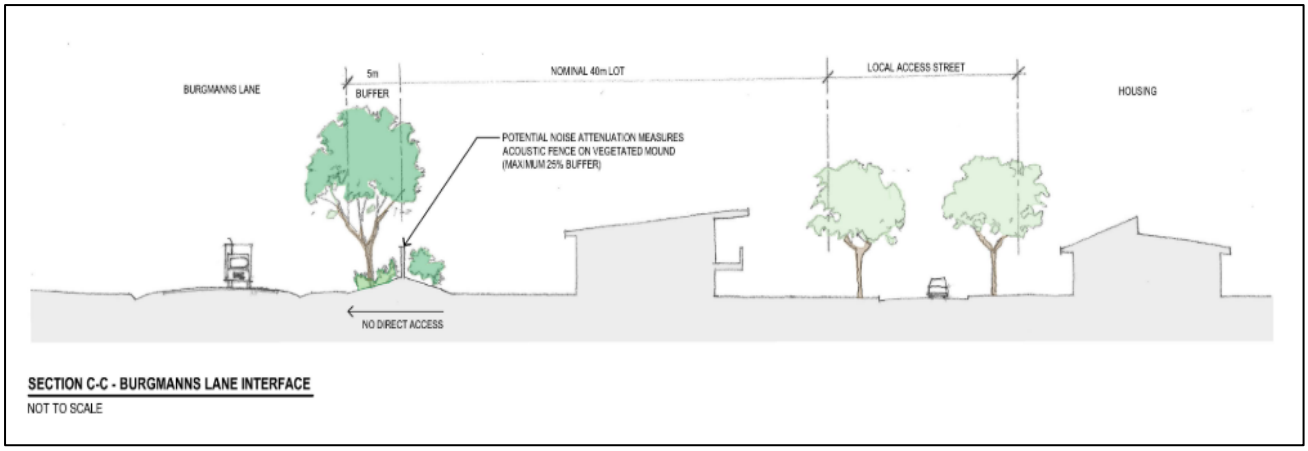


Figure 17: Burgmanns Lane Interface

Fencing	• Front fencing (all fences forward of the building line) is to be a maximum of 1.2m in height and an open style design • Secondary frontage fencing is to be a maximum of 1.5m in height and the portion above 1.2m in height is to be an open style design • Side fencing aligned with the front fencing must provide a raked transition to the front fencing. • Side and rear boundary fencing may be 1.8m in height. • Fencing which directly adjoins public open space or Burkes Gully Corridor must be a maximum of 1.2m in height and predominately open to ensure passive surveillance. • Notwithstanding the above provisions, pressed metal (colorbond) fencing is permitted along the laneways and behind the front building line.
Environment	• Existing trees are to be incorporated within the lots. Dwelling configurations and ground level should ensure existing tree health and longevity. • The principles of water sensitive urban design are to be considered as part of any development.
Neighbourhood Centre	• The neighbourhood centre corridor must be generally consistent with Figure 18. • Development Applications that include the first stage of development in the neighbourhood centre must be accompanied by a Streetscape Strategy which should address, but not limited to, elements such as ○ Interface with public roads and open space; ○ Pedestrian pavement details; ○ Landscape planting; ○ Public artwork; ○ Seating; ○ Lighting and signage; ○ Bus shelter; and ○ Bike racks. ○ Water sensitive urban design principles • All commercial buildings are to address public roads and any public open space with an active frontage. • Buildings should be of a human scale and be comprised of varied materials and finishes such as brick, timber and stone. Articulation of the frontage is required to provide further interest and visual appeal. • Large expanses of blank, unarticulated façade/walls must be avoided. The maximum length of any unarticulated facades/walls fronting a public street or open space shall be no greater than 6m. Council may consider alternative outcomes to add aesthetic appeal, activate a wall, or facilitate a logical method of construction if it can be demonstrated the design achieves the desired outcome as agreed by Council.

- Under awning signage is to be generally consistent in theme and character.
- Continuous awnings are to be provided alongside retail and commercial properties.
- Loading bays are to be accessed from the rear laneways or secondary streets. All loading docks are to be screened from view via a combination of solid wall and plantings
- The interface between the neighbourhood centre and adjoining residential area must be carefully considered to ensure a suitable transition. This will include design details of rear commercial buildings, parking and landscaping treatments
- Shop top housing is encouraged in the B1 zone and may provide a suitable transition to adjoining residential areas.
- On-site parking is to be provided at a rate consistent with the parking provisions contained elsewhere within this DCP and is to be situated to the rear of the premises as depicted in the Structure Plan
- All development proposals within the neighbourhood centre will be the subject to detailed design negotiations between the proponent and Council to ensure high quality development outcomes, including site planning, building design, massing, car parking, environmental suitability and public domain treatments.
- End of trip facilities (e.g. bike racks / shower facilities) should be incorporated into the design of commercial buildings.



Figure 18: Neighbourhood Centre

STEP 4: SITE SPECIFIC

Tamworth Global Gateway Park (TGGP)

These are development controls relating to development in the Tamworth Global Gateway Park (TGGP) Precinct as identified on the DCP Maps. Please note, **Step 3- General Development Specifications** requirements may also apply to your development.

Desired Future Character Statement

The Desired Future Character Statements below set the Council's vision for the Tamworth Global Gateway Park Precinct. Development applications must, in addition to being consistent with the Development Control Plan (DCP), support the following:

- ***The TGGP should seek to support a wide range of compatible general and heavy industrial land uses such as import/export freight and logistics, manufacturing and food production that service the local and regional community and the intermodal/ airport facility.***

- ***Developments should be of a high environmental design presenting a positive green image for the Tamworth LGA and adjoining regions. This will be achieved by complying with these development controls. Environmentally sensitive developments are encouraged.***

- ***The siting of buildings on all lots should reflect the prescribed controls for front, rear and side setbacks to ensure setback control patterns are consistent throughout the TGGP.***

Industrial / Commercial Development Controls Chapter	• Any Industrial or Commercial Development within the Tamworth Global Gateway Park (TGGP) is required to comply with the Industrial / Commercial Development Controls Chapters in this DCP, except as otherwise nominated below.
Rail Freight Intermodal	• The northern section of the TGGP, as shown light blue (Infrastructure) on the TGGP Precinct Plan (see at the end of this chapter), is identified for the future development of a road and rail freight intermodal facility in combination with the activities associated with the Tamworth Regional Airport. Development Applications in this area must address any impacts (positive or negative) on the current and/or future operation of the intermodal facility.

Design Provisions	• Architectural interest should be incorporated into the building design to address the primary street frontage. • Buildings must be designed to address all street frontages with façade treatment and articulation features on elevations to achieve a high-quality streetscape presence. This may include low-scale building elements such as brick, painted finished concrete or light weight architectural cladding and include proportional windows. • Entries to buildings should be clearly visible to pedestrians and motorists and be integrated into the form of the building. • Building design and orientation shall consider the privacy (noise and visual) of adjoining, adjacent and/or nearby residential areas. • A full schedule of colours and materials must accompany the development application. • Blank walls and loading docks that cause significant visual impact when viewed from a residence or public road must be screened with shrubs, trees and/or decorative fencing. • Services such as air conditioners are to be concealed in the façade of the building or screened from public view with landscape or built elements. • External storage areas visible from a public road are to be screened. • Roofing and wall materials must be non-reflective.
Building Setbacks	• Building setbacks to any road frontage must be 5 metres (minimum). • Side and Rear setbacks must meet National Construction Code requirements. • Buildings must be positioned towards the front of the site to avoid large areas of open storage / work areas in front of the building line. (See Figure 1) • Front setback areas shall not be used for storage or display of goods or excessive signage, loading/unloading or large areas of car parking. • Zero side building setbacks are encouraged to reduce potential unsightly rubbish building up in unusable areas on site.

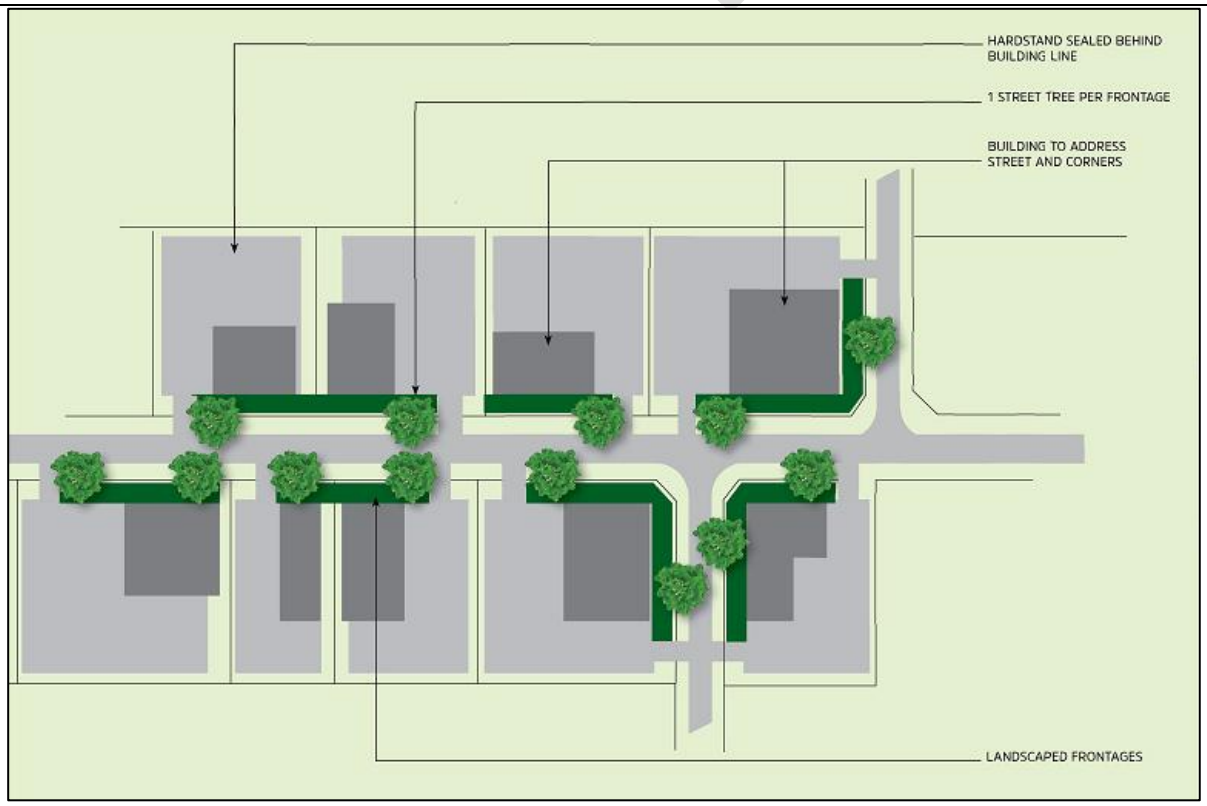


Figure 1: Typical Site Orientations

Fencing

- Fencing must be located behind or in line with the front building line.
- Fencing may be integrated directly behind the front or secondary setback landscaped area on any site (excluding Ring Road (Bandaar Drive) or Goddard Lane sites). Fencing must be an open/permeable style, incorporating pickets, slats, palings or the like.
- Open work or storage areas visible from a public place or street must be fenced by masonry materials or pre-coloured metal cladding fencing behind the building line and be of a minimum 1.8m height.
- Any front fencing (primary or secondary frontages) must not be chain wire fencing.

NB: See Figures 2 and 3 for Typical Site Layouts.

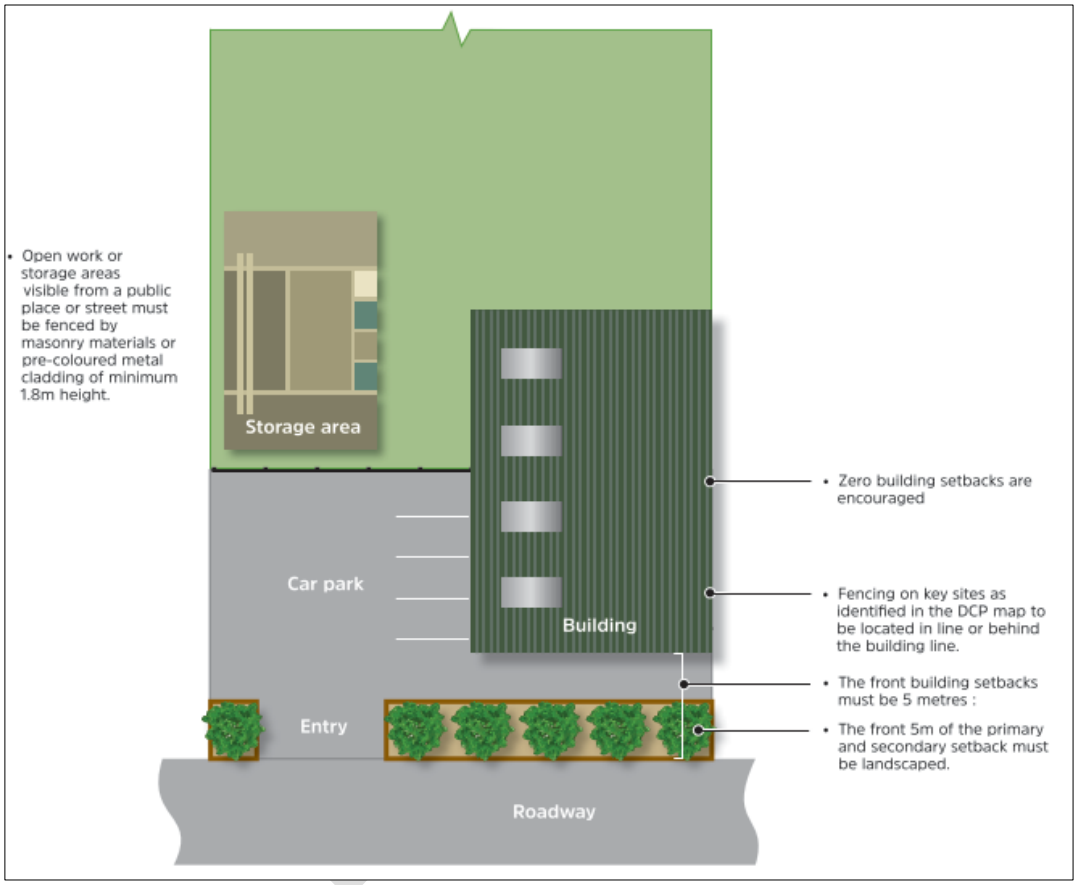


Figure 2: Typical Site Layout - Ring Road (Bandaar Drive) *and Goddard Lane Sites only*

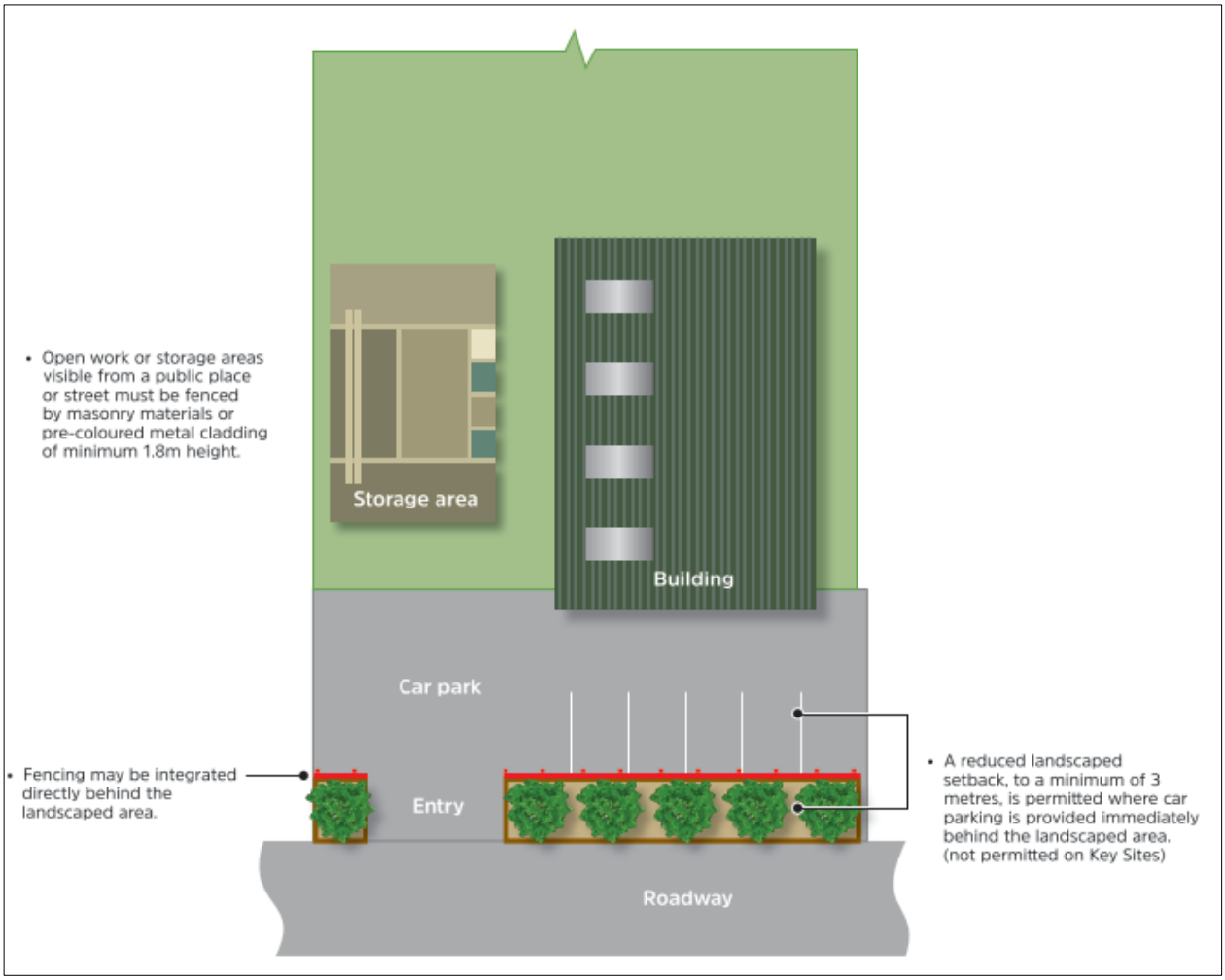


Figure 3: Typical Site Layout - All Sites other than Ring Road (Bandaar Drive) *or Goddard Lane*

Marathon Street Buffer

- A vegetated screening buffer of at least 20 metres wide is to be established for the length of Marathon Street on the eastern boundary of the site, as per the TGGP Precinct Plan and the Marathon Street Landscape Buffer cross section plan (Figure 4).
- The buffer is to include no less than four rows of suitable tree and shrub species to provide amenity for Westdale residents in the locality.
- No direct access (vehicular or pedestrian) is permitted into Lots from Marathon Street, other than the single pedestrian linkage identified on the TGGP Precinct Plan.
- Rear lot fencing fronting Marathon street must be installed prior to the release of any occupation certificate and must be a 1.8m high pre-coloured metal cladding fencing (pale eucalypt).

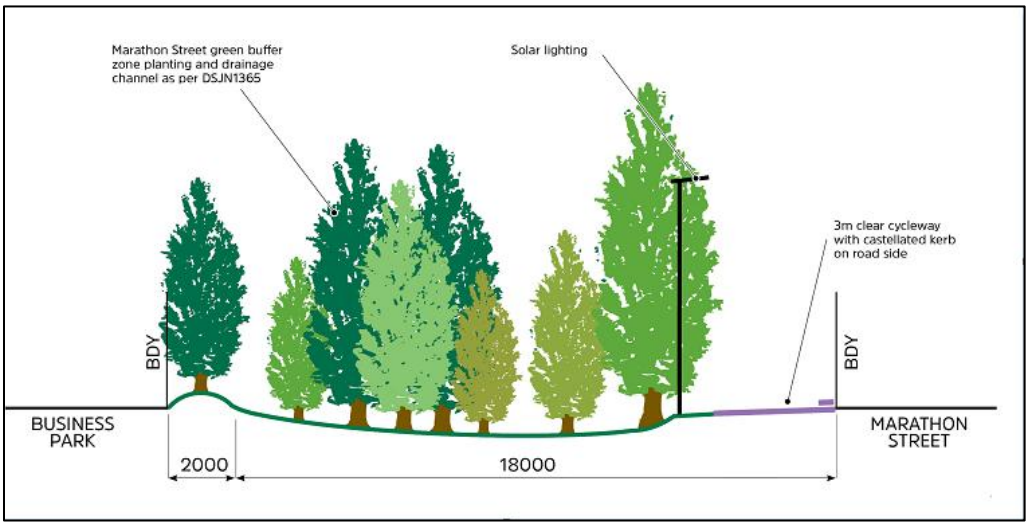


Figure 4: Marathon Street Landscape Buffer

Murroon Creek Corridor	• Works relating to infrastructure services and functions including; drainage, sewer, water and gas mains must consider the environmental values of the corridor. • Preservation of native vegetation within the entire length of the Murroon Creek corridor must be a primary design consideration. No native vegetation shall be removed without prior consent from Tamworth Regional Council. • Riparian buffers shall be preserved, and where appropriate be re-established (See Figure 5). The combined ephemeral zone and flood fringe (vegetated riparian zone) shall have an absolute minimum width of 30m on each side of the low flow channel. The low flow channel (channel) is defined as the low flow element of the watercourse, carrying flows from the 2 year ARI critical event. • Low flow channel requirement is only for the section between Oxley Highway and Ring Road (Bandaar Drive). The northern section of Murroon Creek Corridor shall be a more defined channel directing flow to Wallamore Road. • Development applications shall include an assessment of the impact of the stormwater discharge on downstream capacity and water quality. • Concrete lined channels are not permitted in the Murroon Creek Corridor.

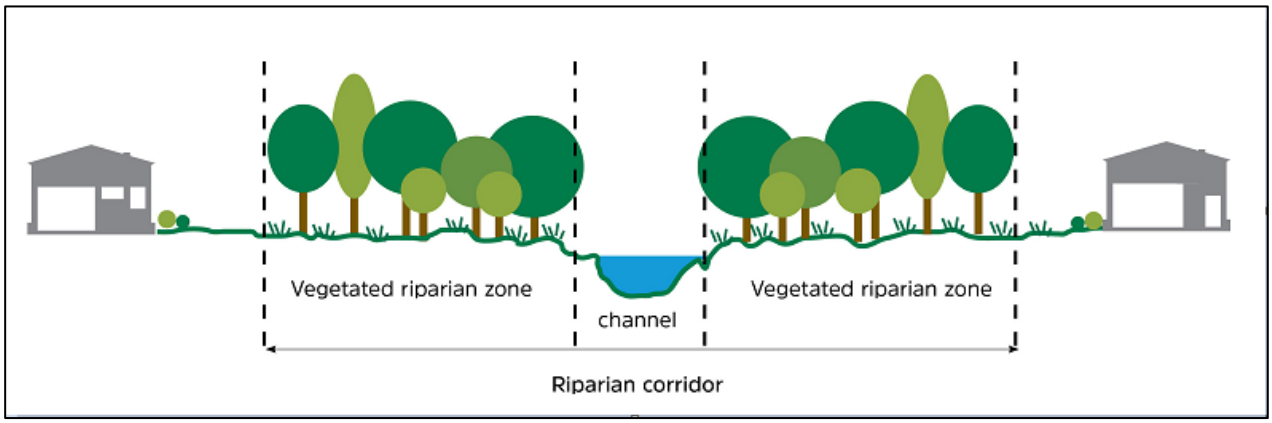


Figure 5: Murron Creek Riparian Corridor

Central Ranges Pipeline	• A statutory zone of influence of 169 metres either side of the Central Ranges Gas Pipeline that traverses the site, as shown on the TGGP Precinct Plan must be established (APA Group - *APA Safety Management Strategy dated 15 March 2018).* • The following list of sensitive uses that are not allowed within the statutory zone of influence as according to Australian Standard AS2885.6. The list may include a number of uses that are permissible under the zone provisions and notable examples include: Child care centres; Correctional centres; Educational establishments; Entertainment facilities; Function centres; Highway service centres Service stations home based child care theatre hospital hotel or motel accommodation medical centre places of public worship respite day care centre retail premises seniors housing Development within this area requires consent and must consider the provisions of the APA Safety Management Strategy dated 15 March 2018 and be referred to APA for comment. • Development applications subject to the Central Ranges Gas Pipeline development controls will not be fast tracked.

Oxley Highway Buffer	• A vegetated screening buffer of at least 10 metres wide is to be established for the length of Oxley Highway between Goddard Lane and Murroon Creek corridor, as per the General Landscaping Arrangement (Figure 6) and the Oxley Highway Landscape Buffer cross section plan (Figure 7). • A vegetated screening buffer of at least 5 metres wide is to be established for the length of Oxley Highway between the Murroon Creek Corridor and Marathon Street, as per the General Landscaping Arrangement (Figure 6).
Site Landscaping	• A landscaping plan that details the species selected, maturity at planting, location and ultimate height is required. Landscaping shall comprise only low maintenance, drought and frost tolerant species. • The front 5m of any primary and secondary setback must be landscaped. • A reduced landscaped setback, to a minimum of 3 metres, is permitted where car parking is provided immediately behind the landscaped area. (Not permitted on the Ring Road (Bandaar Drive) or Goddard Lane sites) (See Figure 3) • Landscaping of sites fronting Goddard Lane and the Ring Road (Bandaar Drive) is a key outcome, aimed at encouraging a high-level presentation along these key roadways. Development Consents for Ring Road (Bandaar Drive) or Goddard Lane fronting sites will include provision for a maintenance bond to ensure that agreed landscaping is established and maintained for a period of two years from issue of an Occupation Certificate. Bonds will be based on 30% of the agreed value of the established landscaping. • The developer responsible for subdivision resulting in lots fronting Goddard Lane and the Ring Road (Bandaar Drive) will be required to lodge with Council sufficient funds to permit the planting of one street tree per lot, or two street trees in the case of corner lots, but in any case, with a spacing of no more than 50m along the respective street frontage. • Street trees will be tube stock, or bare root stock in the case of deciduous trees. ***NB:*** *The value of the funds shall be calculated based on the cost per street tree as nominated in Council's Annual Fees and Charges document. The funds will be utilised by Council to purchase and plant street trees when the subdivision is 75% occupied or at the end of two years, whichever occurs first. The theme of trees and shrubs to be planted shall be identified in the landscape plan and approved by Council based on criteria including suitability to site conditions, compatibility with existing vegetation and planting themes for the locality.*

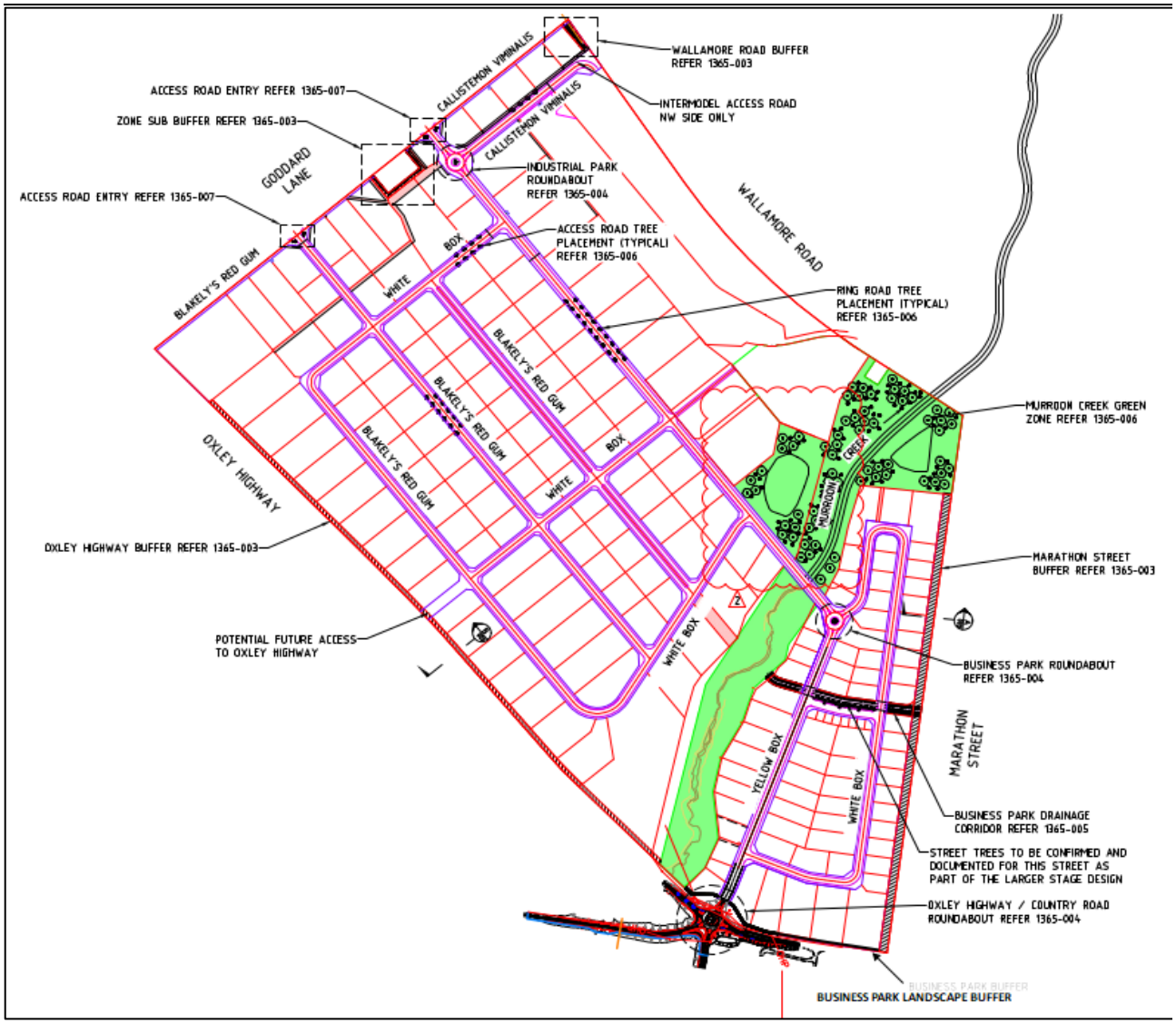


Figure 6: General Landscaping Arrangement

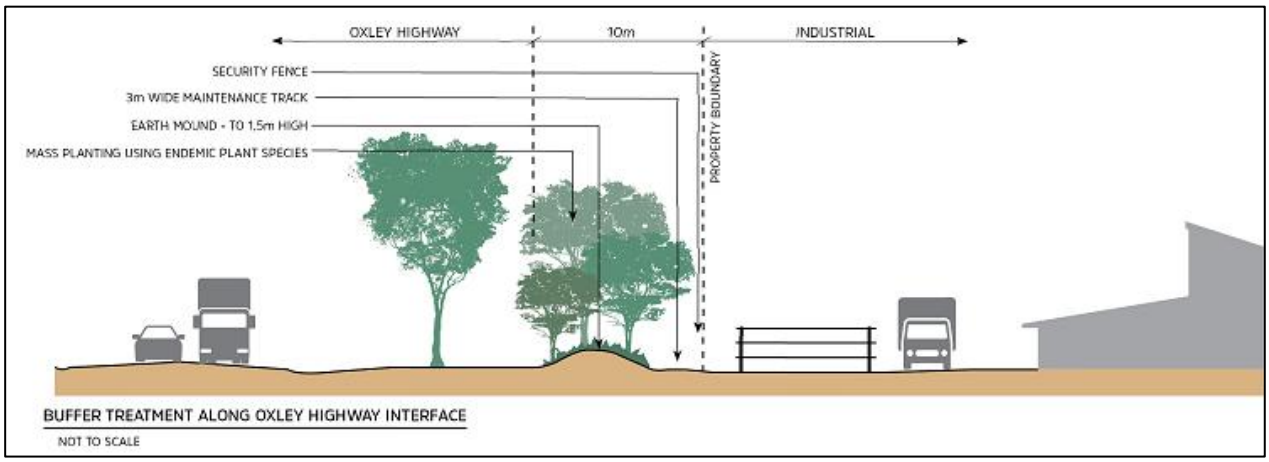


Figure 7: Oxley Highway Landscape Buffer

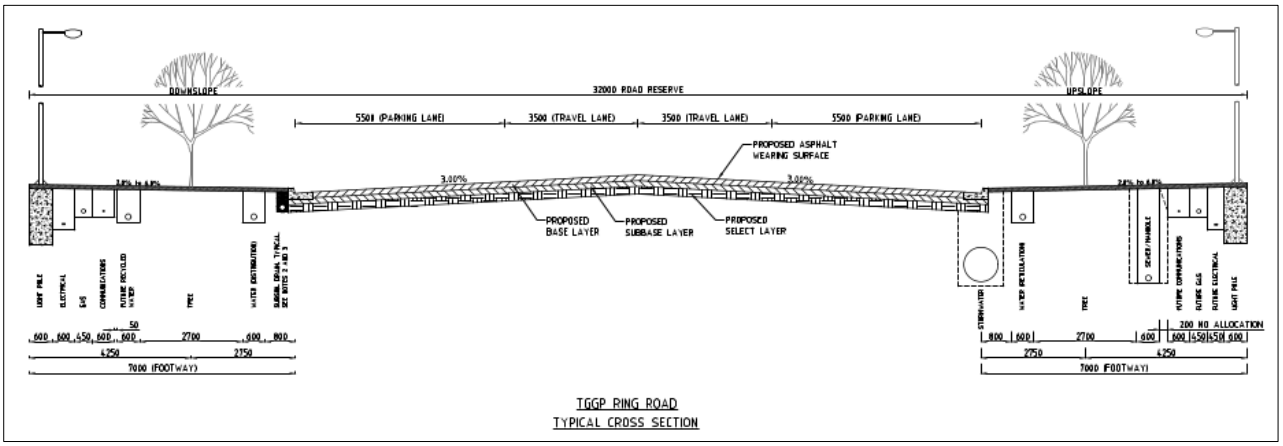
Road Design and Network

- The internal road layout will connect with the 'ring road' (Bandaar Drive) to accommodate the varied development on the site. An indicative internal road layout is shown on the TGGP Precinct Plan.

Roads Reserve	Width
Ring Road (Bandaar Drive)	32 metres
Spine Road	36 metres
All other roads	28 metres

NB: Cross sections of Ring Road (Bandaar Drive) and All other Road reserves in shown in Figures 8A & 8B.

- The road layout shall be designed in accordance with the Tamworth Global Gateway Precinct Design Criteria Report and The TRC Engineering Minimum Standards.
- The road reserve shall be designed at an appropriate width to allow for future recycled water connections.
- Subdivisions must incorporate an alternative movement network consisting of cycleways and shared pathways with the objective of facilitating non-motorised movement within and beyond the estate.
- Cycle ways shall be designed in accordance with the Cycleway Concept Plan. (Figure 9)



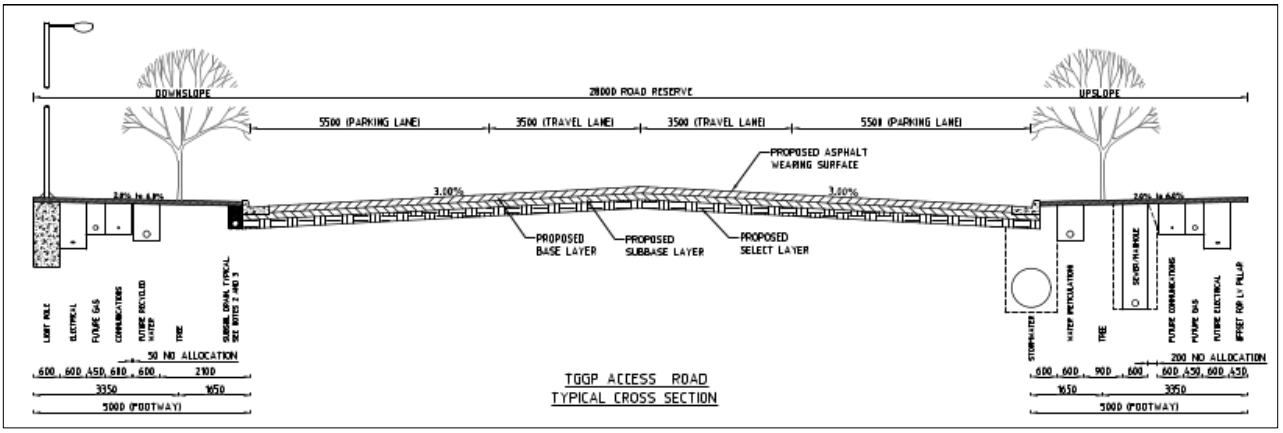


Figure 8A – Typical Road Cross Sections – TGGP Ring Road (Bandaar Drive)
Figure 8B – Typical Road Cross Sections – TGGP Access Road

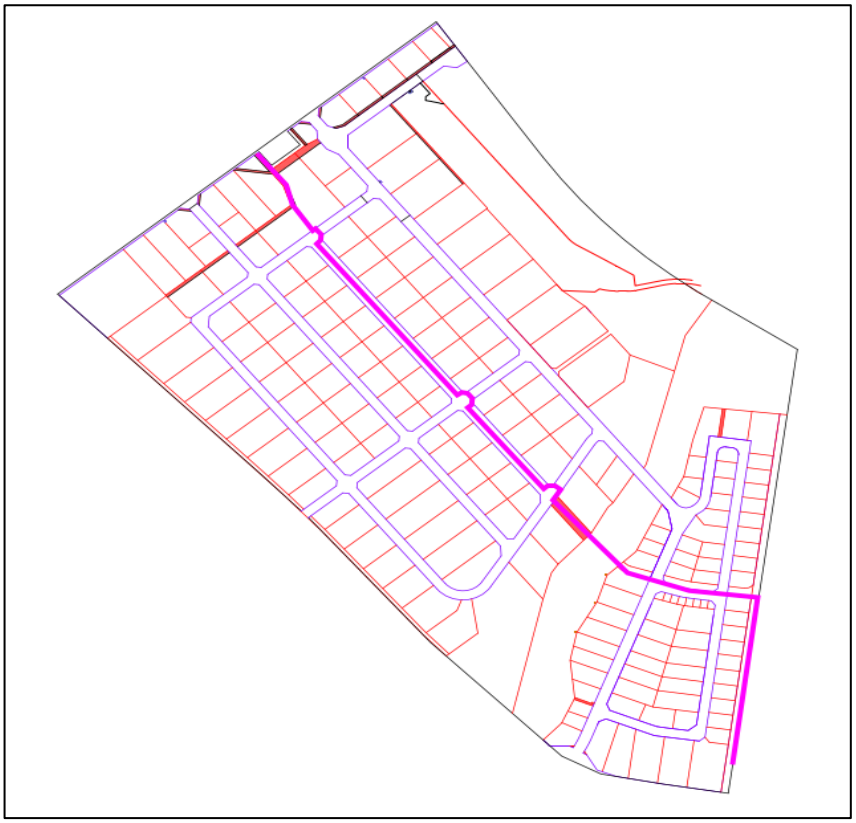
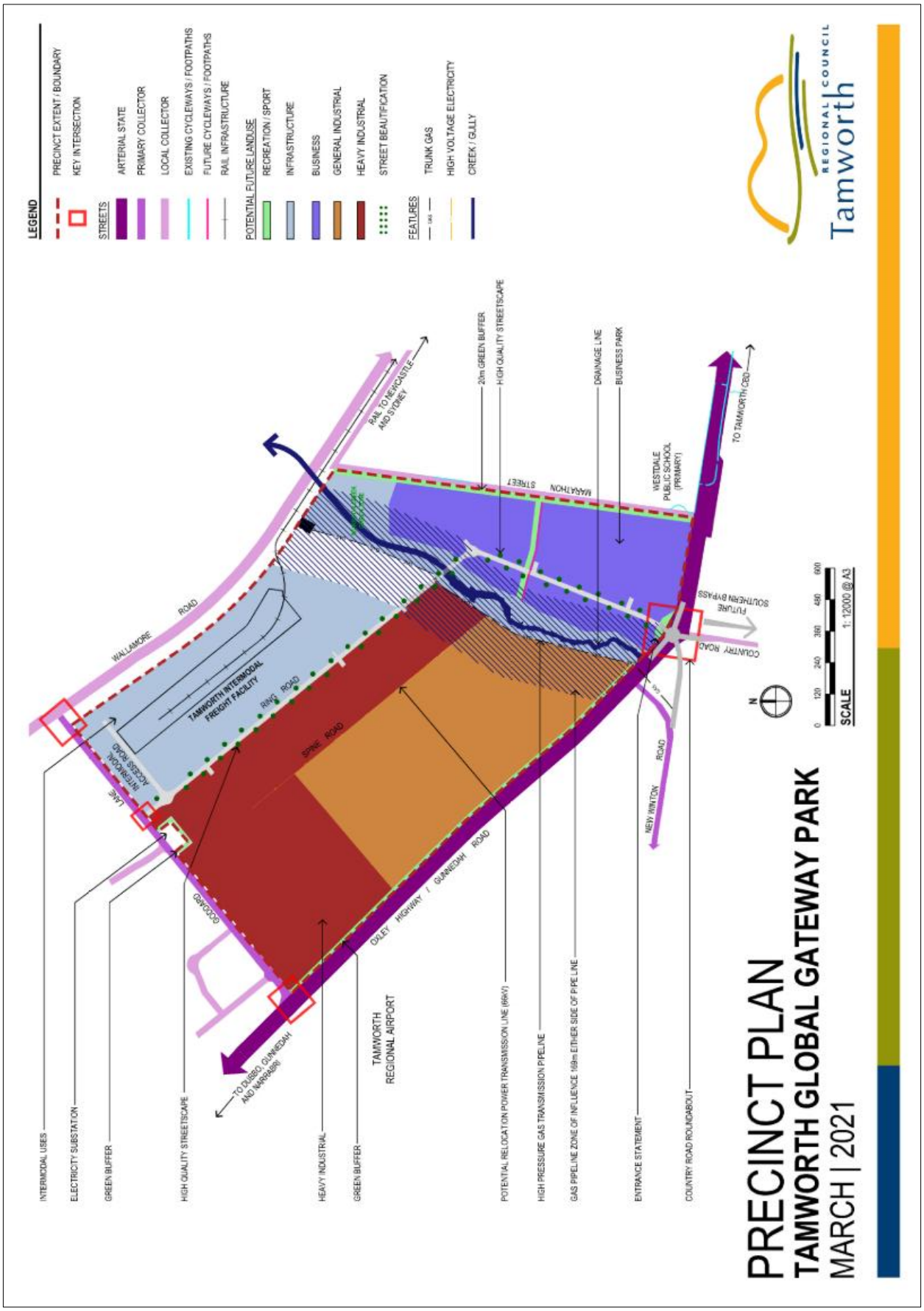


Figure 9 – Cycleway Concept Plan (Pink Line)

Traffic and Access	• Development that is traffic generating development and requires referral to Transport for New South Wales will not be fast tracked. • Development application plans for lots fronting Goddard Lane are to incorporate road widening of 5 metres on the eastern side for the length of Goddard lane. • The principal access points to the TGGP are from the Country Road five-way roundabout and from Goddard Lane. A major 'ring road' (Bandaar Drive) is to connect these points of access as per the TGGP Precinct Plan. • Direct lot access from Oxley Highway, Marathon Street and Goonan Street will not be permitted. • Proposals that include unsealed vehicle manoeuvring areas must install a mechanism (such as shaker plates or a wash down area) to ensure no transfer of dirt from the site onto the road reserve will occur.
Parking	• Refer to *Step 3: General Development Specifications – Parking, Traffic and Access Controls*
Signage	• Development Applications seeking to display signage to the Oxley Highway should include an assessment of the road safety criteria under Part 3 of the Transport Corridor Outdoor Advertising and Signage Guidelines.
Noise	• Windows, doors and other wall openings shall be arranged to minimise noise impacts where the development is located adjoining or adjacent to existing residential areas. • External plant (generators, air conditioning plant etc.) shall be enclosed to minimise noise nuisance where the development is located adjacent to existing residential areas. • Details, including the proposed location of external plant shall be submitted with the development application.

Tamworth Regional Airport	• Development applications that are located within the flight path or likely to adversely affect aircrafts or the airport facility must be referred to the owner/operator of the Tamworth Regional Airport. • Factors affecting the operation of the Airport must be considered including light glare, plumes, bird attractants. • Development applications that must be referred to the Airport will not be fast tracked. • A condition will be imposed on any development consent to require that notification be provided to the Airport Manager a minimum of 21 days before the operation of a crane for building work. • The Tamworth Regional Local Environmental Plan 2010 contains controls relating to the construction of buildings within the vicinity of the Tamworth Airport, which may impact on the height and construction standards.
Aboriginal Cultural Heritage	• Indigenous heritage items have been identified as being located within the TGGP Precinct. Development Applications involving subdivision of land will be required to undertake an archaeological assessment of the proposed development site. • Consultation with the Tamworth Local Aboriginal Lands Council shall be undertaken prior to any subdivision approval. • Appropriate management of any artefacts / sites located will be required.
Water, Sewer Stormwater and Gas Utilities	• All lots within the Precinct are to be serviced by reticulated water and sewer in accordance with the Water/Sewer Authority's Tamworth Water Supply Servicing Strategy and Tamworth Sewer Strategy. • Wherever practicable rainwater storage shall be integrated into downslope landscaping to encourage water sensitive design practices and sustainability of the landscaping and buffers onsite. • Voluntary on-site retention and re-use will be supported, but shall not be taken into account when designing the estate-wide collection and conveyance systems. • All stormwater flows generated as a result of development should be designed to minimise reliance on reticulated water. • The stormwater design for this estate has been based on collection and conveyance of unattenuated stormwater runoff from individual lots within the road and drainage corridors. As such, no detention or retention is assumed required in the lot provided all stormwater is directed into the road reserves and drainage reserve as appropriate. • Servicing designs shall make allowance for reticulated gas and non-potable water throughout the estate as nominated and in consultation with Council. This includes the provision of strategic pre-laid crossings and / or ducts under roadways and driveways.
Per-and Polyfluorinated Alkyl Substances (PFAS) Issues	• PFAS contamination is known to have occurred in connection with the historical operation of the Tamworth Regional Airport. Studies show very minor levels of PFAS in the development area. (Refer to Geologix Detailed Site Assessment Report, December 2017) Subdivision and building proposals are to assess PFAS implications for the proposed development sites. In particular, the site of the 1995 Tamair plane crash (as per Figure 10), will require testing and remediation if developed as open ground in accordance with the Detailed Assessment Report.

Tamworth Global Gateway Park Precinct Plan



STEP 4: SITE SPECIFIC

Stratheden Estate

These are development controls relating to development in the Stratheden Estate. Please note, **Step 3- General Development Specifications** requirements may also apply to your development.

Desired Future Character Statement

The Desired Future Character Statements below set the Council's vision for the Stratheden Estate. Development applications must, in addition to being consistent with the Development Control Plan (DCP), support the following:

- ***Provide a mixture of housing typology and lot sizes which promote greater housing choice and a diverse community.***
- ***High quality urban design principles are a prerequisite for the successful establishment of the Stratheden Estate. These principles relate to street amenity, design standards for buildings and linkages between the built form and high quality recreational open space.***
- ***The drainage corridor running in a south westerly direction through the Stratheden Estate must not restrict the overland flow of stormwater whilst enhancing the natural features and contribute to the urban landscape and opportunity for passive recreation.***

Other Development Controls Chapter	• Any development is required to comply with the applicable Development Control's Chapter, except as otherwise nominated below
Subdivision	• For optimal orientation of future residential dwellings, subdivision proposals must be generally consistent with the prevailing subdivision pattern as shown in Figure 1. • Where residential development adjoins land zoned RE1 Public Recreation or a drainage corridor, it must be designed to enable a future dwelling to front the open space or drainage corridor. • Where smaller lots are proposed they are encouraged to be located adjacent to parks and passive recreation areas, including the major drainage corridor. • An alternative lot orientation may be considered where other amenities such as views and outlook over open space are available, and the design demonstrates appropriate solar access and overshadowing outcomes on adjoining lots. • All corner lots should be an adequate size to cater for a dual occupancy development. • Staging of the subdivision must occur in accordance with the Subdivision Staging Plan in Figure 2.

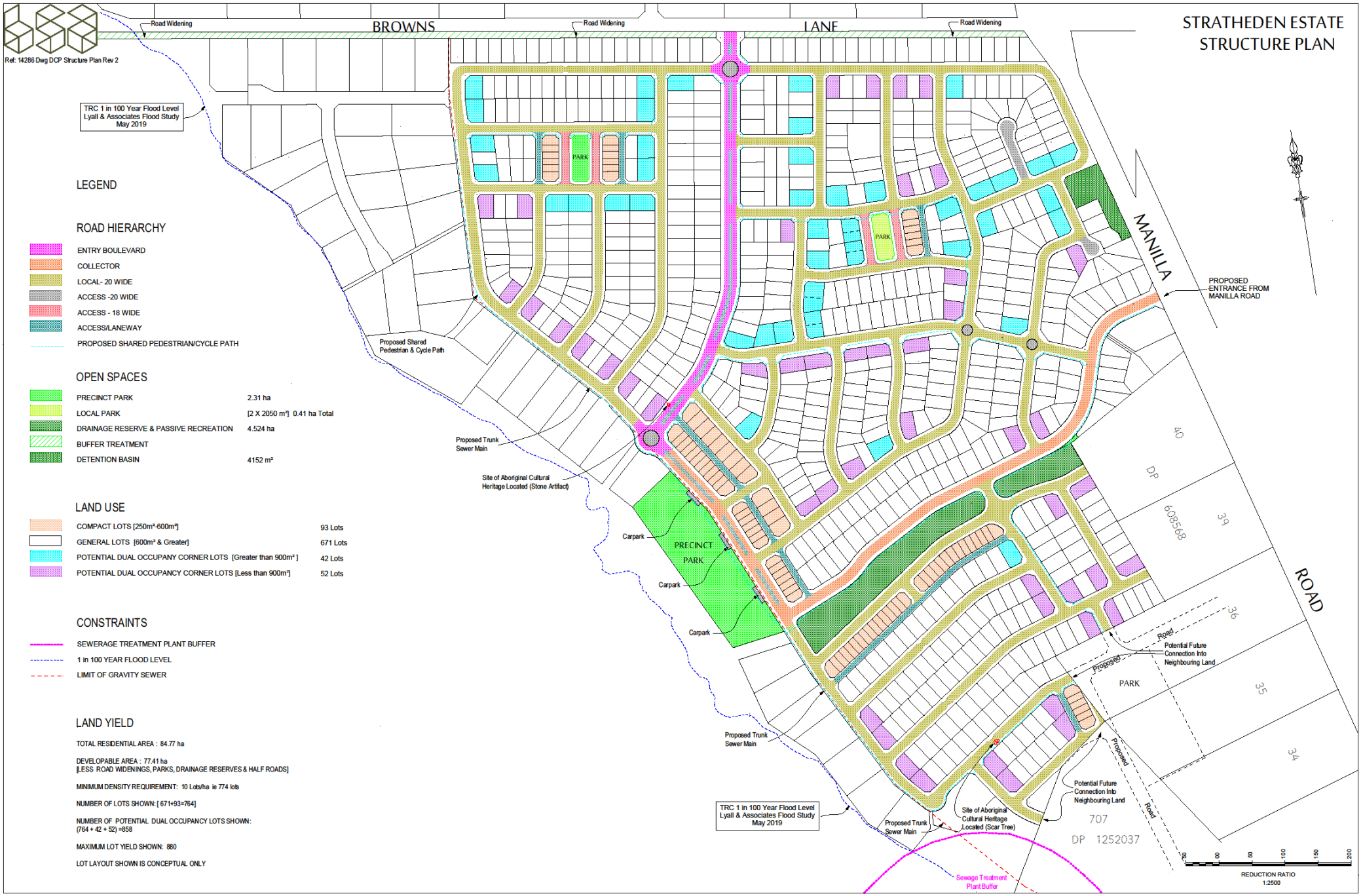


Figure 1 : Stratheden Structure Plan

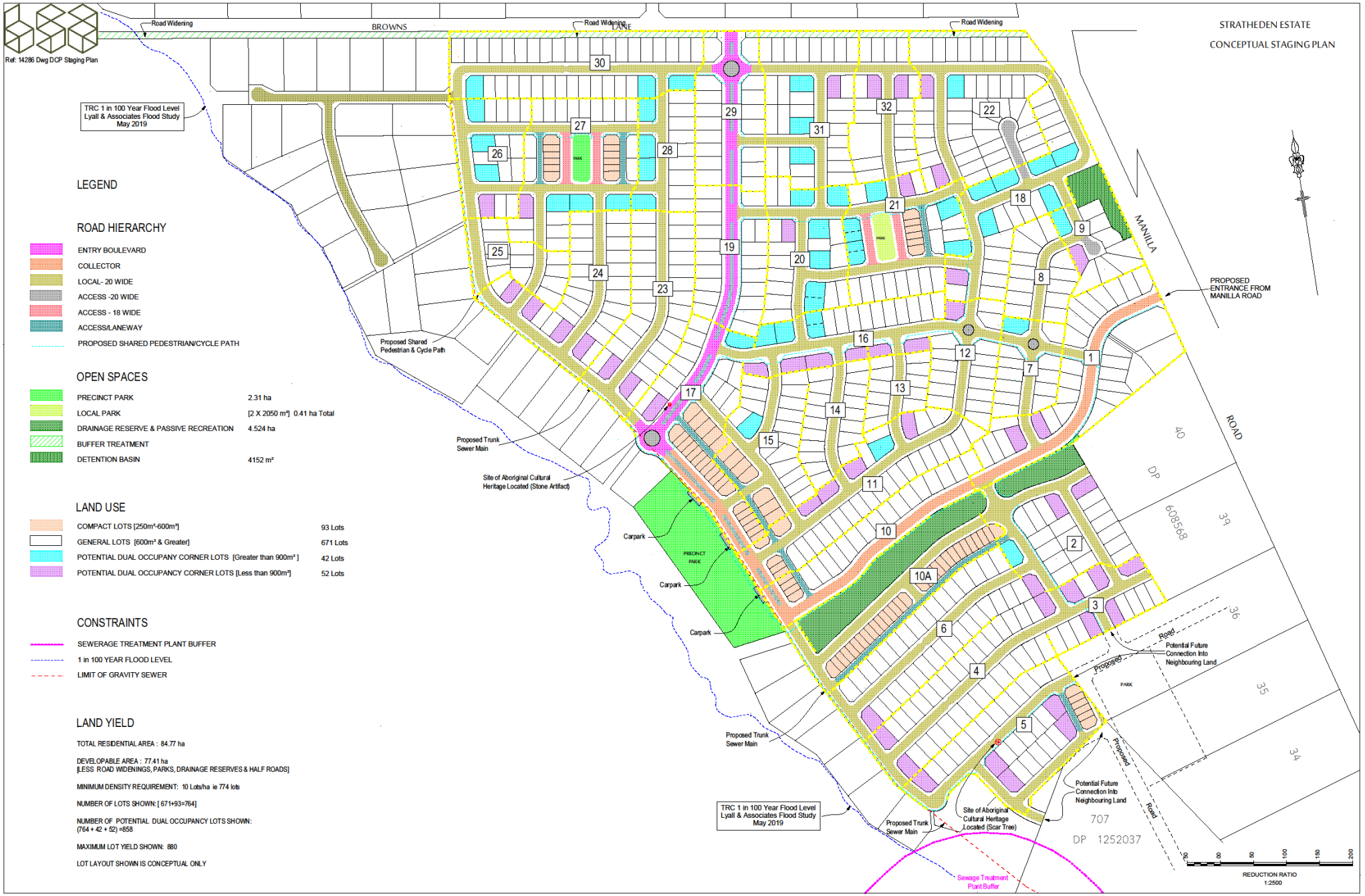


Figure 2 : Stratheden Subdivsion Staging Plan

Density

- All applications for residential subdivision and the construction of residential buildings are to demonstrate that the development meets or contributes to the net minimum residential density of:

  - 10 dwellings / hectare for R1 zoned land; or
  - 2 dwellings / hectare for R2 zoned land.

  ** Dwelling density – means the ratio of the number of dwellings to the area of the land to be occupied by the development, including internal streets and half the width of any roads adjoining the development that provide vehicular access to the development but excluding land used for public open space and non-residential purposes as shown in Figure 3.*



Figure 3: Example of calculating net residential density.

- All development applications must demonstrate that the maximum dwelling yield prescribed by Clause 7.12 of the Tamworth Regional Local Environmental Plan 2010 will not be exceeded.

- A variety of lot sizes and housing types are encouraged to be developed throughout the area to cater for the growing needs of the community. An example housing types, and lot typology is provided in Figure 4.



Figure 4: Housing Types and Lot Typology

Compact Lots

This section of the DCP applies where development for medium density is proposed in areas identified in the structure plan as "compact lots" and has an area less than the minimum lot size shown on the lot size map of Tamworth Regional Local Environmental Plan 2010.

Medium density developments in these areas will be considered against the controls below and not the dual occupancy or multi dwelling controls contained in other parts of the DCP.

<table>
<tr><th></th><th>Controls</th></tr>
<tr><td>Setbacks</td><td>
The following minimum setbacks apply;
<table>
<tr><th></th><th>Building facade fronting road</th><th>Building facade fronting open space (rear laneway vehicle access)</th></tr>
<tr><td>Front Setback</td><td>4.5m</td><td>3.5m</td></tr>
<tr><td>Articulation Zone</td><td>3.0m</td><td>2.0m</td></tr>
<tr><td>Setback to Garage</td><td>5.5m and 1m behind building line</td><td>0.5m</td></tr>
<tr><td>Rear Setback</td><td>6m</td><td>6m</td></tr>
<tr><td>Side Setback (detached)</td><td>BCA</td><td>BCA</td></tr>
<tr><td>Secondary Street frontage</td><td>2m</td><td>2m</td></tr>
</table>
Examples of the setback controls are shown in Figure 5.
</td></tr>
<tr><td>Articulation Zone</td><td>

This zone allows building elements to project 1.5m forward of the front building line, and may include entry features and porticos, balconies, decks, verandahs, shading devices, pergolas and bay windows. A carport is not considered part of the articulation zone.
Up to 25 per cent of the articulation zone, when viewed from above, may include building elements. An awning or other feature over a window and a sun shading feature are not included in the maximum area of a building element in the articulation zone.

</td></tr>
<tr><td>Private Open Space</td><td>

Must have a minimum area of 24m^2 and have a minimum dimension of 4m.
Must be accessible from the main internal living area.
The principal open space area must not include utilities or storage areas but can include hard landscaped areas and outdoor living areas.

</td></tr>
<tr><td>Solar Access</td><td>

At least 50% of the principal private open space must receive 3 hours or more of sunlight between 9am – 3pm on June 21.
Any two-storey development must be accompanied by shadow diagrams which clearly identify adjacent dwellings and their principal private

</td></tr>
</table>

<table>
<tr><td></td><td></td><td>open space. At least 50% of the principal private open space must receive 3 hours or more of sunlight between 9am – 3pm on June 21 (winter solstice).</td></tr>
<tr><td></td><td>Privacy</td><td>• Upper-level openings on side facades which are less than 3m from a neighbouring dwelling must be;
o At least 1.5m above the floor level; OR
o Screened; OR
o Fixed with translucent glazing.
• Habitable rooms overlooking the principle private open space of a neighbouring dwelling are to have sill heights at least 1.5m above the floor level.
• A habitable room should address the public domain to provide passive surveillance.</td></tr>
<tr><td></td><td>Landscaping</td><td>• A minimum of 15% of the site must include soft landscaping (300m2-450m2 lots).
• The landscaped area should be at least 1.5m wide.
• Landscaped open space can be considered as part of the private open space calculations.
• Landscaping is encouraged to define the entrances of individual dwellings. At least 25% of the area forward of the building line must contain landscaped area.
• Each lot must include at least 2 small trees (5m-8m at maturity).
• Council's Urban Street Tree Management Plan is a guide for suitable tree species selection.</td></tr>
<tr><td></td><td>Site Coverage</td><td>• A maximum site coverage of 60% is permitted.
• Site coverage includes impermeable areas such as driveways and footpaths but excludes any unenclosed balconies, decks, pergolas and the like.</td></tr>
<tr><td></td><td>Parking & Garages</td><td>• Parking arrangements for each dwelling are as follows;
<table><tr><th>Number of bedrooms in each dwelling</th><th>Minimum Parking spaces per dwelling</th></tr><tr><td>1</td><td>1 (enclosed)</td></tr><tr><td>2</td><td>1 (enclosed)</td></tr><tr><td>3</td><td>2 (1 enclosed)</td></tr></table>• Parking of one vehicle behind another in a stack arrangement is acceptable.
• The garage must be setback 1m behind the building line and 5.5m from the front boundary.</td></tr>
</table>

		• Only a single garage is permitted on compact lots where access is provided from the primary street frontage, and the lot width is less than 12m. • Double garages are permitted on compact lots where access is provided from a rear laneway or from the front if the lot width is greater than 12m. • Garages located on corner lots should be accessed from secondary street.
	Fences	• Front fencing (all fences forward of the building line) is to be a maximum of 1.2m in height and an open style design.
	Water Sensitive Essentials	• Developments must comply with the Water Sensitive Essentials nominated in both the General Housing & Ancillary Structures and Dual Occupancy Development Controls Chapters.
	S7.11 Contributions	• Medium density developments located in the compact lot areas and corner lots may apply for the wavering of Section 7.11 Contributions.

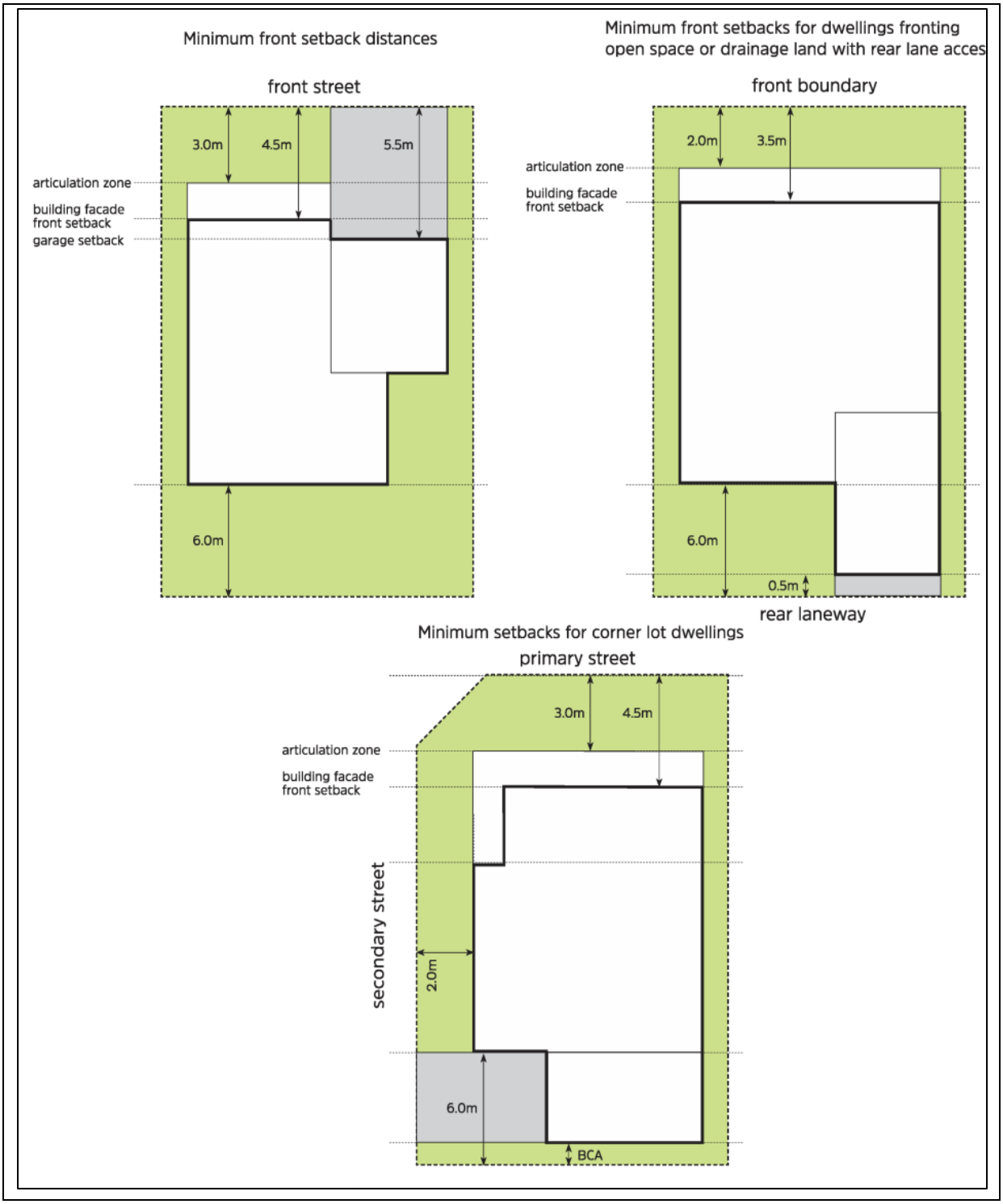


Figure 5 – Compact Lots

Dual Occupancy and Multi Dwelling Development	• Any dual occupancy or multi dwelling development outside of the nominated compact lot will be required to comply with the applicable Development Control's Chapter.
Corner Lots	• All corner lots are to be designed for a dual occupancy development. • All dual occupancy development on corner lots are to suitably address and provide access from separate street frontages.
Traffic, Access & Road Network	• The road layout and hierarchy of the street network must be generally consistent with Figures 6-13. • Figure 6 identifies the proposed access nodes with Browns Lane and Manilla Road, in addition to the key internal intersections as roundabouts. • The following intersections works will be required to facilitate the staged subdivision release: • A Basic Auxiliary Right-turn (BAR) intersection at the new subdivision access intersection on Manilla Road prior to issue of the first subdivision certificate. • Updated intersection modelling of the new subdivision access on Manilla Road is required prior to the release of subdivision certificates for each of the 200th, 400th, 600th and 800th lots released. This is to monitor the performance of the intersection and the need for the following required upgrades: • Manilla Road / subdivision access upgrade to a Channelised Right-turn (CHR) • Manilla Road / Browns Lane intersection upgrade; and • Manilla Road / Glengarvin Drive upgrade to a Channelised Right-turn (CHR) *Note: Other intersection treatments may be considered in consultation with Council and Transport for NSW following updated traffic modelling.* • No Local Roads are to be longer than 250 metres without an intersection and/or traffic calming treatment. • Traffic calming measures are to be implemented in suitable locations to reduce vehicle speeds. Traffic calming measures include passive measures such as narrowing, minimising widths of road pavements, designation of slow speed streets and use of rumble strips at pedestrian crossing points and intersections. • Where two Local Road Type B (9m Carriageway) intersect each other, it must be identified how on-street parking will be managed to ensure that service vehicles can operate unimpeded. • The principle of water sensitive urban design are to be considered in the road network for any new streets. • Direct lot access to and from Browns Lane and Manilla Road is not permitted. Note: Existing lot access to and from Browns Lane and Manilla Road for Lot 341 DP 622077, Lot 1 DP 997767 and Lot 777 DP 1158251 is permitted to be maintained until such time as any of the identified lots form part of an approved subdivision certificate. • Persons creating vacant allotments adjoining Browns Lane & Manilla Road are required to impose restrictions on the use of land under Section 88B of the Conveyancing Act 1919 to legally deny direct vehicular access to and from Browns Lane & Manilla Road. • Development application plans for lots fronting Browns Lane are to incorporate road widening of 10 metres for the full length of the southern side of Browns Lane. * **The Tamworth Integrated Transport Plan 2024 identifies Browns Lane as the link road for the Northern Peel River Crossing between Manilla Road and Wallamore Road.*

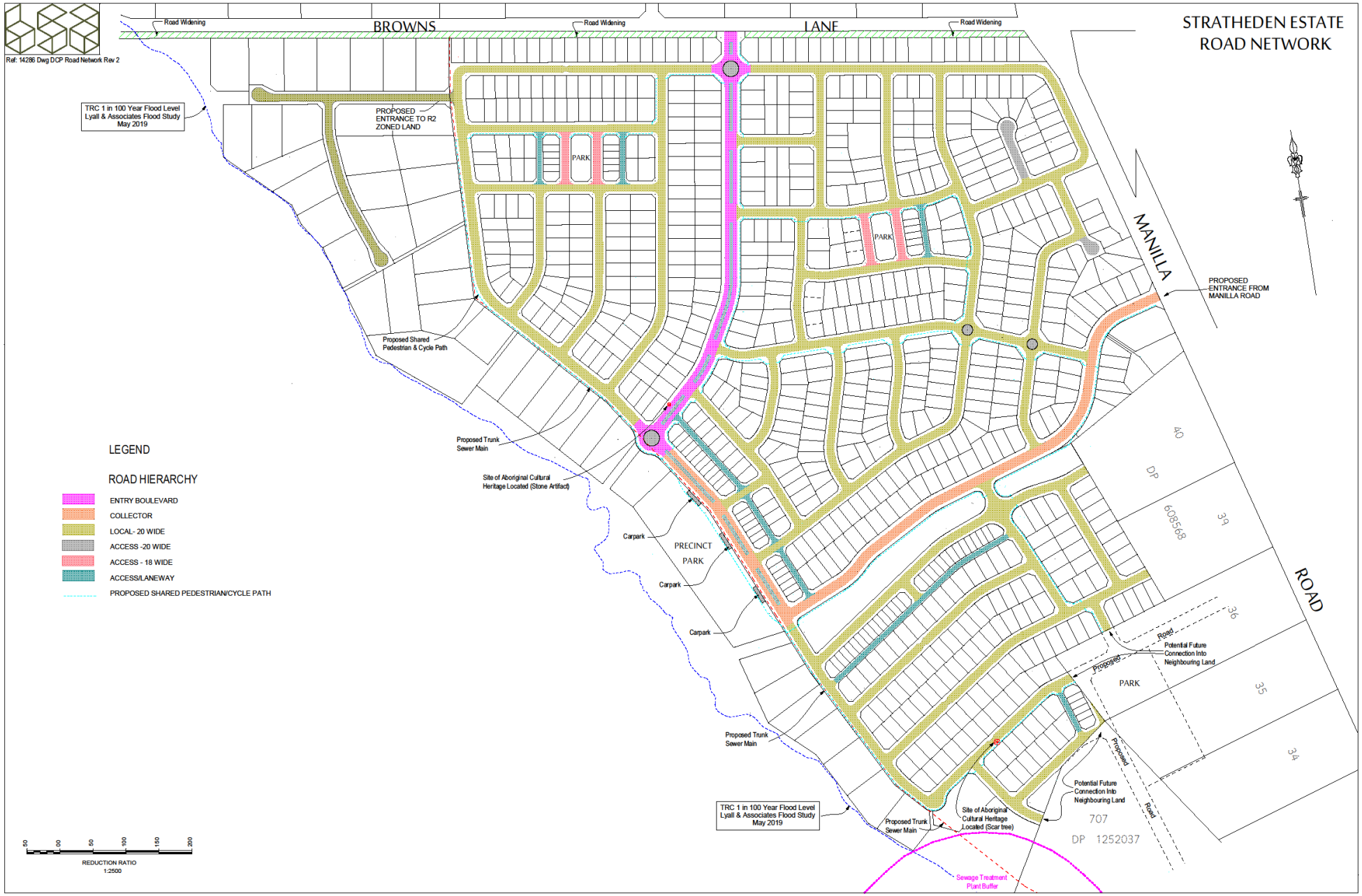


Figure 6 : Stratheden Road Network Hierachy

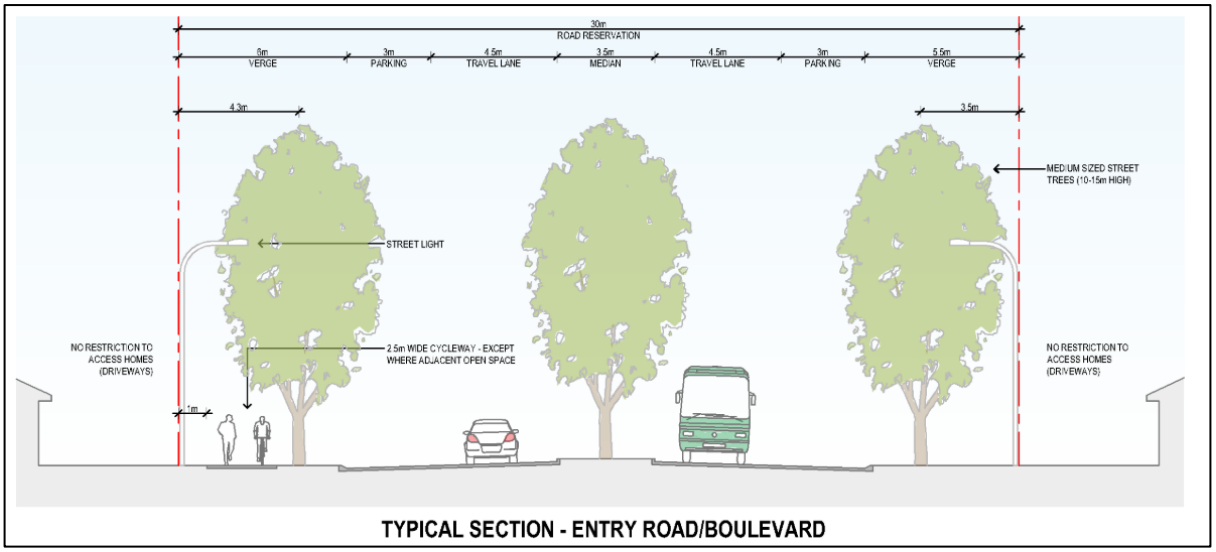


Figure 7 – Typical Section – Entry road/boulevard

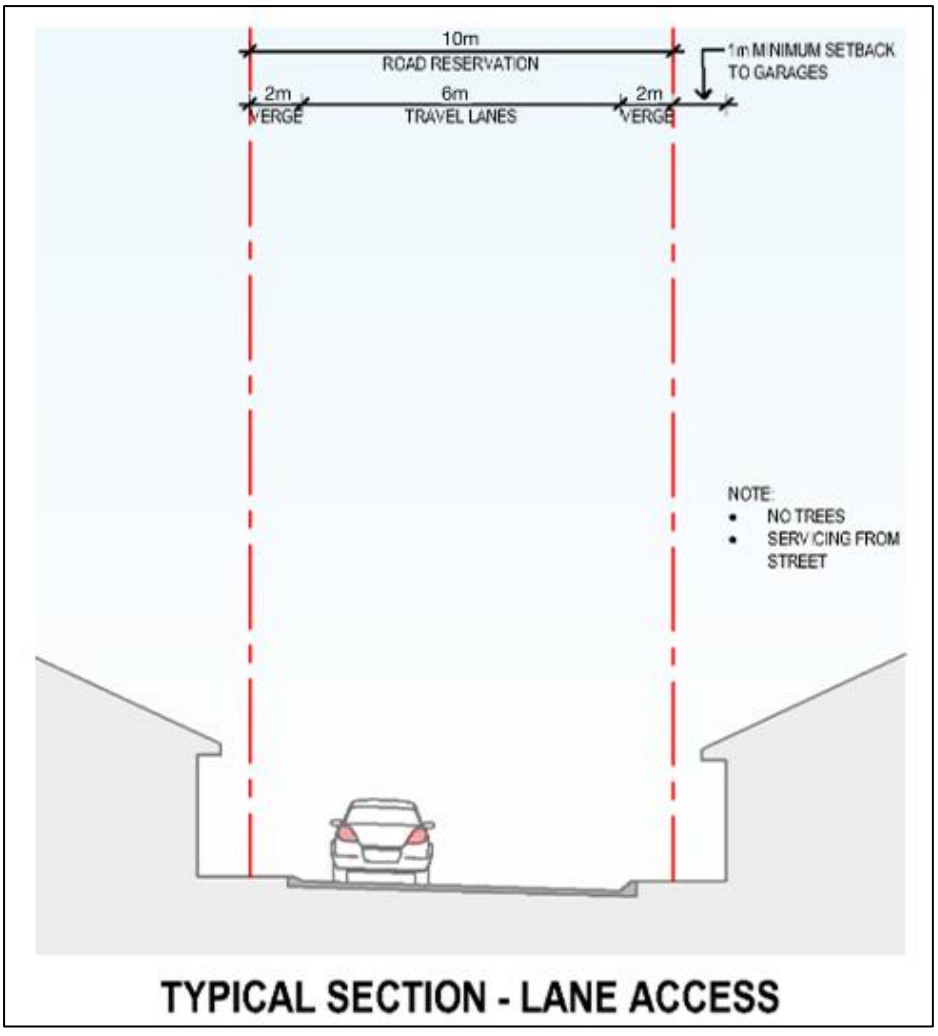


Figure 8– Typical Section – Lane Access

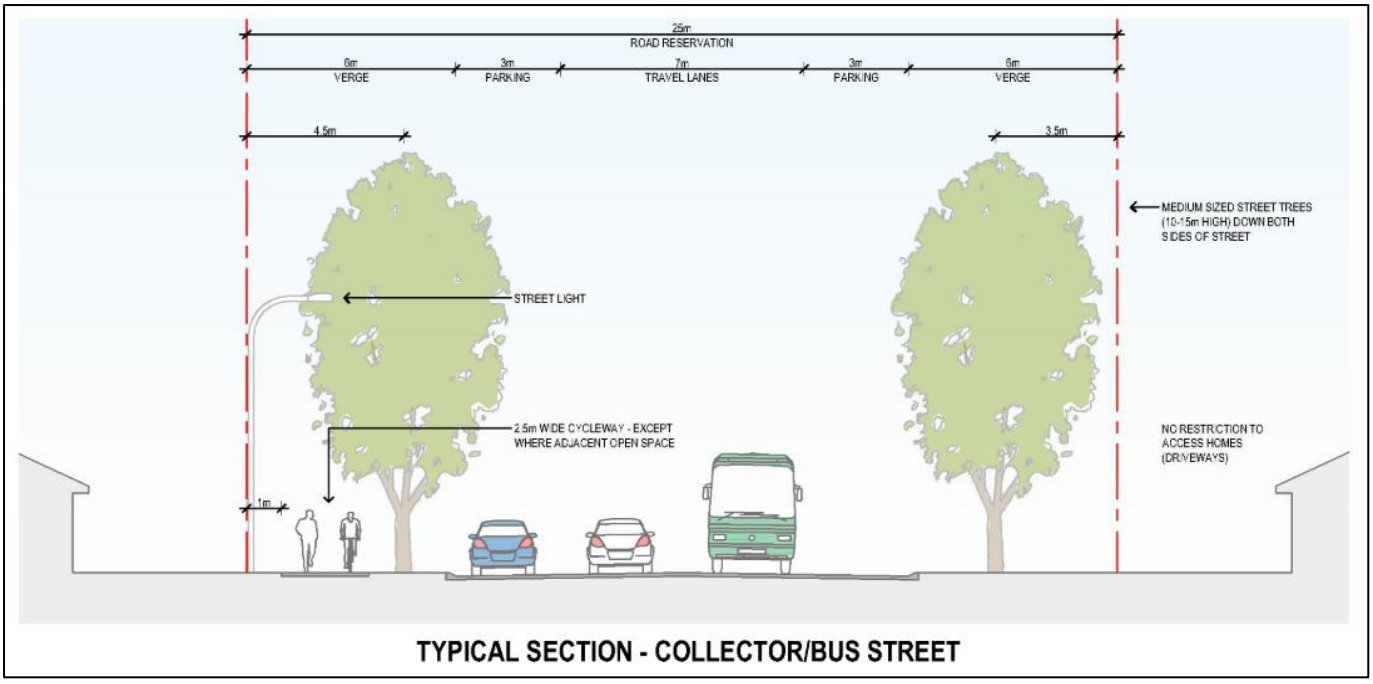


Figure 9 – Typical Section – Collector/Bus Street

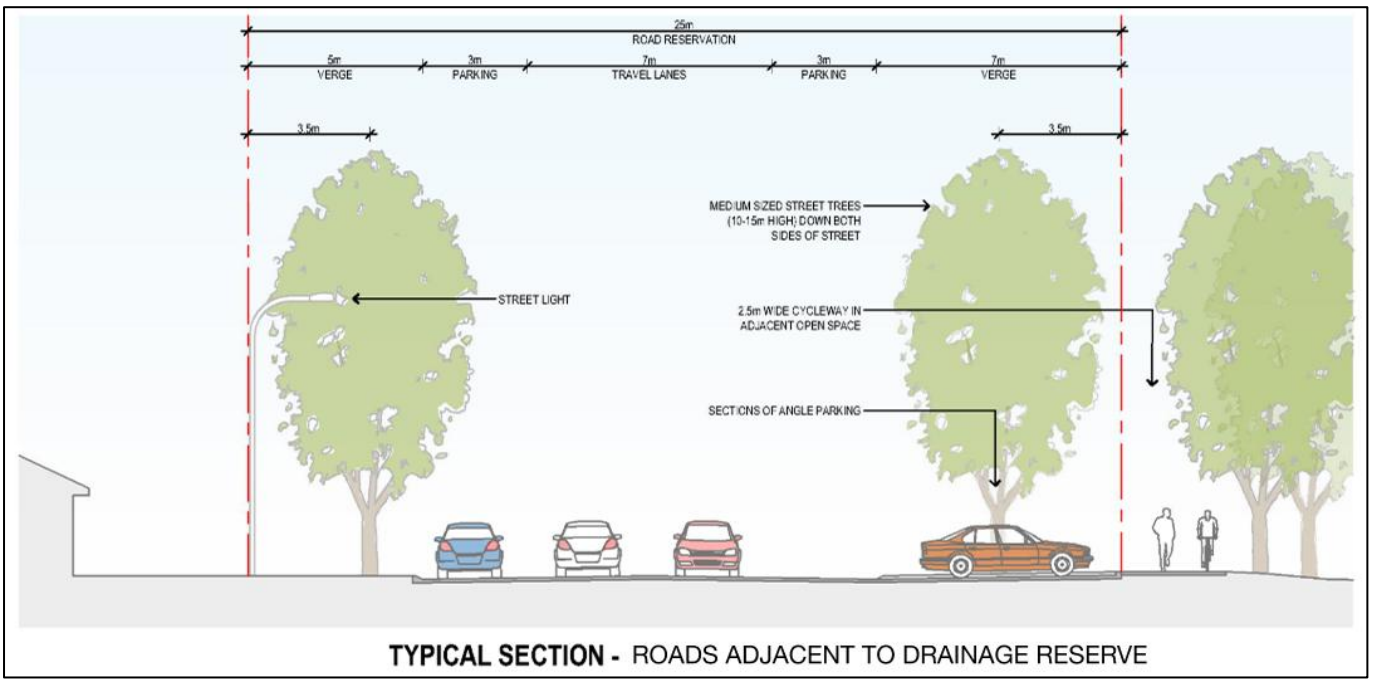


Figure 10 – Typical Section – Roads Adjacent to Drainage Reserve

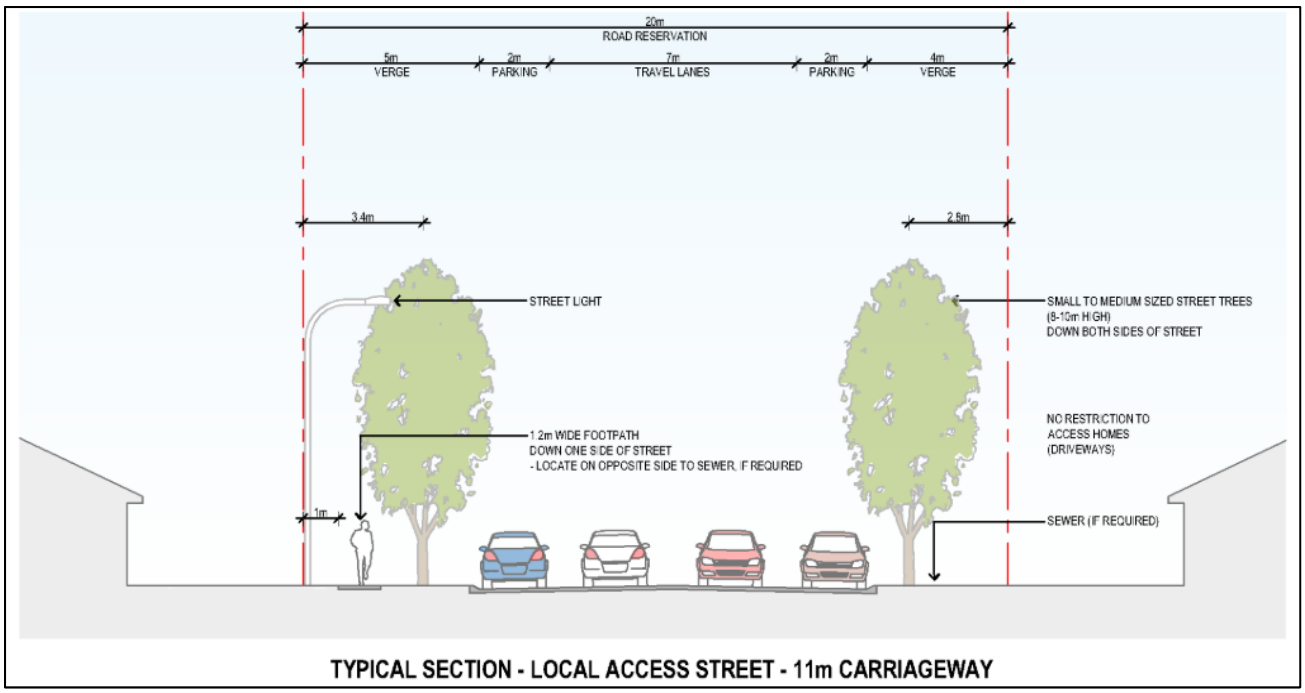


Figure 11: Typical Street Sections – Local Access Street 20 Wide (11m carriageway)

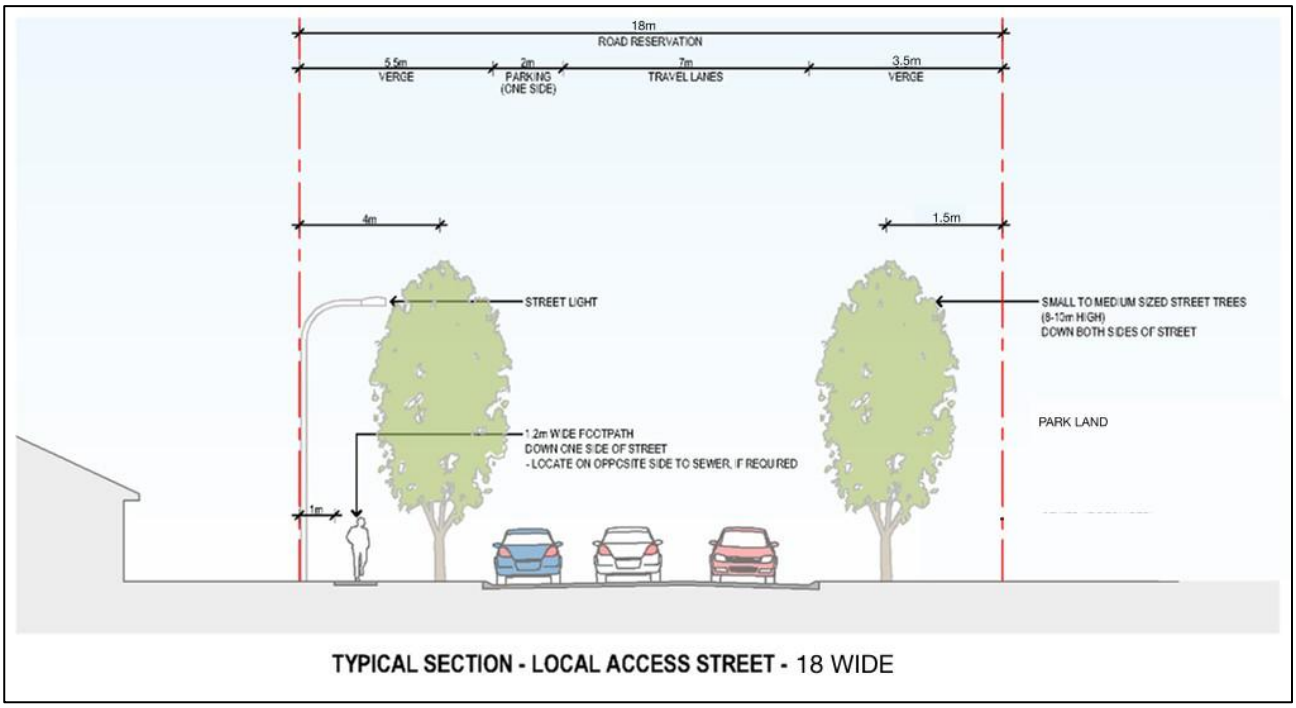


Figure 12: Typical Street Sections – Local Access Street 18 Wide (9m carriageway)

Laneways	• All lots adjoining a laneway are to exclusively use the laneway for vehicular/garage access. • Persons creating allotments adjoining a laneway are required to create a restriction on the use of land under Section 88B of the Conveyancing Act 1919 to legally deny direct vehicular access onto any other road. • All lot boundaries adjoining the laneway are to be defined by fencing or built form. The garage setback to the laneway is minimal (0.5 m) to allow overhanging eaves to remain in the lot without creating spaces where people park illegally in front of garages and/or on the laneway. • Waste Collection from any laneway frontage is not supported where local road/street frontage is available.
Pedestrian & Cycleways	• Cycleways, shareways and other pedestrian facilities are to be generally consistent with Figure 1. •
Public Open Space	• Any subdivision development will require Public Open Space provisions in accordance with Figure 14. • Parks are to be generally located in accordance with Figure 14 and should include: • 2 Neighbourhood parks with an area of about 2050m^2; and • 1 'District Park' with an area of about 2.31ha (identified as 'Precinct Park' on all figures). • A concept embellishment plan for each public open space area is to be submitted with the relevant subdivision application and approved by Council prior to issue of the subdivision works certificate. The plan is to demonstrate consistency with Council's current adopted Open Space Management Guide. All approved open space embellishments, landscaping, paths, furniture, recreation infrastructure and associated civil works are to be delivered to Council's satisfaction and accepted by Council prior to handover/dedication, unless otherwise agreed by Council. • Open space is to be dedicated and embellished in full prior to, or concurrently with, the release of residential lots within the relevant 400m catchment, and no later than 50% residential occupancy within that catchment. • The drainage reserve is not accepted as public open space for the purpose of satisfying Council's open space requirements. • The drainage reserve is not accepted as public open space for the purpose of satisfying Council's open space requirements. Subject to approval from the relevant authority, embellishments such as paths, seating, planting and passive recreation infrastructure may be supported where they improve amenity and connectivity, provided they do not compromise drainage, environmental or maintenance functions.

Landscaping & Street Trees	• A Landscape Plan must be submitted as part of lodgement of a development application for subdivision or medium density development. • A Landscape Plan must detail the species selected, maturity at planting, location and ultimate height. • Street trees are required for all streets and each lot. Council's Urban Street Tree Management Plan is a guide for suitable tree species selection. • Development applications for future dwellings located around the perimeter of Stratheden Estate are to include landscaping treatments to assist in providing buffers to adjoining land uses. • The Landscape Plan should also include details for the revegetation of the ephemeral drainage line running parallel to the collector road from Manilla Road. • Provision of landscaping and/or street trees should be considerate of maintaining adequate clearance for kerb-side waste collection.
Drainage Reserve	• The use of the Drainage Reserve as passive recreation is encouraged, subject to approval from the Department of Climate Change, Energy, the Environment and Water. Details of footpaths, cycleways, seating, and other facilities are to be shown on the submitted plans • Existing trees must be retained within drainage reserve corridor. Council will only consider the removal of a tree under exceptional circumstances where it can be demonstrated that all other options have been exhausted.
Drainage	• Basins and spillways are to be designed to minimise risk to downstream properties in the event of overtopping or failure. • The upstream batters on the basins are to be designed acknowledging safety, especially with respect to batter slopes. Steep sided basins should be avoided wherever possible.
Water	• All lots must be serviced by reticulated water in accordance with the Development Servicing Plan.
Sewer	• All lots in the R1 General Residential Zone must be serviced by gravity connection to reticulated sewer in accordance with the Development Servicing Plan. • Low-pressure sewer systems would not be supported by Council for the provision of sewer services for the land zoned R1 within the Stratheden Estate. • All lots in the R2 Low Density Residential Zone (4000m2 minimum lot size) must be serviced by Onsite Sewerage Management Systems (OSSM). Note: OSSM is required to service R2 zoned land due to this land not forming part of any servicing strategy and the fact that the land is not serviceable by Council sewer infrastructure due to topographical constraints.
Aboriginal Cultural Heritage Significance	• Indigenous heritage items, including one culturally modified tree (scarred), have been identified as being located within the Stratheden Estate. This may limit development within these locations which are to be kept clear of any works, road works or residential development. Appropriate respectful management of the sites will be required. • Consultation with the Tamworth Aboriginal Lands Council shall be undertaken prior to any works commencing within the area. • No items of Aboriginal Cultural Heritage significance are to be removed and/or relocated without an Aboriginal Heritage Impact Permit (AHIP).

Fencing	• Front fencing (all fences forward of the building line) is to be a maximum of 1.2m in height and an open style design. • Secondary frontage fencing is to be a maximum of 1.5m in height and the portion above 1.2m in height is to be an open style design • Side fencing aligned with the front fencing must provide a raked transition to the front fencing. • Side and rear boundary fencing may be 1.8m in height. • Notwithstanding the above provisions, pressed metal (colorbond) fencing is permitted along the laneways and behind the front building line.
Environment	• Healthy existing trees are to be incorporated within the lots where possible. Dwelling configurations and ground level disturbance should be mindful not to diminish the health and longevity of the trees. • The principle of water sensitive urban design are to be considered as part of any development.
Acoustic Control	• An acoustic report from a suitably qualified acoustic engineer must be submitted with a development application for any subdivision of lots along Manilla Road and Browns Lane. The report must take into consideration Browns Lane forming part of the future Northern Peel River Crossing**.* Refer to Figure 13 for potential noise attenuation measures. • Development of lots adjoining Manilla Road should comply with AS3671 Acoustics – Road traffic noise intrusions - Building siting and construction. • **The Tamworth Integrated Transport Plan 2024 identifies Browns Lane as the link road for the Northern Peel River Crossing between Manilla Road and Wallamore Road.*

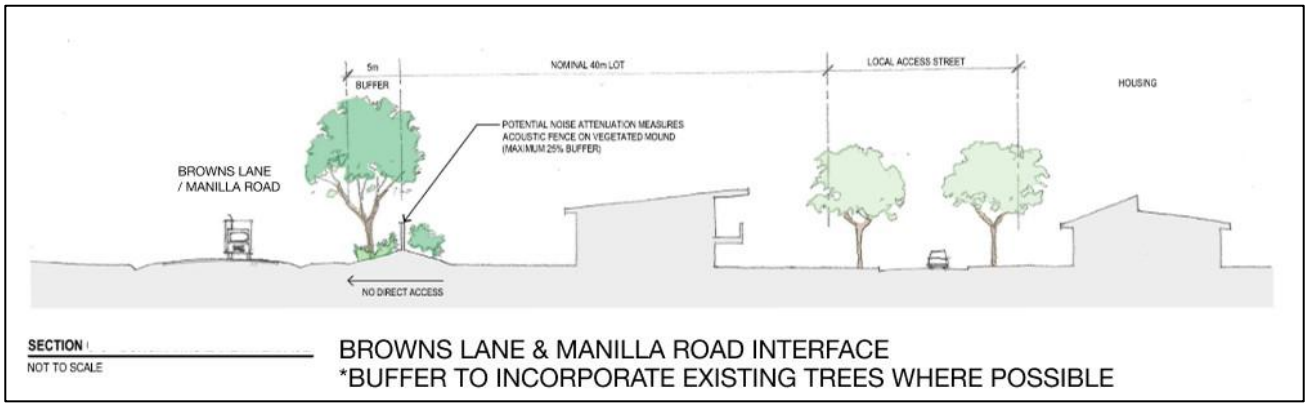


Figure 13: Proposed Browns Lane & Manilla Road Interface

STEP 4: SITE SPECIFIC

Special Entertainment Precincts

These are the development controls relating to development in the Special Entertainment Precincts at Tamworth CBD and the Tamworth Sports and Entertainment Precinct as identified on the DCP Maps. Please note, **Step 2 – Type of Development** and **Step 3 – General Development Specifications** requirements may also apply to your development.

Application of the SEP DCP Provisions

This part of the DCP should be read in conjunction with the Special Entertainment Precinct within Tamworth Regional LEP 2010 and the Tamworth Special Entertainment Precinct Management Plan.

The provisions of this Part of the DCP apply to various types of development within the Special Entertainment Precinct (SEP).
The acoustic provisions in this Part of the DCP also apply to 'Sensitive receivers' within the SEP and immediate surrounds that may be sensitive to sound from entertainment activity such as residential areas or buildings.
For sound emitting (venue) proposals within the SEP, operating hours apply as outlined in Trading Hours.
Development should be consistent with this Chapter and the **Special Entertainment Precinct Management Plan (PMP)**

Strategic Objectives

The strategic objectives for the SEPs, as referenced in the PMP, are:

- Create conditions that encourage and sustain live entertainment, culture and creativity.
- Stimulate economic activity by providing more diverse night-time activities for visitors and residents.
- Provide greater operational certainty for venues and businesses by establishing consistent sound controls and trading hours.
- Balance the creation of a thriving night-time economy with the quality of life for residents.

Acoustic Report

Development applications for new or modified licensed venues or sensitive receivers must be supported by an acoustic report from an accredited acoustic consultant to demonstrate compliance with the sound requirements specified in the Special Entertainment Precinct Management Plan

Trading Hours

Where a development application is submitted that seeks hours beyond those permitted in the PMP, extended hours will be assessed on their merits, including:
Extended trading hours applications (beyond those permitted by the PMP) will only be considered for festivals and special events. Any such application will require a development application to Council.
Any approvals will be granted on a trial basis and will require an event-specific plan of management.
Base trading hours for both Tamworth CBD and Tamworth Sports and Entertainment Precinct SEPs are as per Table 1.

Table 1: Base SEP Trading Hours

	Licenced Premises (e.g Hotels / Nightclubs / Small bars / Clubs / Restaurants / Cafes)		Unlicenced Premises	
	Indoor	Outdoor	Indoor	Outdoor
Base hours	10am – Midnight	10am – Midnight	6am – Midnight	10am – Midnight

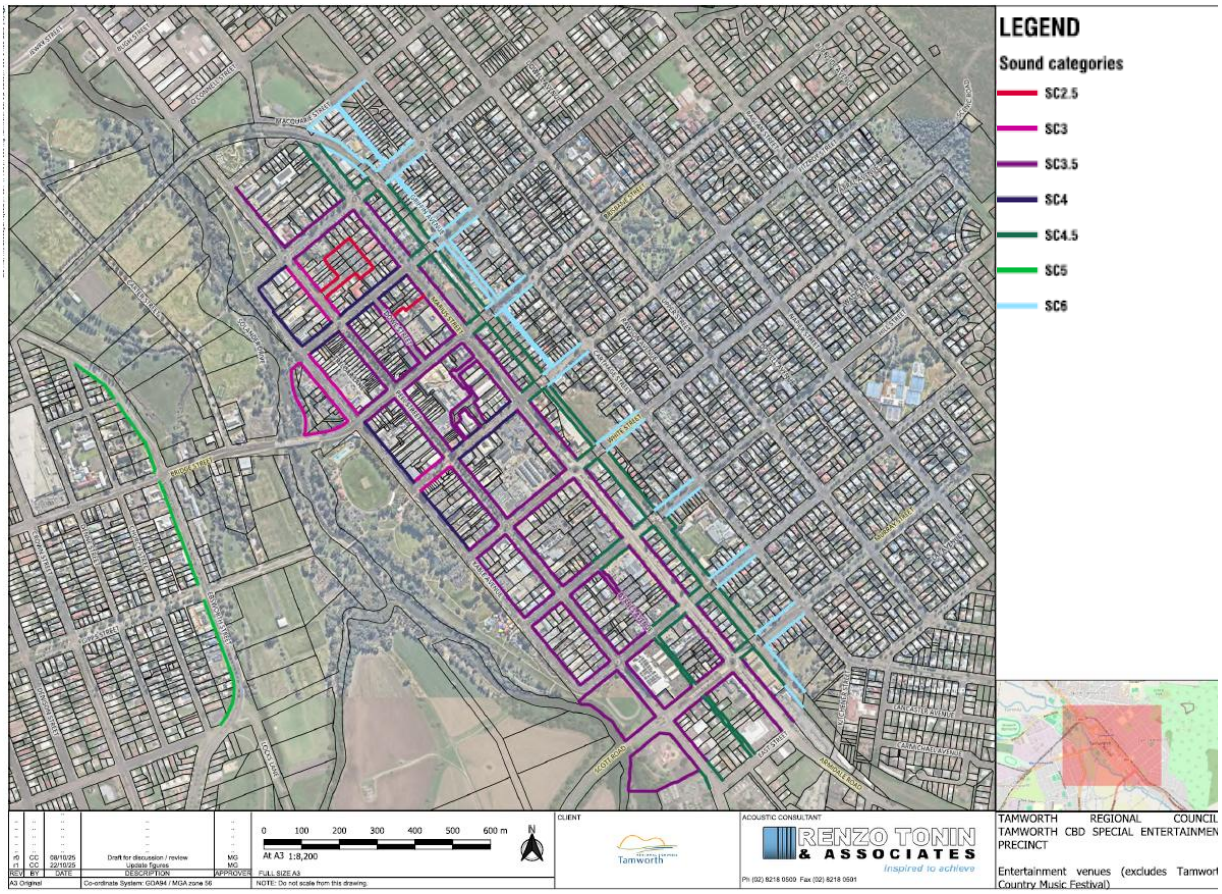
Extended trading hours for Licenced Premises, available subject to conditions specified in the Special Entertainment Precinct Management Plan, are as per Table 2.

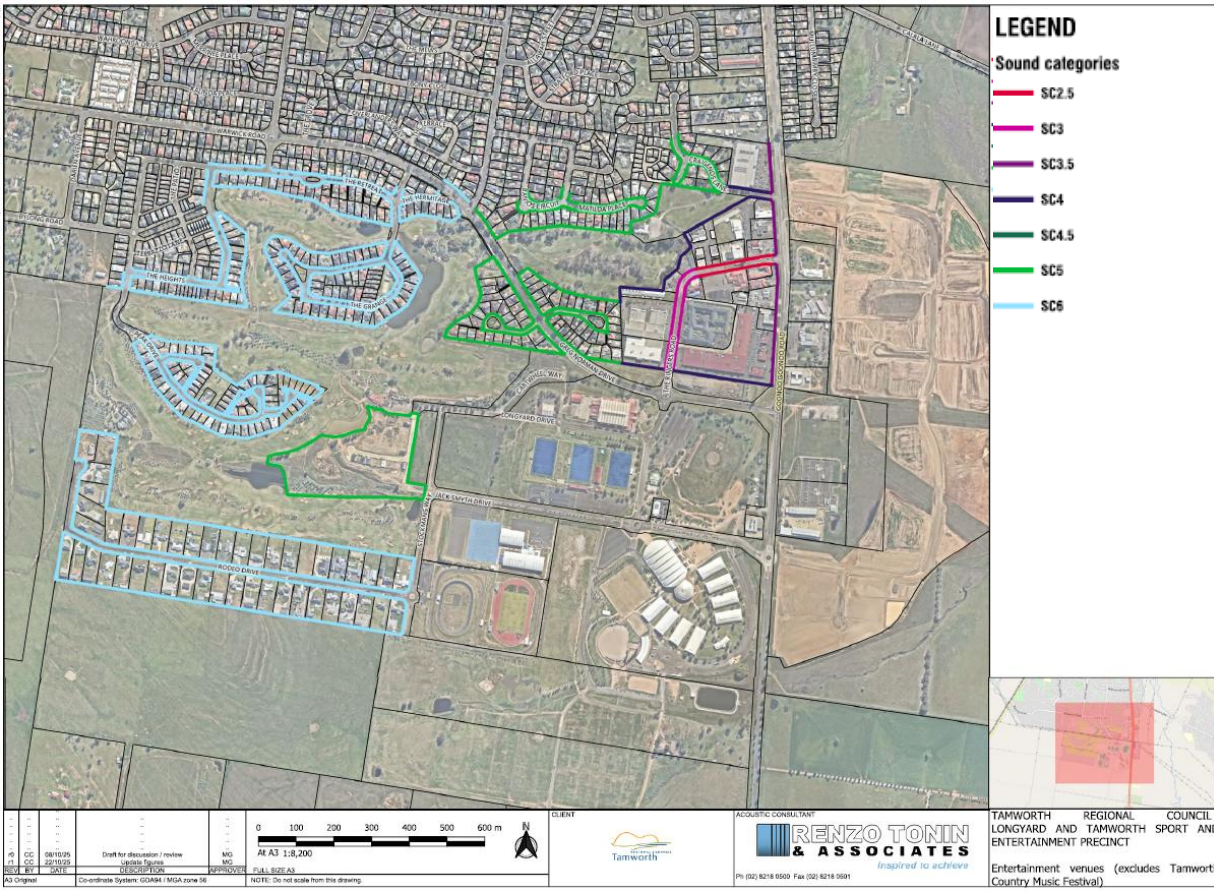
Table 2: Extended SEP Trading Hours

	Licenced Premises (e.g Hotels / Nightclubs / Small bars / Clubs / Restaurants / Cafes)	
	Indoor	Outdoor
Base hours + 1 hour liquor trading extension	10am – 1am	10am – 1am
Base hours + 2 hour liquor trading extension	10am – 2am	_

Sound Category Areas and Applicable Sound Levels

Entertainment sound from venues within an SEP must not exceed the sound criteria specified in Table 3 for the relevant Sound Category Areas (SCAs) by reference to the SCA maps below.





Sound Category ID	7am to 10pm				10pm to midnight				Midnight to 7am			
	Overall dB(A)	Octave band Hz (dBZ)			Overall dB(A)	Octave band Hz (dBZ)			Overall dB(A)	Octave band Hz (dBZ)		
		31.5	63	125		31.5	63	125		31.5	63	125
SCA 2.5	70	74	73	71	70	74	73	71	65	69	68	66
SCA 3	65	69	68	66	65	69	68	66	60	64	63	61
SCA 3.5	65	69	68	66	60	64	63	61	55	59	58	56
SCA 4	60	64	63	61	60	64	63	61	50	59	58	56
SCA 4.5	60	64	63	61	55	59	58	56	50	59	58	56
SCA 5	55	59	58	56	55	59	55	51	50	54	50	46
SCA 6	50	54	50	46	45	54	50	46	40	54	50	46

Table 3: External Entertainment Sound Levels - Cumulative, $L_{eq(15min)}$

Internal sound criteria

The proponent of any future noise-sensitive development within the SEPs will be required to undertake an assessment of entertainment noise intrusion into the premises and provide the appropriate sound.

	Period	Overall dB(A)	Octave band Hz (dBZ)		
			31.5	63	125
Residential accommodation (excluding hotels and hostels) – habitable rooms excluding bedrooms	Day / evening	35	59	52	46
	Early night	35	59	52	46
	Late night	35	59	52	46
Residential accommodation (excluding hotels and hostels) - bedrooms	Day / evening	35	59	52	46
	Early night	30	54	47	41
	Late night	30	54	47	41
Places of public worship	When in use	38	62	55	49
Education facilities including early childhood and childcare facilities	When in use	35	59	52	46
Health service facilities	Day / evening	40	64	57	51
	Early night (wards only)	35	59	52	46
	Late night (wards only)	35	59	52	46
Tourist and visitor accommodation (including hostels)*	Day / evening (bedrooms)	38	62	55	49
	Late night (bedrooms)	33	57	50	44

Notes

Day / evening is 7:00am – 10:00pm
Early night is 10:00pm – midnight
Late night is midnight – 7:00am
Internal criteria apply to entertainment sound only (ie. patrons and music)
Habitable room is defined as a room used for normal domestic activities which:

- Includes living rooms, lounge rooms, television rooms, kitchens, dining rooms, studies, family rooms, sunrooms, etc.
- Excludes bathrooms, laundries, pantries, walk-in wardrobes, hallways, foyers, garages, storage sheds, and other spaces that are neither occupied frequently nor for extended periods of time.

* Sourced from the Acoustic Toolkit.

Mixed use developments

A new mixed-use building that is ground floor commercial with residential above will be required to comply with the below internal sound criteria to address situations where sound transfer is within the same building (e.g via a shared partition such as a floor / ceiling or a partition wall).

For existing mixed-use buildings with entertainment venues and sensitive receiver premises, the 'agent-of-change' approach is an appropriate framework for determining the responsible party with respect to the provision of sound insulation performance upgrades and meeting the below internal noise level criteria.

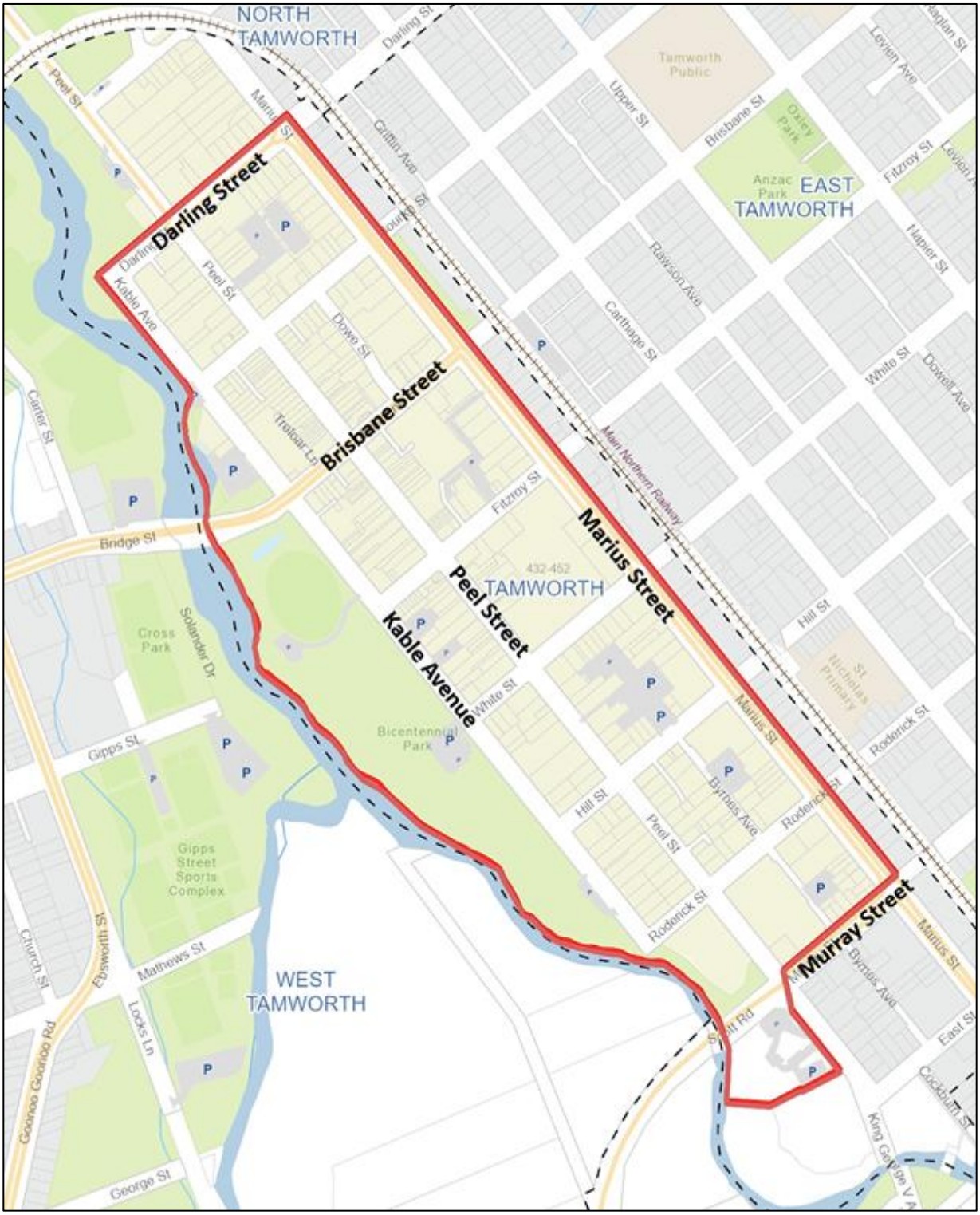
Receiver	Period	Overall dB(A)	Octave band Hz (dBZ)		
			31.5	63	125
Residential accommodation (excluding hotels and hostels) – habitable rooms excluding bedrooms	Day / evening	30	54	47	41
	Early night	30	54	47	41
	Late night	30	54	47	41
Residential accommodation (excluding hotels and hostels) - bedrooms	Day / evening	30	54	47	41
	Early night	25	49	42	36
	Late night	25	49	42	36
Places of public worship	When in use	33	57	50	44
Education facilities including early childhood and childcare facilities	When in use	30	54	47	41
Health service facilities	Day / evening	35	59	52	46
	Early night (wards only)	30	54	47	41
	Late night (wards only)	30	54	47	41
Notes	Day / evening is 7:00am – 10:00pm Early night is 10:00pm – midnight Late night is midnight – 7:00am Internal criteria apply to entertainment sound only (ie. patrons and music) Habitable room is defined as a room used for normal domestic activities which: • Includes living rooms, lounge rooms, television rooms, kitchens, dining rooms, studies, family rooms, sunrooms, etc. • Excludes bathrooms, laundries, pantries, walk-in wardrobes, hallways, foyers, garages, storage sheds, and other spaces that are neither occupied frequently nor for extended periods of time.				

Sound and patron management requirement for entertainment venues

To ensure new and modified entertainment venues do not unreasonably impact on the amenity of sensitive land uses, a Plan of Management must be submitted with any development application and include:

- Details of the use of the site;
- Operational details of the premises;
- Hours of operation;
- Noise mitigation and management – The Plan of Management should detail all noise management measures to ensure the development can achieve the criteria in the sound category area;
- Premises management measures;
- Security and safety;
- Methods employed to implement harm minimisation and the responsible service of alcohol; and
- RSA requirements.

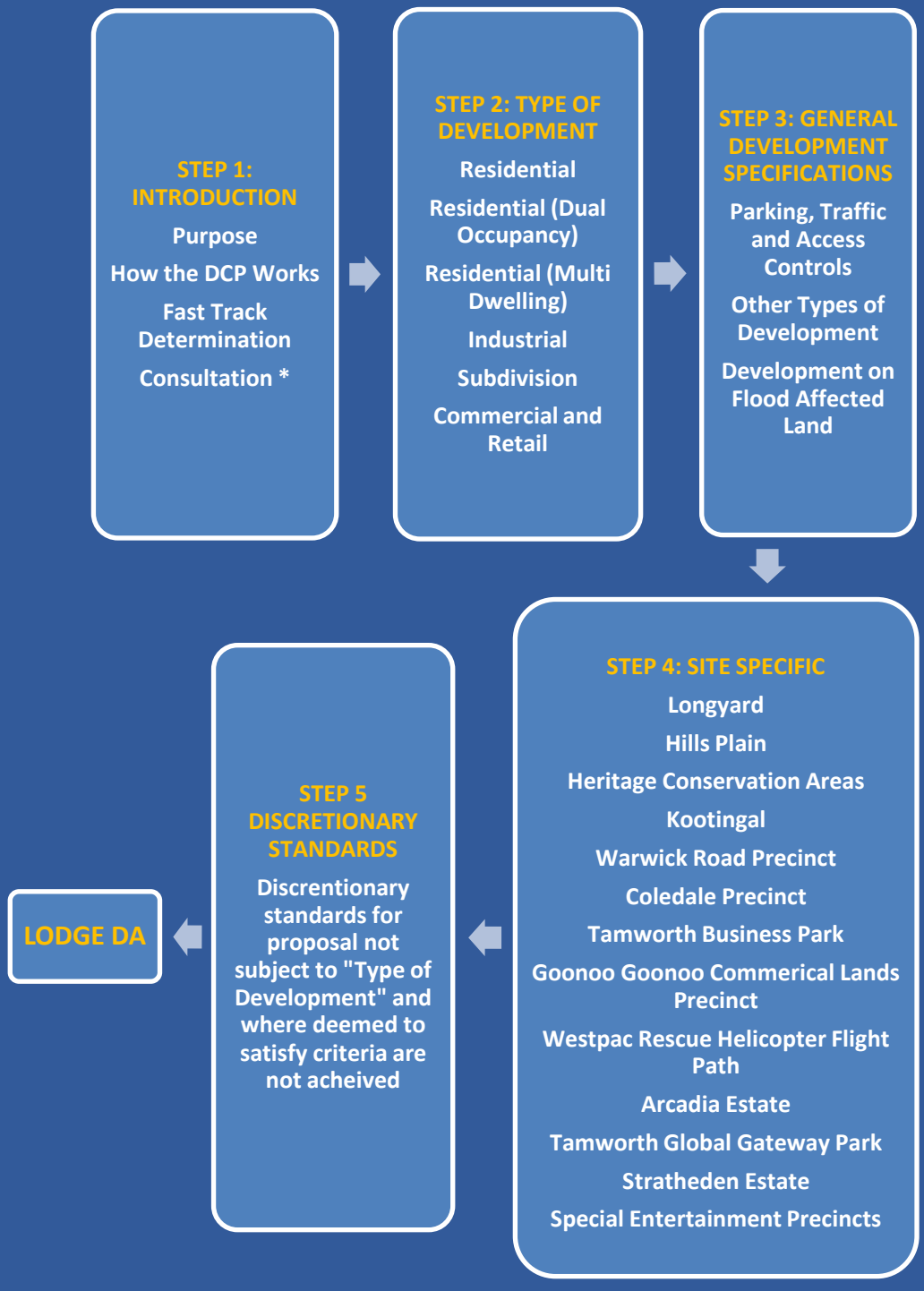
Special Entertainment Precinct – Tamworth CBD



Special Entertainment Precinct – Tamworth Sport and Entertainment Precinct



STEP 5: DISCRETIONARY DEVELOPMENT STANDARDS



RESIDENTIAL STANDARDS

1.1 Building setbacks

a) Setbacks must be compatible with the existing and/or future desired streetscape.
b) Side or rear building setbacks are to demonstrate no unreasonable adverse impact on the privacy or solar access of adjoining properties.

1.2 Building Height

a) Elevated housing developments must minimise the impact on areas of predominately single storey housing.
b) Building height must ensure that adjacent properties are not overlooked or overshadowed.

1.3 Site Coverage

a) Stormwater runoff must not exceed infrastructure capacity.
b) Development must be an appropriate bulk and scale for the existing residential surrounds.

1.4 Solar Access

a) Development must have reasonable access to sunlight and must not unduly impede solar access of neighbouring dwellings.
b) Dwellings are to be positioned to maximise solar access to living areas.
c) Shadow diagram must include:
    - Location, size, height and windows openings of buildings on adjoining properties;
    - Existing shadow-casting structures such as fences, carports, hedges, trees etc.; and
    - Topographical details, including sectional elevations where land has any significant slope.
d) Living areas and gardens should be orientated to the north to maximise solar access to these areas.
e) North-facing pitched roofs should be incorporated where possible to provide opportunity for solar energy collectors.
f) Solar access should be controlled within buildings to allow warm winter sun to penetrate rooms while excluding hot summer sun by:
    - Using horizontal projecting screens such as balconies, awnings, verandah roofs, pergolas and wide eaves; and
    - Use of ceiling insulation.

1.5 Privacy

a) Development must ensure that reasonable privacy is achieved for new dwellings and existing adjoining residences and private open space.

1.6 Parking

a) Development must provide adequate off-street parking to maintain the existing levels of service and safety on the road network.
b) Parking areas and access driveways must be functional in design.
c) Parking areas should be visually attractive and constructed, designed and situated so as to encourage their safe use.
d) The number of spaces is determined based on the occupation potential. Note: rooms capable for use as a bedroom, e.g. ‘study’ are counted as a bedroom.
e) Any vehicle entering or leaving the driveway must be visible to approaching vehicles and pedestrians.
f) Driveway access to a major road should be avoided where possible.

1.7 Landscaping

a) Landscaping must enhance the quality of the built environment.
b) Species selection and location should improve energy efficiency through reducing heat gain through windows and deflecting winter winds.
c) Plants with low maintenance and water requirements should be selected.

1.8 Open Space

a) Sufficient open space must be provided for the use and enjoyment of the residents.
b) A plan shall be submitted which demonstrates that the dimensions of the open space provides for functional space, including placement of outdoor furniture.
c) Open space areas provided must be suitably located and landscaped to obtain adequate sunlight and protection from prevailing winds.

1.9 Corner lots

a) Development must address both street frontages.

1.10 Fencing

a) Fencing must avoid extensive lengths of colourbond as it presents a barrier to the street.
b) Solid fencing of a length greater than 30% may be permitted where landscaping is provided to soften the visual impact on the streetscape.

1.11 Infrastructure

a) Surface infrastructure (e.g. tanks, clotheslines) must not be located within front setback.
b) Surface infrastructure must not be visible from the street.
c) Garbage storage locations must be included in landscape plan and show how they will be screened.

1.12 Outbuildings

a) Outbuildings must not negatively affect the amenity of the streetscape.

1.13 Development near Ridgelines

a) A ridgeline is considered an elevated section of land, visible from beyond the individual property boundary.
b) Development shall protect key landscape features, being the dominant ridgelines and slopes and the intermediate ridges forming a visual backdrop to existing and future urban localities and places of special landscape amenity.
c) Development should not be visually intrusive or degrade the environmental value, landscape integrity or visual amenity of land.
d) The dwelling-house and associated buildings must not be visible above the existing skyline or any prominent ridgeline or local hill top.
e) The dwelling-house and associated buildings will be constructed from low reflectivity building materials and incorporate colours which are visually unobtrusive in relation to the surrounding environment.

1.14 Slopes

a) Development on slopes >15% must utilise good hillside development practice.
b) Good hillside development practice should be implemented as per “Geotechnical Risks Associated with Hillside Development” (*Australian Geomechanics News* No.10 December 1985).
c) Drainage is to avoid erosion of gullies, slopes and drainage lines in the locality.

1.15 Access

a) All weather vehicle access is required to ensure that emergency services (fire, ambulance, police) are able to access the dwelling at all times.

1.16 Relocated Dwellings

a) Dwellings proposed to be re-sited must be of a suitable standard both aesthetically and structurally.

1.17 Adaptability

a) Adaptable housing design must incorporate practical and flexible features to meet the changing needs of residents of different ages and abilities over time. For example, hobless shower area, space for wheelchair access, height of light switches, arrangement and size of rooms,

1.18 Design Principles

a) Design should maximise surveillance with clear sightlines between public and private places, effective lighting of public places and landscaping that makes places.
b) Physical and symbolic barriers should be used to attract, channel or restrict the movement of people to minimise opportunities for crime and increase the effort required to commit crime.
c) All multi-dwelling developments must incorporate the design principles of the Housing SEPP.
d) Must be sympathetic with existing adjoining and surrounding developments in relation to bulk and height
e) Well-proportioned building form that contributes to the streetscape and amenity.
f) Density appropriate to the regional context, availability of infrastructure, public transport, community facilities and environmental quality.
g) Design must demonstrate efficient use of natural resources, energy and water throughout its full life cycle, including construction.
h) Landscape design should optimise useability, privacy and social opportunity, equitable access and respect for neighbours' amenity, and provide for practical establishment and long term management.
i) Optimise amenity (e.g. appropriate room dimensions and shapes, access to sunlight, natural ventilation, visual and acoustic privacy, storage, indoor and outdoor space, efficient layouts and service areas, outlook and ease of access for all age groups and degrees of mobility).
j) Optimise safety and security, both internal to the development and for the public domain.
k) Design must demonstrate response to the social context and needs of the local community in terms of lifestyles, affordability, and access to social facilities.

INDUSTRIAL STANDARDS

1.19 Design

a) Industrial development should enhance the character and appearance of Tamworth's Industrial areas by ensuring each development has an attractive appearance to the street with provision for landscaping.
b) Careful site planning and the provision of adequate environmental safeguards is required to minimise impacts of industrial development.
c) Industrial development proposed in close proximity to non-industrial uses must be compatible on both visual and operational grounds.
d) Buildings should be designed to be energy efficient through the use of insulation, correct orientation on the site, passive solar design and other energy saving technologies.

1.20 Setbacks

a) To ensure that adequate area is available at the front of buildings to accommodate satisfactory landscaping, access, parking and manoeuvring of vehicles.
b) To reduce the visual impact of development on the streetscape.
c) The optimum setback from the street frontage must be determined having regard to the following factors:
    I. provision of landscaped area generally a minimum depth of 5m;
    II. provision of car parking facilities, particularly for customers in a visible location;
    III. building height, bulk and layout;
    IV. the nature and needs of the industrial activity; and
    V. the general streetscape.

1.21 Landscaping

a) Landscaping should improve the visual quality and amenity of Tamworth's industrial areas through low maintenance landscape treatment of development sites.
b) A natural buffer should be provided between development in industrial land and adjoining or adjacent non-industrial land uses.
c) Planting must be provided in scale with the height and bulk of the building
d) Landscaping must be provided on side and rear setbacks where visible from a public place or adjoining residential area.

1.22 Parking and Access

a) Adequate off-street parking must be provided to maintain the existing levels of service and safety on the road network.
b) Parking areas, loading bays and access driveways must be functional in design.
c) Parking areas should be visually attractive and constructed, designed and situated so as to encourage their safe use.
d) Kerb, gutter and road shoulder between the lip of the gutter and the edge of the existing bitumen seal, footway formation and paving and associated road drainage must be constructed for the full frontage of the site
e) Access driveways across the footpath should be hard sealed, consisting of either concrete, asphaltic concrete, paving blocks or other approved material.
f) Loading areas must be designed to ensure that standard design vehicles can manoeuvre into and out of all loading areas without causing conflict to the movement of traffic or pedestrian safety.
g) Any vehicle entering or leaving the driveway must be visible to approaching vehicles and pedestrians.
h) Driveway access to a major road should be avoided where possible.

COMMERCIAL / RETAIL STANDARDS

1.23 Design Principles

a) Development must enhance the quality and character of the business precinct through the use of suitable colours, textures, material and building form.
b) Development should provide visual interest and variation while relating to adjacent buildings.

1.24 Post supported verandahs and balconies

a) A building owner is to provide public liability insurance to the value of $20 million indemnifying Council against claims for damages arising from the construction of a verandah or balcony awning over the public footpath.
b) The landowner shall enter into a Licence agreement with Council for the "air space" defined within the first floor verandah over the public footpath. An annual licence payment is required and will be reviewed annually.

1.25 Health consulting rooms

a) Development must preserve the existing amenity of residential areas.

1.26 Parking and Access

a) Adequate off-street parking must be provided to maintain the existing levels of service and safety on the road network.
b) Parking areas, loading bays and access driveways must be functional in design.
c) Parking areas should be visually attractive and constructed, designed and situated so as to encourage their safe use.
d) Loading areas must be designed to ensure that standard design vehicles can manoeuvre into and out of all loading areas without causing conflict to the movement of traffic or pedestrian safety.

e) Any vehicle entering or leaving the driveway must be visible to approaching vehicles and pedestrians.
f) Driveway access to arterial and sub-arterial roads should be avoided where possible.

SUBDIVISION STANDARDS

1.27 Design Principles

a) Subdivision design requires careful appraisal and systematic analysis of the site with consideration of all the natural and man-made constraints to ensure that its best qualities are used in the most effective way.

b) In determining a development application for subdivision, Council will consider all the matters specified under Section 4.15C(1) of the EP&A Act having particular regard to the following:

- slope and orientation of the land;
- environmental constraints such as soil stability, flooding, contaminants and erosion;
- design of roads and individual site access;
- retention of special qualities or features such as views and trees;
- availability and adequacy of services;
- provision of adequate site drainage, including consideration of downstream capacity and the overall catchment;
- provision of public open space;
- character of adjoining subdivision;
- relationship of the subdivision layout to adjacent land suitable for subdivision;
- the application of Council's engineering policies/standards.

1.28 Lot size and Dimensions

a) Lot dimensions should encourage a variety and choice in housing forms by providing lots suitable for a broad range of dwelling sizes.

b) Residential lots should provide sufficient size and dimensions to enable the construction of dwellings and convenient on-site parking.

c) Industrial and business lots shall provide adequate area and dimensions to enable the siting and construction of building development, the parking of vehicles and the provision of appropriate loading and servicing facilities.

d) Subdivision must restrict urban sprawl and ribbon development within the rural environment.

e) Subdivision must protect productive agricultural land and the prominent ridgeline in environmental protection areas.

f) Subdivision will not be supported where it alienates and fragments "englobo" land required for future urban development.

1.29 Lot orientation

a) Lot orientation should maximise access to daylight and sunlight for both occupiers and neighbours.

b) Development should take advantage or any views or outlook.

c) Development must promote energy efficiency and sustainable development through optimising solar access and shading.

1.30 Stormwater Drainage

a) Stormwater drainage systems must be designed to prevent stormwater damage to the built and natural environment and ensure acceptable levels of health, safety and amenity.

b) The stormwater drainage system must reduce nuisance flows to a level which is acceptable to the community.

c) The stormwater drainage system should be easily accessed and economically maintained.

d) The stormwater drainage system should utilise open space in a manner compatible with other uses.

e) The stormwater drainage system must control flooding and provide escape routes for overland flows for high frequency storm occurrences.

f) Council will only consider alternative forms of drainage including methods of on-site disposal such as retention and/or detention basins where it can be demonstrated that there is no other practical solution available. In assessing the suitability of such systems, Council will take into account ease of maintenance, public safety risk, proven functionality and cost liability for Council.

1.31 Road Network

a) Development shall provide acceptable levels of access, safety and convenience for all road users in residential areas, while ensuring a high level of amenity and protection from the impact of traffic.
b) Road network should separate externally-generated through-traffic flows from local access traffic and pedestrian activity in order to reduce vehicle speed, noise and pollution.
c) Development should ensure convenient vehicular access to properties for residents, visitors and service and emergency vehicles.
d) Road layout should accommodate public transport services that are accessible to all lots and efficient to operate.

OTHER DEVELOPMENT STANDARDS

1.32 Outdoor Lighting

a) Temporary lighting for a period not exceeding 28 days in one calendar year may receive exemption from the controls.
b) Search lights, laser source lights or any similar high-intensity light will only be permitted in emergencies by police and fire personnel or at their direction, or for meteorological data gathering purposes.
c) Lighting selection and location should improve safety and reduce crime and fear.

1.33 Outdoor Advertising Signage

a) New buildings are to integrate designated signage areas within the building form.
b) Size, colour and design compatible with the building to which they relate and its streetscape.
c) Signage should be clear, simple and concise. In some instances, graphic symbols may be more effective than words.
d) Where more than one shop or business within a building, signs should be coordinated in height, shape, size and colour.
e) Signs should not dominate their surroundings.
f) Advertisements should be designed and located so that they do not obscure driver's views of other cars, trains, pedestrians, traffic signals and traffic signs.
g) Advertisements should not resemble road signs in colour, shape, layout to wording in any way that may confuse motorists.
h) Awning sign must:
    - erected horizontal to the ground and at no point less than 2.6m from the ground;
    - not project beyond the awning;
    - securely fixed by metal supports.
i) Fascia sign must not:
    - project above or below the fascia or return end of the awning to which it is attached;
    - not to extend more than 300mm from the fascia or return end of the awning.
j) External light source must be at least 2.6m above the ground if the sign projects over a public road.
k) Flush wall sign:
    - the area of the sign shall not exceed 20% of the area of the wall on which it is fixed or painted;
    - not project above or beyond the wall to which it is attached;
    - face of the sign must be parallel to the wall on which it is attached.
l) Pole or pylon sign must be a minimum of 2.6m above the ground.
m) Projecting wall sign must be:
    - minimum height of 2.6m above the ground;
    - erected at right angles to the wall of the building to which it is attached.
n) Top hamper sign must not:
    - extend more than 200mm beyond any building alignment;
    - extend below the head of the doorway or window to which it is attached.

1.34 Brothels and Restricted Premises

a) A brothel must be sited so that arrivals/departures of staff and clients late at night will not cause the disruption to the amenity of the neighbourhood.
b) Any advertising shall be discrete.
c) Adequate car parking shall be provided for staff and clients.

STANDARDS FOR FLOOD AFFECTED LAND

1.35 General Development Requirements

a) Development should be consistent with the principles and standards of the *Flood Risk Management Manual* 2023 (NSW Government).
b) Development must ensure safety to life and property.
c) Development on flood affected land must be structurally capable of withstanding the effects of flowing floodwaters including debris and buoyancy forces.
d) Development must not increase the risk or implications of flooding to existing areas.
e) Development on flood affected land must incorporate the Australian Building Codes Board Standard - Construction of Buildings in Flood Hazards

1.36 Access

a) If flood free access is not possible, the development must be able to achieve safe wading criteria as specified in Figure L1 of the FPM.

1.37 Industrial development

a) Variation to the design flood planning level may be approved where Council considers strict adherence to the designed floor level to be unreasonable or unnecessary.
b) Council may require that all electrical installations and wiring be above the flood standard and that building materials and services are in accordance with Australian Building Codes Board Standard - Construction of Buildings in Flood Hazards

1.38 Non-residential rural buildings

a) Where it is not practical to locate floor levels above the 1% flood level, materials used in construction must be capable of withstanding inundation by floodwaters.

HILLS PLAIN

1.39 Ecology

a) Development shall maximise retention of remaining vegetation to create strategic links through the site to regional vegetation corridors.

1.40 Drainage

a) Drainage lines shall be protected for their habitat values, visual values, soil conservation and flood protection.
b) Drainage shall minimise uncontrolled ponding.
c) Road crossing and disturbance to land within 20 metres of creek lines is to be minimised.
d) Maximise retention of vegetation within lots to improve site drainage.

1.41 Landscaping

a) Revegetation should utilise native plant species such as those found in the book Australian Plants Suitable for Tamworth Regional Council Areas. Copies of this book can be found at Council's website www.tamworth.nsw.gov.au and then follow the tabs to Council and then Environment. This book, which was prepared by members of the Tamworth Group of the Australian Plants Society, also contains an introduction to the use of native plants in waterwise gardens in the Tamworth Regional Council area.
b) The planting of exotic species will only be accepted when they are an essential part of an integrated landscape plan and are a required "feature" of the development.

HERITAGE CONSERVATION AREAS

1.42 Extensions or alterations

a) Extensions or additions must not dominate the existing building.
b) If visible from the street frontage, alterations or additions must blend seamlessly with the existing building in size, style, materials and colours.
c) Where original roofing is expensive such as slate, corrugated iron may be used as a suitable alternative for extensions or alterations to the rear of the building.
d) Materials and details of existing development should not be simply copied, but used as points of reference in the choice of materials, colours, details and decorations.
e) Modern materials can be used if their proportions and details match, and colour and tonal contrast can be used as unifying elements.

1.43 New development

a) Where there is no identifiable setback pattern, new buildings must be setback at the same distance from the street as the adjoining properties or achieve a transitional setback between the two properties on either side.
b) Site amalgamation may be permitted where the original subdivision pattern is no longer intact and the proposed building footprints and setbacks maintain the existing streetscape character.
c) The traditional red brick commonly used within East Tamworth or West Tamworth is appropriate for use in new development.
d) Weatherboard cladding may be appropriate in some locations. 150mm weatherboards are generally appropriate for historic areas. They should be square edged profile unless the surrounding buildings are post 1920's.
e) Tiles may be appropriate in areas with buildings dating to the 1900's – 1930's. Unglazed terracotta tiles are the most appropriate. The colour and glazing of many terra cotta tiles make them inappropriate.
f) Pre finished iron in grey or other shades may be suitable in some circumstances.

ENVIRONMENTAL STANDARDS

1.44 Vegetation

a) Existing trees may be removed from the proposed building footprint where it can be shown there is no acceptable alternative design.
b) All trees removed must be replaced by comparable native and mature trees.
c) Non-native plants may be used where they are shown to be non-invasive and pivotal to the overall amenity of the development.